

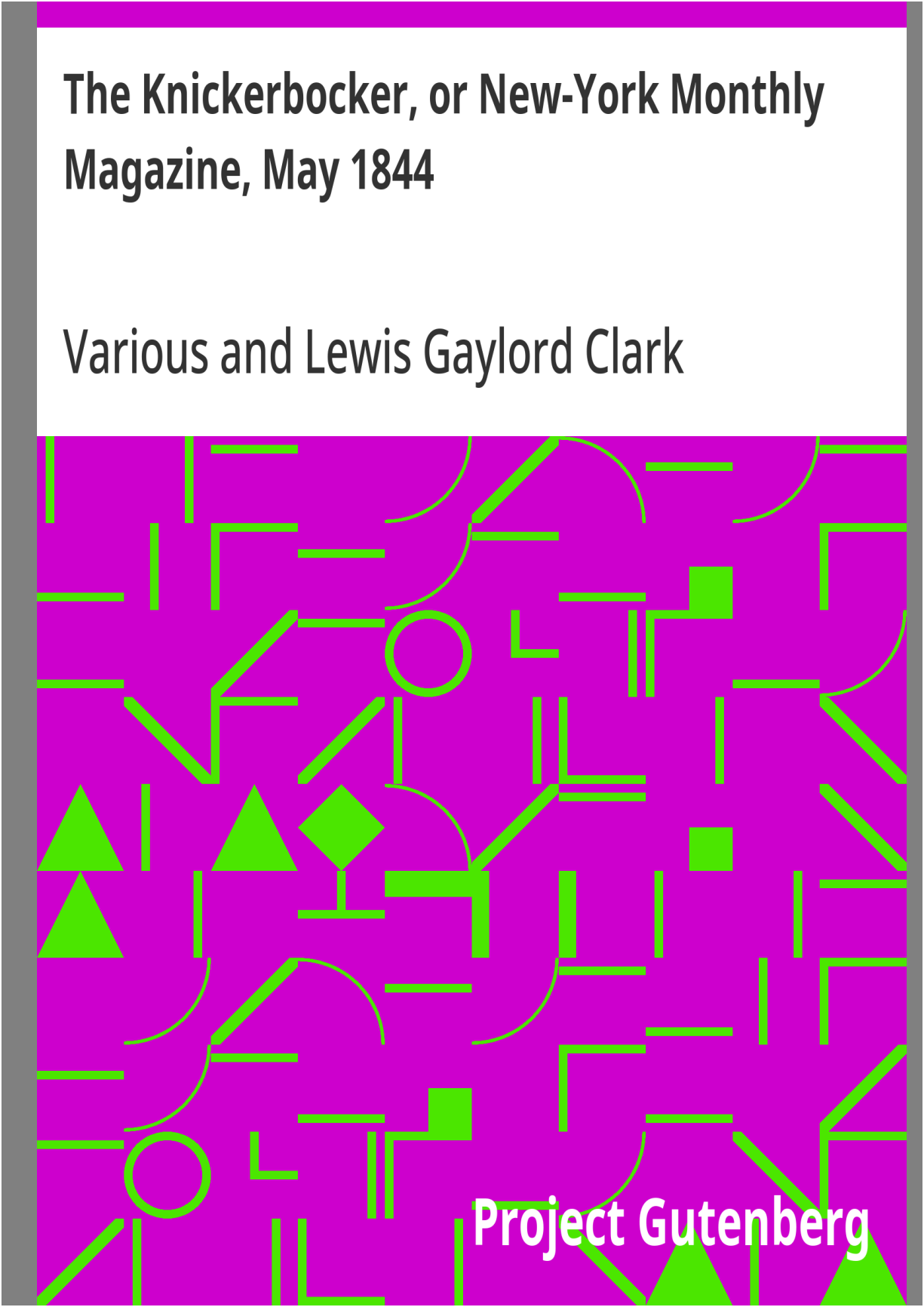
The Knickerbocker, or New-York Monthly Magazine, May 1844

Various and Lewis Gaylord Clark

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THE KNICKERBOCKER.

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NO. 5.

NAPOLÉON BONAPARTE.

BY THOMAS CARLYLE.

THE following article has been compiled from the different works of THOMAS CARLYLE, and embodies all he has written, or at least published, about Napoleon Bonaparte. We offer it in the absence of a more elaborate work on this subject, which we hope one day to see from the pen of this gifted and earnest writer. It is a glimpse of the insight of the clearest-headed Seer of our age, into the noisiest great man of the last, about whom we listen with pleasure to each new voice, perhaps critically and doubtingly, yet for our own part colored by that absorbing, painful interest, which induced us when a boy to close the book which first told us of his doings, after having traced his meteoric flight to the 'monster meeting' at Moscow, unable to proceed to the catastrophe; and it was months before we could bring ourselves to read on, of the heroism which charmed, or the glitter which dazzled us, to its final chaos and night. On Napoleon's right to the title great, the character of his greatness, and what would be left if the smoke-clouds, battle-glory and so on were torn away, we will offer but a few words. Of the title in its best sense but few now believe him worthy, perhaps no thinker or reflecting man. He is a volcano rather than a sun, a destroyer more than a creator; and our sympathy is mingled with little of that which we feel for the martyr; who dies rather than sell his birthright, heaven, for any mess of earth's pottage, or for him who spends his life in the search for truth, and in speaking it to mankind, taking no heed for himself what he shall eat and wherewithal he shall be clad. No! the feeling is far more akin to that which we have for a deep-playing gambler, whom

we know to have some noble impulses. How eagerly, yet sorrowingly we watch his movements! The dice rattle, they are thrown, and again thrown; thousands after thousands he wins and lays aside; and at last, in the madness of the game, stakes the whole sum, with his house, estate, all on the hazard of one cast. With beating heart we listen to the rattling of the dice, and with strained gaze watch the blow. The box is lifted—all is lost. Now we are excited by the daring of this being, and feel deeply, more so if we know him to have something of a better nature, some nobler impulses, but the interest is still in the great gambler, not in the great *man*; and though his boldness startles, and for the moment carries us away, yet ever with our admiration comes a still small voice from the ‘inner sanctuary,’ which whispers of those whom his winnings ruined, or the dependents who were reduced to beggary by his loss. Would the *great* man have played the game at all?

We have always felt that Napoleon stepped down from his greatness when he let them hurry him away alive to that island-prison; and there is reasoning in this feeling itself, which most persons feel on reading of his career, which his worshippers would do well to consider in its various bearings; for if Napoleon, (when the royal guard, his last hope, was cut to pieces at Waterloo, and crying to Bertrand, ‘It is finished,’ he turned and fled,) had placed himself before the last cannon which sent destruction to his foes, and let its ball end his career and life together, who is there but would feel that he was acting truer to his greatness, than to ‘eat his heart away’ a captive? If throughout his career we had seen the brave fighter for country, for principle, for right, instead of for self, this feeling would never arise. Place WASHINGTON in a similar situation; imagine him to have believed it best to gather all his country could give him of hardy defenders, and on the result of one battle let his country’s fate be decided. The battle is fought and lost; his army is routed and cut to pieces; he has asked for liberty with his whole strength, with his whole soul, and the answer is ‘No!’ written with bayonets in blood, and voiced by the enemy’s cannon. Would WASHINGTON have been true to *his* greatness in placing himself before the last cannon? No! emphatically, no! With Napoleon he might have cried, ‘It is finished,’ but then with the same calm brow yet bursting heart, he would have resigned his sword to his conquerors; and if the scaffold were his fate, met it with quiet dignity; or if the dungeon, there calmly await the

Almighty's time when he might again raise his right arm for his country; still as great in the prison or on the scaffold, as when he was at the head of conquering armies. Napoleon's intellectual character was perceptive rather than deep; and there is an intense concentrativeness about him, a power of throwing the whole effort of his soul into the environment of the moment, which is remarkable; and not less so the facility with which he changes that concentration from place to place, from subject to subject. Probably no man ever had his whole mind so much under the control of his will, at his fingers' ends, as it were; 'the eye to see and the will to do.' But revert we to CARLYLE.

SOME call for Barras to be made commandant; he conquered in Thermidor. Some, what is more to the purpose, bethink them of the Citizen BONAPARTE, unemployed artillery officer who took Toulon. A man of head, a man of action: Barras is named Commandant's Cloak; this young artillery officer is named Commandant. He was in the gallery at the moment, and heard it; he withdrew some half hour to consider with himself: after a half-hour of grim compressed considering, to be or not to be, he answers *yea*. And now, a man of head being at the head of it, the whole matter gets vital. Swift to camp of Sablon, to secure the artillery; there are not twenty men guarding it! A swift adjutant, Murat is the name of him, gallops, gets thither some minutes within time, for Lepelletier was also on march that way: the cannon are ours. And now beset this post and beset that; rapid and firm; at Wicket of the Louvre, in Cul-de-sac Dauphin, in Rue St. Honoré, from Pont Neuf all along the North Quays, southward to the Pont *ci-devant* Royal, rank round the sanctuary of the Tuilleries, a ring of steel discipline; let every gunner have his match burning, and all men stand to their arms. Lepelletier has seized the Church of Saint Roche; has seized the Pont Neuf, our piquet there retreating thence without fire. Stray shots fall from Lepelletier, rattle down on the very Tuilleries' stair-case. On the other hand, women advance dishevelled, shrieking peace; Lepelletier behind them waving his hat in sign that we shall fraternize. Steady! The artillery officer is steady as bronze; can, if need were, be quick as lightning. Lepelletier making nothing by messengers by fraternity or hat-waving, bursts out, along the southern Quai Voltaire, along streets and passages, treble-quick in huge veritable

onslaught! Whereupon thou bronze artillery officer—? ‘Fire’! say the bronze lips. And roar and thunder, roar and again roar, continual, volcano-like, goes his great gun, in the Cul-de-sac Dauphin against the Church of Saint Roch; go his great guns on the Pont Royal; go all his great guns—blow to air some two hundred men, mainly about the Church of Saint Roch! Lepelletier cannot stand such harsh play; no sectioner can stand it; the forty thousand yield on all sides scour toward covert. The ship is over the bar; free she bounds shoreward—amid shouting and vivats! Citizen Bonaparte is ‘named General of the Interior by acclamation;’ quelled sections have to disarm in such humor as they may; sacred right of insurrection is gone forever! ‘It is false,’ says Napoleon, ‘that we fired first with blank charge; it had been a waste of life to do that.’ Most false; the firing was with sharp and sharpest shot: to all men it was plain that here was no sport; the rabbits and plinths of Saint Roch Church show splintered by it to this hour. Singular: in old Broglie’s time, six years ago, this whiff of grape shot was promised; but it could not be given then; could not have profited then. Now, however, the time has come for it and the man; and behold you have it; and the thing we specifically call *French Revolution* is blown into space by it and become a thing that was!

The French revolution did disclose original men: among the twenty-five millions, at least one or two units. Some reckon in the present stage of the business, as many as three: Napoleon, Danton, Mirabeau. Whether more will come to light, or of what sort, when the computation is quite liquidated, one cannot say. Meanwhile, let the world be thankful for these three; as indeed, the world is; loving original men, without limit, were they never so questionable, well knowing how rare they are! To us, accordingly, it is rather interesting to observe how on these three also, questionable as they surely are, the old process is repeating itself; how these also are getting known in their true likeness. A second generation, relieved in some measure from the spectral hallucinations, hysterical ophthalmia, and natural panic-delirium of the first contemporary one, is gradually coming to discern and measure what its predecessor could only execrate and shriek over; for, as our proverb said, the dust is sinking, the rubbish-heaps disappear; the built house, such as it is, and was appointed to be, stands visible, better or worse. Of Napoleon Bonaparte, with so many bulletins, and such self-proclamation from artillery and battle-thunder, loud enough to ring through the deafest

brain, in the remotest nook of this earth, and now, in consequence, with so many biographies, histories and historical arguments for and against, it may be said he can now shift for himself; that his true figure is in a fair way of being ascertained. Doubtless it will be found one day, what significance was in him; how, (we quote from a New-England book,) ‘the man was a divine missionary, though unconscious of it; and preached through the cannon’s throat that great doctrine, *La carrière ouverte aux talens*, (the tools to him who can handle them,) which is our ultimate Political Evangel, wherein alone can Liberty lie. Madly enough he preached it is true, as enthusiasts and first missionaries are wont; with imperfect utterance, amid much frothy rant; yet as articulately, perhaps, as the case admitted. Or call him if you will, an American backwoodsman, who had to fell unpenetrated forests, and battle with innumerable wolves, and did not entirely forbear strong liquor, rioting, and even theft; whom, nevertheless, the peaceful sower will follow, and, as he cuts the boundless harvest, bless.’ From ‘the incarnate Moloch,’ which the world once was, onward to to this quiet version, there is a considerable progress.

What are the conquests and expeditions of the whole corporation of captains, from Walter the Pennyless to Napoleon Bonaparte, compared with these ‘moveable types’ of Johannes Faust? Truly, it is a mortifying thing for your conqueror to reflect, how perishable is the metal which he hammers with such violence; how the kind earth will soon shroud up his bloody foot-prints; and all which he achieved and skilfully piled together, will be but like his own ‘canvass city’ of a camp; this evening loud with life, tomorrow all struck and vanished, ‘a few earth-pits and heaps of straw!’ For here, as always, it continues true, that the deepest force is the stillest; that, as in the fable, the mild shining of the sun shall accomplish what the fierce blustering of the tempest has in vain essayed. Above all, it is ever to be kept in mind, that not by material but by mental power, are men and their actions governed. How noiseless is thought! No rolling of drums, no tramp of squadrons or immeasurable tumult of baggage-wagons, attends its movements; in what obscure and sequestered places may the head be meditating which is one day to be crowned with more than imperial authority; for kings and emperors will be among its ministering servants; it will rule not over, but *in* all heads, and with these, its solitary combinations of ideas, as with magic formulas, bend the world to its will! The time may

come, when Napoleon himself will be better known for his laws than for his battles; and the victory of Waterloo prove less momentous than the opening of the first mechanic's institute.

Brother Ringlecule, the missionary, inquired of Ram-Dass, a Hindoo man-god, who had set up for godhead lately, what he meant to do then with the sins of mankind? To which Ram-Dass at once answers, he had *fire enough in his belly* to burn up all the sins in the world. Ram-Dass was right so far, and had a spice of sense in him; for surely it is the test of every divine man this same, and without it he is not divine or great; that he *have* fire in him to burn up somewhat of the sins of the world, of the miseries and errors of the world: why else is he there! Far be it from us to say that a great man must needs with benevolence prepense, become a 'friend of humanity;' nay, that such professional self-conscious friends are not the fatalest kind of persons to be met with in our day. All greatness is unconscious or it is little and naught. And yet a great man without *such* fire in him, burning dim or developed as a divine behest in his heart of hearts, never resting till it be fulfilled, were a solecism in nature. A great man is ever, as the transcendentalists speak, possessed with an *idea*. Napoleon, himself not the superfinest of great men, and balanced sufficiently with prudence and egoisms, had nevertheless, as is clear enough, an idea to start with; the idea that democracy was the cause of man, the right and infinite cause. Nay, to the very last, he had a kind of idea, that, namely, of 'the tools to him that can handle them;' really one of the best ideas yet promulgated on that matter, or rather the one true central idea, toward which all the others, if they tend any whither, must tend. Unhappily, it was only in the military province that Napoleon could realize this idea of his, being forced to fight for himself the while; before he got it tried to any extent in the civil province of things, his head by much victory grew light, (no head can stand more than its quantity,) and he lost head, as they say, and became a selfish ambitionist and quack, and was hurled out, leaving his idea to be realized, in the civil province of things, by others! Thus was Napoleon; thus are all great men: children of the idea; or, in Ram-Dass' phraseology, furnished with fire to burn up the miseries of men.

Napoleon, Danton, Mirabeau, with fire-words (of public speaking) and fire whirlwinds (of cannon and musketry,) which for a season darkened the air, are perhaps at bottom but superficial phenomena.

Napoleon was the ‘armed soldier of democracy,’ invincible while he continued true to that. • • • He does by no means seem to me so great a man as Cromwell. His enormous victories, which reached over all Europe, while Cromwell abode mainly in our little England, are but as high *stilts* on which the man is seen standing; the stature of the man is not altered thereby. I find in him no such sincerity as in Cromwell; only a far inferior sort. No silent walking, through long years, with the Awful, Unnameable, of this universe; ‘walking with God’ as he called it; and faith and strength in that alone: *latent* thought and valor, content to lie latent, then burst out as in a blaze of heaven’s lightning! Napoleon lived in an age when God was no longer believed; the meaning of all Silence, Latency, was thought to be Nonentity: he had to begin not out of the Puritan Bible, but out of poor, sceptical encyclopedias. This was the length the man carried it. Meritorious to get so far. His compact, prompt, every way articulate character, is in itself perhaps small compared with our great chaotic inarticulate Cromwell’s. Instead of ‘dumb prophet struggling to speak,’ we have a portentous mixture of the Quack! Hume’s notion of the Fanatic-Hypocrite, with such truth as it has, will apply much better to Napoleon than it did to Cromwell, to Mahomet or the like, where indeed, taken strictly, it has hardly any truth at all. An element of blameable ambition shows itself from the first in this man; gets the victory over him at last, and involves him and his work in ruin.

‘False as a bulletin’ became a proverb in Napoleon’s time. He makes what excuse he could for it: that it was necessary to mislead the enemy, to keep up his own men’s courage, etc. On the whole these are no excuses. A man in no case has any liberty to tell lies. It had been in the long run better for Napoleon too if he had not told any. In fact, if a man have any purpose beyond the hour and day, meant to be found extant next day, what good can it ever be to promulgate lies? The lies are found out; ruinous penalty is exacted for them. No man will believe the liar next time, even when he speaks truth, when it is of the last importance that he be believed. The old cry of the ‘wolf!’ A lie is *no*-thing; you cannot of nothing make something; you make *nothing* at last, and lose your labour in the bargain.

Yet Napoleon *had* a sincerity: we are to distinguish between what is superficial and what is fundamental insincerity. Across these outer manœuvrings and quackeries of his, which were many and most blameable,

let us discern withal that the man had a certain instinctive ineradicable feeling for reality; and did base himself upon fact so long as he had any basis. He has an instinct of nature better than his culture was. His *savans*, Bourrienne tells us, in that voyage to Egypt were one evening busily occupied arguing that there could be no God. They had proved it to their satisfaction by all manner of logic. Napoleon, looking up into the stars, answers, 'Very ingenious, Messieurs; but *who made* all that?' The Atheistic logic runs off from him like water; the great Fact stares him in the face. 'Who made all that?' So too in practice; he, as every man that can be great, or have victory in this world, sees through all entanglements, the practical heart of the matter; drives straight toward that. When the steward of his Tuilleries Palace was exhibiting the new upholstery, with praises and demonstrations, how glorious it was and how cheap withal, Napoleon, making little answer, asked for a pair of scissors, clipped one of the gold tassels from a window-curtain, put it in his pocket, and walked on. Some days afterward he produced it at the right moment, to the horror of the upholstery functionary: it was not gold but tinsel! In Saint Helena, it is notable how he still, to his last days, insists on the practical, the real. 'Why talk and complain? Above all, why quarrel with one another? There is no *resultat* in it; it comes to nothing that we can *do*. Say nothing if one can do nothing!' He speaks often so to his poor, discontented followers; he is like a piece of silent Strength in the middle of their morbid querulousness there.

And accordingly, was there not what we can call a *faith* in him, genuine as far as it went? That this new enormous Democracy, asserting itself here in the French revolution is an insuppressible fact, which the whole world, with its old forces and institutions cannot put down: this was a true insight of his, and took his conscience along with it—a *faith*. And did he not interpret the dim purport of it well? 'The implements to him who can handle them.' This actually is the truth, and even the whole truth; it includes whatever the French revolution, or any revolution could mean. Napoleon, in his first period, was a true Democrat. And yet by the nature of him, fastened too by his military trade, he knew that democracy, if it were a true thing at all, could not be an anarchy: the man had a heart-hatred for anarchy. On that twentieth of June, (1792,) Bourrienne and he sat in a coffee-house as the mail rolled by. Napoleon expresses the deepest contempt for persons in authority that they do not restrain this rabble. On the tenth of August he

wonders there is no one to command these poor Swiss; they could conquer if there were. Such a faith in democracy, yet hatred of anarchy it is, that carries Napoleon through all his great work. Through his brilliant Italian campaigns, onward to the peace of Luben, one would say his inspiration is: 'Triumph to the French revolution; assertion of it against these Austrian Simulacra that pretend to call it a simulacrum!' Withal, however, he feels, and has a right to feel, how necessary a strong authority is; how the revolution cannot prosper at all without such. To bridle in that great devouring, self-devouring French revolution; to *tame* it, so that its intrinsic purpose can be made good; that it may become organic, and be able to live amongst other organisms and *formed* things, not as a wasting destruction alone; is not this still what he partly aimed at, as the true purport of his life; nay, what he actually managed to do? Through Wagram, Austerlitzes; triumph after triumph; he triumphed so far. There was an eye to see in this man, a soul to dare and do. He rose naturally to be the king. All men saw that he *was* such. The common soldiers used to say on the march: 'These babbling *avocats* up at Paris: all talk and no work? What wonder it runs all wrong! We shall have to go and put our *petit corporal* there!' They went and put him there; they and France at large. Chief-consulship, emperorship, victory over Europe; till the poor lieutenant of *La Fère*, not unnaturally, might seem to himself the greatest of all men that had been in the world for some ages.

But at this point the fatal charlatan-element got the upper-hand. He apostatized from his old faith in facts, took to believing in semblances; strove to connect himself with Austrian dynasties, popedoms, with the old false feudalities which he once saw clearly to be false; considered that *he* would found 'his dynasty' and so forth; that the enormous French revolution meant only that! The man was 'given up to strong delusion that he should believe a lie;' a fearful but most sure thing. He did not know true from false now when he looked at them; the fearfulest penalty a man pays for yielding to untruth of heart. *Self* and false ambition had now become his god: *self*-deception once yielded to, *all* other deceptions follow naturally, more and more. What a paltry patch-work of theatrical paper-mantles, tinsel and mummery, had this man wrapped his own reality in, thinking to make it more real thereby! His hollow Pope's-Concordat, pretending to be a reëstablishment of Catholicism, felt by himself to be the method of

extirpating it, '*la vaccine de la religion*;' his ceremonial coronations, consecrations by the old Italian chimera in Notre Dame there; 'wanting nothing to complete the pomp of it but the half million who had died to put an end to all that!' Cromwell's inauguration was by the sword and Bible; what we must call a genuinely *true* one. Sword and Bible were borne before him, without any chimera. Were not these real emblems of Puritanism; its true decoration and insignia? It had used them both in a very real manner, and pretended to stand by them now! But this poor Napoleon mistook; he believed too much in the *dupeability* of men; saw no fact deeper in man than hunger and this. He was mistaken. Like a man that should build upon cloud; his house and he falls down in confused wreck, and depart out of the world.

Alas! in all of us this charlatan-element exists; and might be developed, were the temptation strong enough. 'Lead us not into temptation!' But it is fatal, I say, that it *be* developed. The thing into which it enters as a cognizable ingredient is doomed to be altogether transitory; and, however huge it may *look*, is in itself small. Napoleon's working, accordingly, what was it with all the noise it made? A flash as of gunpowder wide spread; a blazing up as of dry heath. For an hour the whole universe seems wrapt in smoke and flame; but only for an hour. It goes out. The universe, with its old mountains and streams, its stars above and kind soil beneath, is still there.

The Duke of Weimar told his friends always to be of courage; this Napoleonism was unjust, a falsehood, and could not last. It is true doctrine. The heavier this Napoleon trampled on the world, holding it tyrannously down, the fiercer would the world's recoil against him be, one day. Injustice pays itself with frightful compound interest. I am not sure but he had better lost his best park of artillery, or had his best regiment drowned in the sea, than shot that poor German bookseller, Palm! It was a palpable, tyrannous, murderous injustice, which no man, let him paint an inch thick, could make out to be other. It burnt deep into the hearts of men, it and the like of it; suppressed fire flashed in the eyes of men, as they thought of it, waiting their day! Which day *came*: Germany rose round him. What Napoleon *did* will amount in the long run to what he did *justly*; what Nature with her laws will sanction. To what of reality was in him; to that and nothing more. The rest was all smoke and waste. *La carrière ouverte aux talents*: that great true

message, which has yet to articulate and fulfil itself every where, he left in a most inarticulate state. He was a great *ébauche*, rude-draught; as indeed what great man is not? Left in too rude a state, alas!

His notions of the world, as he expresses them there at St. Helena, are almost tragical to consider. He seems to feel the most unaffected surprise that it has all gone so; that he is flung out on the rock here, and the world is still moving on its axis. France is great, and all great; and at bottom, he is France. England itself he says is by nature only an appendage of France; ‘another isle of Oberon to France.’ So it was *by nature*, by Napoleon-nature; and yet look how in fact—HERE AM I! He cannot understand it; that France was not all great, that he was not France. ‘Strong delusion,’ that he should believe the thing to be which *is* not! The compact, clear-seeing, decisive Italian nature of him, strong, genuine, which he once had, has enveloped itself, half dissolved itself, in a turbid atmosphere of French fanfaronade. The world was not disposed to be trodden down under foot; to be bound into masses, and built together as *he* liked, for a pedestal for France and him: the world has quite other purposes in view! Napoleon’s astonishment is extreme. But alas, what help now! He had gone that way of his; and Nature had also gone her way. Having once parted with reality, he tumbles helpless in vacuity; no rescue for him. He had to sink there mournfully as man seldom did; and break his great heart and die—this poor Napoleon; a great implement too soon wasted, till it was useless; our last Great Man!

THE FLORAL RESURRECTION.

BY THE SHEPHERD OF SHARONDALE.

WELCOME, sweet flowers! bright Summer's poetry!

I hail your fragrant coming, and again
With joy I read your brilliant imagery
Written once more in nature's holiest strain:
The lowly cottage, and the princely hall
Your advent cherisheth—ye are all to all.

Rising in glory from their winter graves,
The painted Tulip comes, and Daisy fair,
And o'er the brook the fond Narcissus waves
Her golden cup—her image loving there.
Those early flowers their glowing tributes bring
To weave a chaplet round the brow of Spring.

The sultry sun of June looks down, and then
Comes forth the lovely rose, the garden's pride,
To herald summer over glade and glen,
O'er wild and waste, o'er mead and mountain side:
Proudly she rears her crest on high, the vain
And gay pursuivant of a brilliant train.

And now, bright Dahlia, heartless one, appear!
Thy time has come to join the festival:

Come, Peru's daughter, belle of night! dost fear
To wear in glorious day thy coronal?
And thou, pale exile from the holy land,
Imperial Lily! come and join the band!

See, o'er the lattice creeps the Eglantine,
And there the Jasmine clambers up the wall
To twine her wreaths with Flora's blushing queen,
Rejoicing all in summer's carnival:
How kind of them to deck the shepherd's cot,
And with their presence cheer his humble lot!

I love ye, flowers; your odors ever bring
Back visions of the past: I love ye well;
From the lone Primrose, nursling of the Spring,
Unto the beauteous Aster, Autumn's belle,
Or reared on verdant field, or ruined wall,
I love ye all, sweet flowers!—I love ye all!

THE LEGEND OF DON RODERICK.

NUMBER THREE.

THE scattered fugitives of the Christian army spread terror throughout the land. The inhabitants of the towns and villages gathered around them as they applied at their gates for food, or laid themselves down, faint and wounded, beside the public fountains. When they related the tale of their defeat, old men shook their heads and groaned, and the women uttered cries and lamentations. So strange and unlooked-for a calamity filled them with consternation and despair; for it was long since the alarm of war had sounded in their land: and this was a warfare that carried chains and slavery, and all kinds of horrors, in its train.

Don Roderick was seated with his beauteous queen, Exilona, in the royal palace which crowned the rocky summit of Toledo, when the bearer of ill-tidings came galloping over the bridge of the Tagus. 'What tidings from the army?' demanded the king, as the panting messenger was brought into his presence. 'Tidings of great wo!' exclaimed the soldier. 'The prince has fallen in battle. I saw his head and surcoat upon a Moorish lance; and the army was overthrown and fled!'

At hearing these words, Roderick covered his face with his hands, and for some time sat in silence; and all his courtiers stood mute and aghast, and no one dared to speak a word. In that awful space of time passed before his thoughts all his errors and his crimes, and all the evil that had been predicted in the necromantic tower. His mind was filled with horror and confusion, for the hour of his destruction seemed at hand: but he subdued

his agitation by his strong and haughty spirit; and, when he uncovered his face, no one could read on his brow the trouble and agony of his heart. Still, every hour brought fresh tidings of disaster. Messenger after messenger came spurring into the city, distracting it with new alarms. The infidels, they said, were strengthening themselves in the land; host after host were pouring in from Africa: the sea-coast of Andalusia glittered with spears and scimitars. Bands of turbaned horsemen had overrun the plains of Sidonia, even to the banks of the Guadiana. Fields were laid waste, towns and cities plundered, the inhabitants carried into captivity, and the whole country lay in smoking desolation.

Roderick heard all these tidings with an undaunted aspect; nor did he ever again betray sign of consternation: but the anxiety of his soul was evident in his warlike preparations. He issued orders that every noble and prelate of his kingdom should put himself at the head of his retainers, and take the field; and that every man capable of bearing arms should hasten to his standard, bringing whatever horse, and mule, and weapon he possessed: and he appointed the plain of Cordova for the place where the army was to assemble. Throwing by, then, all the trappings of his late slothful and voluptuous life, and arming himself for warlike action, he departed from Toledo at the head of his guard, composed of the flower of the youthful nobility. His queen, Exilona, accompanied him; for she craved permission to remain in one of the cities of Andalusia, that she might be near her lord in this time of peril.

Among the first who appeared to hail the arrival of the king at Cordova, was the Bishop Oppas, the secret partisan of the traitor Julian. He brought with him his two nephews, Evan and Siseburto, the sons of the late king Witiza; and a great host of vassals and retainers, all well armed and appointed, for they had been furnished, by Count Julian, with a part of the arms sent by the king to Africa. The bishop was smooth of tongue, and profound in his hypocrisy: his pretended zeal and devotion, and the horror with which he spoke of the treachery of his kinsman, imposed upon the credulous spirit of the king, and he was readily admitted into his most secret council.

The alarm of the infidel invasion had spread throughout the land, and roused the Gothic valor of the inhabitants. On receiving the orders of

Roderick, every town and hamlet, every mountain and valley, had sent forth its fighting men, and the whole country was on the march toward Andalusia. In a little while there were gathered together, on the plain of Cordova, near fifty thousand horsemen, and a countless host of foot-soldiers. The Gothic nobles appeared in burnished armor, curiously inlaid, and adorned with chains and jewels of gold, and ornaments of precious stones, and silken scarfs, and surcoats of brocade, or velvet richly embroidered; betraying the luxury and ostentation with which they had declined from the iron hardihood of their warlike sires. As to the common people, some had lances and shields and swords and crossbows, but the greater part were unarmed, or provided merely with slings, and clubs studded with nails, and with the iron implements of husbandry; and many had made shields for themselves from the doors and windows of their habitations. They were a prodigious host, and appeared, say the Arabian chroniclers, like an agitated sea; but, though brave in spirit, they possessed no knowledge of warlike art, and were ineffectual through lack of arms and discipline.

Several of the most ancient and experienced cavaliers, beholding the state of the army, advised Don Roderick to await the arrival of more regular troops, which were stationed in Iberia, Cantabria, and Gallia Gothica; but this counsel was strenuously opposed by the Bishop Oppas; who urged the king to march immediately against the infidels. ‘As yet,’ said he, ‘their number is but limited; but every day new hosts arrive, like flocks of locusts, from Africa. They will augment faster than we; they are living, too, at our expense, and, while we pause, both armies are consuming the substance of the land.’

King Roderick listened to the crafty counsel of the bishop, and determined to advance without delay. He mounted his war horse, Orelia, and rode among his troops assembled on that spacious plain, and wherever he appeared he was received with acclamations; for nothing so arouses the spirit of the soldier as to behold his sovereign in arms. He addressed them in words calculated to touch their hearts and animate their courage. ‘The Saracens,’ said he, ‘are ravaging our land, and their object is our conquest. Should they prevail, your very existence as a nation is at an end. They will overturn your altars; trample on the cross; lay waste your cities; carry off your wives and daughters, and doom yourselves and sons to hard and cruel

slavery. No safety remains for you but in the prowess of your arms. For my own part, as I am your king, so will I be your leader, and will be the foremost to encounter every toil and danger.'

The soldiery answered their monarch with loud acclamations, and solemnly pledged themselves to fight to the last gasp in defence of their country and their faith. The king then arranged the order of their march: all those who were armed with cuirasses and coats of mail were placed in the front and rear; the centre of the army was composed of a promiscuous throng, without body armor, and but scantily provided with weapons.

When they were about to march, the king called to him a noble cavalier named Ramiro, and delivering him the royal standard, charged him to guard it well for the honor of Spain; scarcely, however, had the good knight received it in his hand, when he fell dead from his horse, and the staff of the standard was broken in twain. Many ancient courtiers who were present looked upon this as an evil omen, and counselled the king not to set forward on his march that day; but, disregarding all auguries and portents, he ordered the royal banner to be put upon a lance, and gave it in charge of another standard-bearer; then commanding the trumpets to be sounded, he departed at the head of his host to seek the enemy.

The field where this great army assembled was called, from the solemn pledge given by the nobles and the soldiery, *El campo de la verdad*; or, The field of Truth; a name, says the sage chronicler Abul Cassim, which it bears even to the present day.

The hopes of Andalusia revived, as this mighty host stretched in lengthened lines along its fertile plains; from morning until night it continued to pour along, with sound of drum and trumpet; it was led on by the proudest nobles and bravest cavaliers of the land, and, had it possessed arms and discipline, might have undertaken the conquest of the world.

After a few days' march, Don Roderick arrived in sight of the Moslem army, encamped on the banks of the Guadalete, where that beautiful stream winds through the fertile land of Xeres. The infidel host was far inferior in number to the Christians; but then it was composed of hardy and dexterous troops, seasoned to war, and admirably armed. The camp shone gloriously in the setting sun, and resounded with the clash of cymbal, the note of the

trumpet, and the neighing of fiery Arabian steeds. There were swarthy troops from every nation of the African coast, together with legions from Syria and Egypt, while the light Bedouins were careering about the adjacent plain. What grieved and incensed the spirits of the Christian warriors, however, was to behold, a little apart from the Moslem host, an encampment of Spanish cavaliers, with the banner of Count Julian waving above their tents. They were ten thousand in number, valiant and hardy men, the most experienced of Spanish soldiery, most of them having served in the African wars; they were well armed and appointed also, with the weapons of which the count had beguiled his sovereign; and it was a grievous sight to behold such good soldiers arrayed against their country and their faith.

The Christians pitched their tents about the hour of vespers, at a short league distant from the enemy, and remained gazing with anxiety and awe upon this barbaric host that had caused such terror and desolation in the land: for the first sight of a hostile encampment in a country disused to war, is terrible to the newly enlisted soldier. A marvellous occurrence is recorded by the Arabian chroniclers as having taken place in the Christian camp; but discreet Spanish writers relate it with much modification, and consider it a stratagem of the wily Bishop Oppas, to sound the loyalty of the Christian cavaliers.

As several leaders of the army were seated with the bishop in his tent, conversing on the dubious fortunes of the approaching contest, an ancient pilgrim appeared at the entrance. He was bowed down with years, his snowy beard descended to his girdle, and he supported his tottering steps with a palmer's staff. The cavaliers rose and received him with great reverence as he advanced within the tent. Holding up his withered hand, 'Wo, wo to Spain!' exclaimed he, 'for the vial of the wrath of heaven is about to be poured out. Listen, warriors, and take warning. Four months since, having performed my pilgrimage to the sepulchre of our Lord in Palestine, I was on my return toward my native land. Wearied and wayworn, I lay down one night to sleep beneath a palm tree, by the side of a fountain, when I was awakened by a voice saying unto me, in soft accents, 'Son of sorrow, why sleepest thou?' I opened my eyes, and beheld one of a fair and beauteous countenance, in shining apparel and with glorious wings,

standing by the fountain; and I said, 'Who art thou who callest upon me in this deep hour of the night?'

"Fear not," replied the stranger, 'I am an angel from heaven, sent to reveal unto thee the fate of thy country. Behold the sins of Roderick have come up before God, and his anger is kindled against him, and he has given him up to be invaded and destroyed. Hasten then to Spain, and seek the camp of thy countrymen. Warn them that such only shall be saved as shall abandon Roderick; but those who adhere to him shall share his punishment, and shall fall under the sword of the invader."

The pilgrim ceased, and passed forth from the tent; certain of the cavaliers followed him to detain him, that they might converse further with him about these matters, but he was no where to be found. The sentinel before the tent said, 'I saw no one come forth, but it was as if a blast of wind passed by me, and there was a rustling as of dry leaves.'

The cavaliers remained looking upon each other with astonishment. The Bishop Oppas sat with his eyes fixed upon the ground, and shadowed by his overhanging brow. At length, breaking silence, in a low and faltering voice, 'Doubtless,' said he, 'this message is from God; and since he has taken compassion upon us, and given us notice of his impending judgment, it behooves us to hold grave council, and determine how best we may accomplish his will and avert his displeasure.'

The chiefs still remained silent, as men confounded. Among them was a veteran noble named Pelistes. He had distinguished himself in the African wars, fighting side by side with Count Julian, but the latter had never dared to tamper with his faith, for he knew his stern integrity. Pelistes had brought with him to the camp his only son, who had never drawn a sword except in tourney. When the young man saw that the veterans held their peace, the blood mantled in his cheek, and, overcoming his modesty, he broke forth with a generous warmth: 'I know not, cavaliers,' said he, 'what is passing in your minds, but I believe this pilgrim to be an envoy from the devil; for none else could have given such dastard and perfidious counsel. For my own part, I stand ready to defend my king, my country, and my faith. I know no higher duty than this, and if God thinks fit to strike me dead in the performance of it, his sovereign will be done!'

When the young man had risen to speak, his father had fixed his eyes upon him with a grave and stern demeanor, leaning upon a two-handed sword. As soon as the youth had finished, Pelistes embraced him with a father's fondness. 'Thou hast spoken well, my son,' said he; 'if I held my peace at the counsel of this losel pilgrim, it was but to hear thy opinion, and to learn whether thou wert worthy of thy lineage and of the training I had given thee. Hadst thou counselled otherwise than thou hast done, hadst thou shown thyself craven and disloyal, so help me God, I would have struck off thy head with this weapon which I hold in my hand. But thou hast counselled like a loyal and a Christian knight, and I thank God for having given me a son worthy to perpetuate the honors of my line. As to this pilgrim, be he saint or be he devil, I care not; this much I promise, that if I am to die in defence of my country and my king, my life shall be a costly purchase to the foe. Let each man make the same resolve, and I trust we shall yet prove the pilgrim a lying prophet.' The words of Pelistes roused the spirits of many of the cavaliers; others, however, remained full of anxious foreboding, and when this fearful prophecy was rumored about the camp, as it presently was by the emissaries of the bishop, it spread awe and dismay among the soldiery.

On the following day, the two armies remained regarding each other with wary but menacing aspect. About noontide, King Roderick sent forth a chosen force of five hundred horse and two hundred foot, the best armed of his host, to skirmish with the enemy, that, by gaining some partial advantage, they might raise the spirits of the army. They were led on by Theodomir, the same Gothic noble who had signalled himself by first opposing the invasion of the Moslems.

The Christian squadrons paraded with flying pennons in the valley which lay between the armies. The Arabs were not slow in answering their defiance. A large body of horsemen sallied forth to the encounter, together with three hundred of the followers of Count Julian. There was hot skirmishing about the field, and on the banks of the river; many gallant feats were displayed on either side, and many valiant warriors were slain. As the night closed in, the trumpets from either camp summoned the troops to retire from the combat. In this day's action the Christians suffered greatly in the loss of their distinguished cavaliers; for it is the noblest spirits who venture most, and lay themselves open to danger; and the Moslem soldiers

had instructions to single out the leaders of the adverse host. All this is said to have been devised by the perfidious Bishop Oppas, who had secret communications with the enemy, while he influenced the councils of the king; and who trusted that by this skirmishing warfare the power of the Christian troops would be cut off, and the rest disheartened.

On the following morning, a larger force was ordered out to skirmish, and such of the soldiery as were unarmed were commanded to stand ready to seize the horses and strip off the armor of the killed and wounded. Among the most illustrious of the warriors who fought that day was Pelistes, the Gothic noble who had sternly checked the tongue of the Bishop Oppas. He led to the field a large body of his own vassals and retainers, and of cavaliers trained up in his house, who had followed him to the wars in Africa, and who looked up to him more as a father than a chieftain. Beside him was his only son, who now for the first time was fleshing his sword in battle. The conflict that day was more general and bloody than the day preceding; the slaughter of the Christian warriors was immense, from their lack of defensive armour; and as nothing could prevent the flower of the Gothic chivalry from spurring to the combat, the field was strewn with the bodies of the youthful nobles. None suffered more, however, than the warriors of Pelistes. Their leader himself was bold and hardy, and prone to expose himself to danger; but years and experience had moderated his early fire; his son, however, was eager to distinguish himself in this, his first essay, and rushed with impetuous ardor into the hottest of the battle. In vain his father called to caution him; he was ever in the advance, and seemed unconscious of the perils that surrounded him. The cavaliers and vassals of his father followed him with devoted zeal, and many of them paid for their loyalty with their lives. When the trumpet sounded in the evening for retreat, the troops of Pelistes were the last to reach the camp. They came slowly and mournfully, and much decreased in number. Their veteran commander was seated on his war-horse, but the blood trickled from the greaves of his armour. His valiant son was borne on the shields of his vassals; when they laid him on the earth near to where the king was standing, they found that the heroic youth had expired of his wounds. The cavaliers surrounded the body and gave utterance to their grief; but the father restrained his agony, and looked on with the stern resignation of a soldier.

Don Roderick surveyed the field of battle with a rueful eye, for it was covered with the mangled bodies of his most illustrious warriors; he saw, too, with anxiety, that the common people, unused to war, and unsustained by discipline, were harassed by incessant toils and dangers, and were cooling in their zeal and courage.

The crafty Bishop Oppas marked the internal trouble of the king, and thought a favorable moment had arrived to sway him to his purpose. He called to his mind the various portents and prophecies which had forerun their present danger. 'Let not my lord the king,' said he, 'make light of these mysterious revelations, which appear to be so disastrously fulfilling. The hand of Heaven appears to be against us. Destruction is impending over our heads. Our troops are rude and unskilful, but slightly armed, and much cast down in spirit. Better is it that we should make a treaty with the enemy, and, by granting part of his demands, prevent the utter ruin of our country. If such counsel be acceptable to my lord the king, I stand ready to depart upon an embassy to the Moslem camp.'

Upon hearing these words, Pelistes, who had stood in mournful silence, regarding the dead body of his son, burst forth with honest indignation. 'By this good sword,' said he, 'the man who yields such dastard counsel deserves death from the hand of his countrymen rather than from the foe; and, were it not for the presence of the king, may I forfeit salvation if I would not strike him dead upon the spot.'

The bishop turned an eye of venom upon Pelistes. 'My lord,' said he, 'I too, bear a weapon, and know how to wield it. Were the king not present you would not dare to menace, nor should you advance one step without my hastening to meet you.'

The king interposed between the jarring nobles, and rebuked the impetuosity of Pelistes, but at the same time rejected the counsel of the bishop. 'The event of this conflict,' said he, 'is in the hand of God; but never shall my sword return to its scabbard while an infidel invader remains within the land.'

He then held a council with his captains, and it was determined to offer the enemy general battle on the following day. A herald was despatched defying Taric ben Zeyad to the contest, and the defiance was gladly accepted by the

Moslem chieftain. Don Roderick then formed the plan of action, and assigned to each commander his several station, after which he dismissed his officers, and each one sought his tent, to prepare by diligence or repose for the next day's eventful contest.

Taric ben Zeyad had been surprised by the valor of the Christian cavaliers in the recent battles, and at the number and apparent devotion of the troops which accompanied the king to the field. The confident defiance of Don Roderick increased his surprise. When the herald had retired, he turned an eye of suspicion on Count Julian. 'Thou hast represented thy countrymen,' said he, 'as sunk in effeminacy and lost to all generous impulse: yet I find them fighting with the courage and the strength of lions. Thou hast represented thy king as detested by his subjects, and surrounded by secret treason, but I behold his tents whitening the hills and dales, while thousands are hourly flocking to his standard. Wo unto thee if thou hast dealt deceitfully with us, or betrayed us with guileful words.'

Don Julian retired to his tent in great trouble of mind, and fear came upon him that the Bishop Oppas might play him false; for it is the lot of traitors ever to distrust each other. He called to him the same page who had brought him the letter from Florinda, revealing the story of her dishonor.

'Thou knowest, my trusty page,' said he, 'that I have reared thee in my household, and cherished thee above all thy companions. If thou hast loyalty and affection for thy lord, now is the time to serve him. Hie thee to the Christian camp, and find thy way to the tent of the Bishop Oppas. If any one ask thee who thou art, tell them thou art of the household of the bishop, and bearer of missives from Cordova. When thou art admitted to the presence of the bishop, show him this ring, and he will commune with thee in secret. Then tell him Count Julian greets him as a brother, and demands how the wrongs of his daughter Florinda are to be redressed. Mark well his reply, and bring it word for word. Have thy lips closed, but thine eyes and ears open; and observe every thing of note in the camp of the king. So speed thee on thy errand—away, away!'

The page hastened to saddle a Barbary steed, fleet as the wind, and of a jet black color, so as not to be easily discernible in the night. He girded on a sword and dagger, slung an Arab bow with a quiver of arrows at his side,

and a buckler at his shoulder. Issuing out of the camp, he sought the banks of the Guadalete, and proceeded silently along its stream, which reflected the distant fires of the Christian camp. As he passed by the place which had been the scene of the recent conflict, he heard, from time to time, the groan of some expiring warrior who had crawled among the reeds on the margin of the river; and sometimes his steed stepped cautiously over the mangled bodies of the slain. The young page was unused to the sights of war, and his heart beat quick within him. He was hailed by the sentinels as he approached the Christian camp, and, on giving the reply taught him by Count Julian, was conducted to the tent of the Bishop Oppas.

The bishop had not yet retired to his couch. When he beheld the ring of Count Julian, and heard the words of his message, he saw that the page was one in whom he might confide. 'Hasten back to thy lord,' said he, 'and tell him to have faith in me, and all shall go well. As yet I have kept my troops out of the combat. They are all fresh, well armed, and well appointed. The king has confided to myself, aided by the princes Evan and Siseburto, the command of a wing of the army. To-morrow, at the hour of noon, when both armies are in the heat of action, we will pass over with our forces to the Moslems. But I claim the compact made with Taric ben Zeyad, that my nephews be placed in dominion over Spain, and tributary only to the Caliph of Damascus.' With this traitorous message the page departed. He led his black steed by the bridle to present less mark for observation, as he went stumbling along near the expiring fires of the camp. On passing the last outpost, when the guards were half slumbering on their arms, he was overheard and summoned, but leaped lightly into the saddle and put spurs to his steed. An arrow whistled by his ear and two more stuck in the target which he had thrown upon his back. The clatter of swift hoofs echoed behind him, but he had learnt of the Arabs to fight and fly. Plucking a shaft from his quiver, and turning and rising in the stirrups as his courser galloped at full speed, he drew the arrow to the head and launched it at his pursuer. The twang of the bow-string was followed by the crash of armour, and a deep groan, as the horseman tumbled to the earth. The page pursued his course with further molestation, and arrived at the Moslem camp before the break of day.

A light had burned throughout the night in the tent of the king, and anxious thoughts and dismal visions troubled his repose. If he fell into a slumber, he

beheld in his dreams the shadowy phantoms of the necromantic tower, or the injured Florinda, pale and dishevelled, imprecating the vengeance of Heaven upon his head. In the mid-watches of the night, when all was silent except the footstep of the sentinel, pacing before his tent, the king rose from his couch, and walking forth looked thoughtfully upon the martial scene before him. The pale crescent of the moon hung over the Moorish camp, and dimly lighted up the windings of the Guadalete. The heart of the king was heavy and oppressed; but he felt only for himself, says Antonio Agapida, he thought nothing of the perils impending over the thousands of devoted subjects in the camp below him; sleeping, as it were, on the margin of their graves. The faint clatter of distant hoofs, as if in rapid flight, reached the monarch's ear, but the horsemen were not to be descried. At that very hour, and along the shadowy banks of that river, here and there gleaming with the scanty moonlight, passed the fugitive messenger of Count Julian, with the plan of the next day's treason.

The day had not yet dawned, when the sleepless and impatient monarch summoned his attendants and arrayed himself for the field. He then sent for the venerable Bishop Urbino, who had accompanied him to the camp, and, laying aside his regal crown, he knelt with head uncovered, and confessed his sins before the holy man. After this a solemn mass was performed in the royal tent, and the eucharist administered to the monarch. When these ceremonies were concluded, he besought the archbishop to depart forthwith for Cordova, there to await the issue of the battle, and to be ready to bring forward reinforcements and supplies. The archbishop saddled his mule and departed just as the faint blush of morning began to kindle in the east. Already the camp resounded with the thrilling call of the trumpet, the clank of armor, and the tramp and neigh of steeds. As the archbishop passed through the camp, he looked with a compassionate heart on this vast multitude, of whom so many were soon to perish. The warriors pressed to kiss his hand, and many a cavalier full of youth and fire received his benediction, who was to lie stiff and cold before the evening.

When the troops were marshalled for the field, Don Roderick prepared to sally forth in the state and pomp with which the Gothic kings were wont to go to battle. He was arrayed in robes of gold brocade; his sandals were embroidered with pearls and diamonds; he had a sceptre in his hand, and he wore a regal crown resplendent with inestimable jewels. Thus gorgeously

apparelled, he ascended a lofty chariot of ivory, the axle-trees of which were of silver, and the wheels and pole covered with plates of burnished gold. Above his head was a canopy of cloth of gold embossed with armorial devices, and studded with precious stones. This sumptuous chariot was drawn by milk-white horses, with caparisons of crimson velvet, embroidered with pearls. A thousand youthful cavaliers surrounded the car; all of the noblest blood and bravest spirit; all knighted by the king's own hand, and sworn to defend him to the last.

When Roderick issued forth in this resplendent state, says an Arabian writer, surrounded by his guards in gilded armour and waving plumes and scarfs and surcoats of a thousand dyes, it was as if the sun were emerging in the dazzling chariot of the day from amidst the glorious clouds of morning.

As the royal car rolled along in front of the squadrons, the soldiers shouted with admiration. Don Roderick waved his sceptre, and addressed them from his lofty throne, reminding them of the horror and desolation which had already been spread through the land by the invaders. He called upon them to summon up the ancient valor of their race, and avenge the blood of their brethren. 'One day of glorious fighting,' said he, 'and this infidel horde will be driven into the sea, or will perish beneath your swords. Forward bravely to the fight; your families are behind you praying for your success; the invaders of your country are before you; God is above to bless his holy cause, and your king leads you to the field.' The army shouted with one accord, 'Forward to the foe, and death be his portion who shuns the encounter!'

The rising sun began to shine along the glistening waters of the Guadalete as the Moorish army, squadron after squadron, came sweeping down a gentle declivity to the sound of martial music. Their turbans and robes, of various dyes and fashions, gave a splendid appearance to their host; as they marched, a cloud of dust arose and partly hid them from the sight, but still there would break forth flashes of steel and gleams of burnished gold, like rays of vivid lightning, while the sound of drum and trumpet, and the clash of Moorish cymbal, were as the warlike thunder within that stormy cloud of battle.

As the armies drew near each other the sun disappeared among gathering clouds, and the gloom of the day was increased by the columns of dust which rose from either host. At length the trumpet sounded for the encounter. The battle commenced with showers of arrows, stones, and javelins. The Christian foot-soldiers fought to disadvantage, the greater part being destitute of helm or buckler. A battalion of light Arabian horsemen, led by a Greek renegado named Magued el Rumi, careered in front of the Christian line, launching their darts, and then wheeling off beyond the reach of the missiles hurled after them. Theodomir now brought up his seasoned troops into the action, seconded by the veteran Pelistes, and in a little while the battle became furious and promiscuous. It was glorious to behold the old Gothic valor shining forth in this hour of fearful trial. Wherever the Moslems fell, the Christians rushed forward, seized upon their horses, and stripped them of their armour and their weapons. They fought desperately and successfully, for they fought for their country and their faith. The battle raged for several hours; the field was strown with slain, and the Moors, overcome by the multitude and fury of their foes, began to falter.

When Taric beheld his troops retreating before the enemy, he threw himself before them, and, rising in his stirrups, ‘Oh, Moslems! conquerors of Africa!’ cried he, whither would you fly? The sea is behind you, the enemy before; you have no hope but in your valor and the help of God. Do as I do and the day is ours!’

With these words he put spurs to his horse and sprang among the enemy, striking to right and left, cutting down and destroying, while his steed, fierce as himself, trampled upon the foot soldiers and tore them with his teeth. At this moment a mighty shout arose in various parts of the field; the noontide hour had arrived. The Bishop Oppas with the two princes, who had hitherto kept their bands out of the fight, suddenly went over to the enemy, and turned their weapons upon their astonished countrymen. From that moment the fortune of the day was changed, and the field of battle became a scene of wild confusion and bloody massacre. The Christians knew not whom to contend with, or whom to trust. It seemed as if madness had seized upon their friends and kinsmen, and that their worst enemies were among themselves.

The courage of Don Roderick rose with his danger. Throwing off the cumbrous robes of royalty, and descending from his car, he sprang upon his steed Orelia, grasped his lance and buckler, and endeavored to rally his retreating troops. He was surrounded and assailed by a multitude of his own traitorous subjects, but defended himself with wondrous prowess. The enemy thickened around him; his loyal band of cavaliers were slain, bravely fighting in his defence; the last that was seen of the king was in the midst of the enemy, dealing death at every blow.

A complete panic fell upon the Christians; they threw away their arms and fled in all directions. They were pursued with dreadful slaughter, until the darkness of the night rendered it impossible to distinguish friend from foe. Taric then called off his troops from the pursuit, and took possession of the royal camp; and the couch which had been pressed so uneasily on the preceding night by Don Roderick, now yielded sound repose to his conqueror.

On the morning after the battle, the Arab leader, Taric ben Zeyad, rode over the bloody field of the Gaudalete, strewn with the ruins of those splendid armies, which had so lately passed like glorious pageants along the river banks. There Moor and Christian, horseman and horse, lay gashed with hideous wounds; and the river, still red with blood, was filled with the bodies of the slain. The gaunt Arab was as a wolf roaming through the fold he had laid waste. On every side his eye revelled on the ruin of the country, on the wrecks of haughty Spain. There lay the flower of her youthful chivalry, mangled and destroyed, and the strength of her yeomanry prostrated in the dust. The Gothic noble lay confounded with his vassals; the peasant with the prince; all ranks and dignities were mingled in one bloody massacre.

When Taric had surveyed the field, he caused the spoils of the dead and the plunder of the camp to be brought before him. The booty was immense. There were massy chains, and rare jewels of gold; pearls and precious stones; rich silks and brocades, and all other luxurious decorations in which the Gothic nobles had indulged in the latter times of their degeneracy. A vast amount of treasure was likewise found, which had been brought by Roderick for the expenses of the war.

Taric then ordered that the bodies of the Moslem warriors should be interred; as for those of the Christians, they were gathered in heaps, and vast pyres of wood were formed, on which they were consumed. The flames of these pyres rose high in the air, and were seen afar off in the night; and when the Christians beheld them from the neighboring hills they beat their breasts and tore their hair, and lamented over them as over the funeral fires of their country. The carnage of that battle infected the air for two whole months, and bones were seen lying in heaps upon the field for more than forty years; nay, when ages had past and gone, the husbandman, turning up the soil, would still find fragments of Gothic cuirasses and helms, and Moorish scimitars, the relics of that dreadful fight.

For three days the Arabian horseman pursued the flying Christians, hunting them over the face of the country; so that but a scanty number of that mighty host escaped to tell the tale of their disaster.

Taric ben Zeyad considered his victory incomplete so long as the Gothic monarch survived; he proclaimed great rewards, therefore, to whomsoever should bring Roderick to him, dead or alive. A diligent search was accordingly made in every direction, but for a long time in vain; at length a soldier brought to Taric the head of a Christian warrior, on which was a cap decorated with feathers and precious stones. The Arab leader received it as the head of the unfortunate Roderick, and sent it, as a trophy of his victory, to Musa ben Nosier, who, in like manner, transmitted it to the caliph at Damascus. The Spanish historians, however, have always denied its identity.

A mystery has ever hung and ever must continue to hang, over the fate of King Roderick, in that dark and doleful day of Spain. Whether he went down amidst the storm of battle, and atoned for his sins and errors by a patriot grave, or whether he survived to repent of them in hermit exile, must remain matter of conjecture and dispute. The learned Archbishop Rodrigo, who has recorded the events of this disastrous field, affirms that Roderick fell beneath the vengeful blade of the traitor Julian, and thus expiated with his blood his crime against the hapless Florinda; but the archbishop stands alone in his record of the fact. It seems generally admitted that Orelia, the favorite war-horse of Don Roderick, was found entangled in a marsh on the borders of the Gaudalete, with the sandals and mantle and royal insignia of

the king lying close by him. The river at this place ran broad and deep, and was encumbered with the dead bodies of warriors and steeds; it has been supposed therefore, that he perished in the stream; but his body was not found within its waters.

When several years had passed away, and men's minds, being restored to some degree of tranquillity, began to occupy themselves about the events of this dismal day, a rumor arose that Roderick had escaped from the carnage on the banks of the Gaudalete, and was still alive. It was said, that having from a rising ground caught a view of the whole field of battle, and seen that the day was lost, and his army flying in all directions, he likewise sought his safety in flight. It is added, that the Arab horsemen, while scouring the mountain in quest of fugitives, found a shepherd arrayed in the royal robes, and brought him before the conqueror, believing him to be the king himself. Count Julian soon dispelled the error. On being questioned, the trembling rustic declared that while tending his sheep in the folds of the mountains, there came a cavalier on a horse wearied and spent and ready to sink beneath the spur; that the cavalier with an authoritative voice and menacing air commanded him to exchange garments with him, and clad himself in his rude garb of sheep-skin, and took his crook and his scrip of provisions, and continued up the rugged defiles of the mountains leading towards Castile, until he was lost to view.

This tradition was fondly cherished by many, who clung to the belief in the existence of their monarch as their main hope for the redemption of Spain. It was even affirmed that he had taken refuge with many of his host, in an island of the 'Ocean sea,' from whence he might yet return, once more to elevate his standard, and battle for the recovery of his throne.

Year after year, however, elapsed and nothing was heard of Don Roderick; yet, like Sebastian of Portugal, and Arthur of England, his name continued to be a rallying point for popular faith, and the mystery of his end to give rise to romantic fables. At length, when generation after generation had sunk into the grave, and near two centuries had passed and gone, traces were said to be discovered that threw a light on the final fortunes of the unfortunate Roderick. At that time, Don Alphonso the Great, King of Leon, had wrested the city of Viseo in Lusitania from the hands of the Moslems. As his soldiers were ranging about the city and its environs, one of them

discovered in a field, outside of the walls, a small chapel or hermitage, with a sepulchre in front, on which was inscribed this epitaph in Gothic characters:

HIC REQUIESCIT RUDERICUS,
ULTIMUS REX GOTHORUM.

HERE LIES RODERICK,
THE LAST KING OF THE GOTHs.

It has been believed by many that this was the veritable tomb of the monarch, and that in this hermitage he had finished his days in solitary penance. The warrior, as he contemplated the supposed tomb of the once haughty Roderick, forgot all his faults and errors, and shed a soldier's tear over his memory; but when his thoughts turned to Count Julian, his patriotic indignation broke forth, and with his dagger he inscribed a rude malediction on the stone.

'Accursed,' said he, 'be the impious and headlong vengeance of the traitor Julian. He was a murderer of his king; a destroyer of his kindred; a betrayer of his country. May his name be bitter in every mouth, and his memory infamous to all generations.'

Here ends the legend of Don Roderick.

L I N E S

WRITTEN UNDER A PORTRAIT OF JUPITER AND DANAE.

FAIR maid of Argos! dry thy tears, nor shun
The bright embrace of Saturn's amorous son.
Pour'd from high Heaven athwart thy brazen tower,
Jove bends propitious in a glittering shower:
Take, gladly take, the boon the Fates impart;
Press the gilt treasure to thy panting heart:
And to thy venal sex this truth unfold,
How few, like Danae, grasp both god and gold.

J. SMITH.

THE DOG-STAR SPIRIT.

SUGGESTED BY CERTAIN PAPERS ENTITLED 'MIND AND INSTINCT,' IN THE
KNICKERBOCKER.

CALM be thy slumbers, faithful TRAY,
Calm in thy bed
Low-gathered underneath the clay,
Where they have laid thy bones away,
And left thee—dead!

No common dog, dear TRAY, wert thou
In life's short age;
For *instinct* shone upon thy brow,
And something in thy deep bow-wow
Proclaimed the sage.

When ugly curs at evening made
Their hideous wail,
Mutely thy musing eye surveyed
Bright themes for thought around displayed,
Perched on thy tail.

Oft have I seen thy vision turned
Up to the skies,
Where thy intelligence discerned
In all the little stars that burned,

Strange mysteries.

And then, thy keen glance fixed on one
That glimmered far;
'If souls of men live when they're gone,'
Thou thought'st, 'why not of dogs when flown,
In yonder star?

'Though diverse in our natures, yet
It don't ensue
That other judgment we should meet,
Because we muster four good feet
Instead of two.

'And if in some light, wanton freak
Of Nature's mind,
She planted hair upon our back,
And, in capricious mood, did tack
A tail behind:

'It matters not. That coat of hair
Is very thin;
But the habiliment we wear
To warm the heart from wintry air,
We have within.

'Ah, no! what selfish man would have
For *him* alone,
To us a title Nature gave:
We too shall live beyond the grave,
When we are gone.'

Now, when at twilight's solemn hour,
O'er field and lea,
I see the dog-star gently pour
Its beamy light—a golden shower—
I think of thee!

And well, I wot, thy spacious mind,
 With journey brief,
Hath mounted like a breath of wind;
And thou art in that orb enshrined,
 A thing of life.

Then peace be with thine ashes, TRAY,
 In their long rest:
Faithful wert thou in thy short day;
And now, that thou art passed away,
 I know thou'rt blest.

Pittsburgh, March, 1844. SANCHO.

A DREAM.

This accident is not unlike my dream; belief of it
Oppresses me already. OTHELLO.

UPON a certain clear and starry night of unbroken tranquility and peace, in the month of September, in the year of Grace one thousand eight hundred thirty and two; I, JOHN WATERS of man's Estate, Gentleman, dreamed a Dream. And lest I might be forced, like the great Babylonian monarch of yore, to say 'the thing is gone from me,' I resolved while a vague remembrance yet rested in my thoughts, to record if possible some lasting memorial of it.

Now, more than one half of the average number of years, assigned by computation to a generation of our race, have, since that point of time, rolled into the rearward hemisphere of Eternity; trials and changes, deep and stern and manifold, have rent and desolated this *house not made with hands*, and have exercised and broken the spirit that is supposed to be contained within it; yet the slight memorandum, written at that time, lies unchanged before me, and gives evidence of the comparatively impassible duration of inert matter over man; whose home, and whose abiding-place is not of earth!

It is not that I can hope to describe my sensations of that night, in such a manner as to impart them to the contemplative spirit that may read this sketch, and to afford pleasure at all comparable with that which I enjoyed; but I have thought that I might by the recital awaken some gratifying recollections of still higher flittings of the imagination into the regions of

unlimited Fancy; where the pleasure has been, as was mine, alike unbounded and pure.

In an Existence like ours, where so much is ideal; where so many things are feared, that never come to pass; hoped for, that are never realized; enjoyed, that are impalpable to sense; where that, which by common convention is called substantial and real, is very far inferior to that which is falsely termed illusory and vain; where life borders on immortality; and the spiritual world so closely overhangs the natural, that it is as difficult to separate them as it is in Switzerland to know which is Alps and which is Heaven;—there may oftentimes be much pleasure, perhaps some instruction, in a DREAM.

What should we say of dreams, if our eyes could but once have been opened upon the bright intellectual fancies, and anticipations; or upon the spiritual movements, of some of those by the side of whose supine and deserted forms it may have been our privilege to watch; but who, on waking into restored consciousness, remember not what they may have seen, or imagined, or may perhaps have accomplished, in their sleep?

How often, within the compass of our own minds, do we not find thoughts and images that spring from sources that we cannot trace! Have we not more than once been called upon to perform some act of life, important to ourselves, or perchance to others; or been in some incidental circle of friends, or of persons who were strangers until then; or walked upon some lonely path in Europe—all for the first time as we suppose, and yet have we not had it irresistibly borne in upon our minds, that we have done all this before! signed the same paper in the same presence! heard the same voices speak the same words! noticed the same faces in the same positions! or recognized the mountains perhaps, and the trees, the landscape, the rocks, the very brook, as acquaintances of old; although the broad Atlantic had never yet been crossed by us before—except in spirit!

Did you never in the day or night dream yourself to be upon some lofty overhanging precipice? did you never in imagination look down over its extreme verge upon the dark coast that skirts the foot of it, so far below you that you only distinguish the Rocks themselves by the white foam of the blue wave that breaks over them? Did you never hold by a bush while you were bending over this awful verge, listening to the low roar of the deep

and distant waters, and perceive the Eagle itself soaring mid-way only up the cliff—and while you grew chill with the thoughts of depth, and danger, and distance from relief, did you never feel the bush give way and the gravel slide from beneath you, and the whole mass come thundering down from earth to ocean?

One throb is given to madness and in the next you wake and find the body in security although perhaps in pain. Have you been in actual danger? do you believe that you have been? If not, why do you immediately pray to God and bless Him at such moments for his protection and care of you? Is it not that while the body has been quiescent, the excursive Soul has been in spiritual presence on the edge of that beetling and stupendous height?

Suppose, as the mother sits beside the small bed, drinking with her eyes that draught of ecstatic pleasure which only Woman's heart can taste, she could perceive the spirit of her boy, rising from the body that it leaves behind in roseate sleep, a thousand times more beautiful than it and yet the same; and still her own; and taking upon himself, as of his proper right, the grace and charm of 'a young and rose-lipped cherub,' should chase, (and all within her sight,) the rainbow-butterflies of Paradise across its swards of velvet, and laugh in music to express his joy!

Suppose that to the husband it should be given to behold his Wife—the pure in heart!—walking like a seraph in the Spiritual Life, as the earliest light of morning moves along the hill-tops; her countenance 'beautified with salvation' and joy unfolding itself at her approach: he sees and follows her as she enters into grottoes of shells, compared with which all flowers of Earth are mere attempts at colour! She listens to choirs of angels, joining worthily with them in the celestial chaunt! and when the hearts of both are elevated by the anthem strain, she kneels in solitude and prays for him in words that rise to Heaven, a grateful and accepted incense!

Regard in silence those features of the young and beautiful upon the bed of slow consuming death; with what a grace do they not awake from the momentary trance of sleep! thoughts, not given to be revealed, have been garnered by that precious spirit as it hath soared upward toward the Heaven that is now bending with a summons unto everlasting Life! How gently yet how touchingly do not its glances and its last regrets pass through the

diaphanous covering that remains to it of mortality, upon the friend who gazes in equal love and wonder at its side! how like the light within the vase! how sublimated the expression! how intent, how occupied that long look! how effulgent that passage of hope! how intimate, how exalted must have been the communion, when gleams of Faith and Joy, too beautiful for utterance, indicate the redeemed soul just fluttering to ascend in 'robes made white in the blood of the Lamb!'

Are not these and such as these, imaginations, communions, capacities, employments of the soul in Dreams? Ah! if what is called the Sleep of Death be mysterious, be awful, be sublime, be beautiful at times; how much more so,—when the form lies waiting to be revived by the quick return of the excursive spirit,—how much more so is the Sleep of Life!

I was lying in my bed, in a deep delicious repose, in my own bed, without either care, or cold, or gout, to molest me even in my dreams; I had been occupied during the evening with some elementary algebraical processes in the company of my dear son who was to prepare them for examination at school on the following day and who had succeeded in arriving at correct results, had copied off his work, and packed it in his satchel for the morning.

Methought, while I slept, my son and I stood together hand in hand in the Church where we were accustomed to worship. We were very near the altar, but with our faces directed toward the organ and front gallery. There is in my mind some recollection of another person, I believe our Rector, near us but a little behind us.

Presently the surface of the gallery extended itself in breadth and height, so greatly as to cover the entire organ-loft with its increased plane, and it became an immense practising-board, such as, upon a small scale, teachers of mathematics use to resolve problems upon for the instruction of a class, and it immediately assumed the deep slate-coloured hue that such boards are frequently painted.

And now there arranged themselves upon this board, in white characters, problem after problem in Equation; the Rule in which we had been exercising. I cannot describe the celerity with which these problems were stated upon the board, and worked out to the intense gratification of my son

and myself; the most difficult and apparently unequal quantities being with the rapidity of thought interchanged neutralized reduced and determined, so that what seemed at the outset extremely involved, became lucid as day, and the unknown quantities made specific to our perfect satisfaction in an instant of time.

We were delighted with the lesson. I felt the hand of my son gently pressing mine, as he was accustomed to do when he would evince his satisfaction at any thing we examined successfully together; and we agreed with each other to cherish the recollection of these elucidations for future practice.

Turning again toward the board, we found it entirely freed from any trace of what had been wrought upon it. And now, in a manner which I have no possible means of imparting to the Reader, the good and evil of Life formed the specific and the unknown quantities that were wrought out upon the board. Problem succeeded problem, formed out of various conditions of life, with the same rapidity as those in Arabicks had been, and though vastly more complicated, with the same satisfactory result. Every variety and combination of circumstances in life seemed exhibited; positive negative neutral in a moment; until certain trials and occurrences led to certain virtues, with the same precision as in the preceding series of demonstrations x had for example been shewn to be equal to 8. Our joy was beyond expression in words; we embraced each other and I well remember saying, 'My dear Hal, this is Truth; positive Truth; moral, but as certain and as irrefragible, as any mathematical Truth is or ever can be shewn to be.'

We turned again toward the Board, and another course altogether of demonstrations passed over the surface of it, and was made scrutable to our perceptions. By one process the illimitable power of GOD was borne in upon my apprehension with a vividness of conception that I had never felt before.

By another I well remember Truth and Wisdom were shewn to be one and the same, and all Truth to proceed from and to be an attribute of GOD. By another, Infinite Justice, deduced from Infinite Power and Infinite Truth, was arrived at, as His essential and necessary quality. Again, the revealed Word of GOD as declared in the Bible was established in my mind as the irresistible result of another process; and, although several had intermediately passed over the Board, this was I think the last. The Board

faded, the figure at our side disappeared, we were out of church, and presently I awoke, and lo! it was a DREAM! But the recollection of that dream has never faded from my memory, and I trust that the influences of it may never be lost.

My mind for some time previous had been much afflicted with considerations and doubts respecting the free agency of man, and the truth of the Scriptures so far as they relate to everlasting punishment, and to the prescience of GOD. These doubts had been infused in conversation by the reasoning of an eminent lawyer. If you believe in the doctrine of everlasting punishment said he, and believe also in the prescience of GOD, and in His Omnipotence, must you not admit that GOD might prevent the sinner from entering at all into this world of probation? into this world of trial which is to prove too severe for his powers of resistance? If I know that a candle that I purpose lighting will, from any accident, or by any other hand after I shall have lighted it, be made to burn my neighbor's house; am I not in some degree participant or accessory to the consequence if I persist in the intention? Why is man to be made subject to consequences more direful to him than if he had never been born at all into this world of evil? He has had no voice in determining his mission into it, nor has his will been consulted in the creation of his spirit, nor in the qualities with which that spirit is endued; his existence also in a state of indulgence of wicked impulse, how short and limited it has been; and how frequently mingled with the disposition if not with repeated Effort toward goodness; shall he for twenty years of vice, be subjected to *everlasting* punishment? how can this consist with Divine Justice and Mercy? You say that he has had the free option of good and evil; possibly so; but he has not chosen the good, he has not adopted the course that leads to everlasting happiness, and his everlasting misery might have been prevented; why then should he have been called into being? Is not this misery ordained to him, since it is not prevented, and since it has always been apparent as the result of life to the creative power which must know, and which could prevent, and has yet determined to create?

Now these doubts were weighing on my heart when I first stood before that board; and when I had left the church, they were all removed. They had made themselves—air, into which they vanished. My hands were clasped together in pleasure at the relief; and when I awoke, a sensation, the purest

perhaps that life affords, had entire possession of my heart, my mind, my soul. It was that gentle, yet ethereal sensation—that yellow-green of the ransomed spirit—when gratitude that has never drawn a chain behind it, gratitude free as joy, gratitude beautiful as hope, melts into love toward HIM, ‘who first hath loved us!’

‘Parent of Heaven! great Master of mankind!
Where’er Thy providence directs, behold
My steps with cheerful resignation turn!
Fate leads the willing, drags the backward on.
Why should I mourn, when grieving I must bear;
Or take with guilt what, guiltless, I might share!’

JOHN WATERS.

LINES TO BLUMINE.

WHEN day gives place to sweeter night,
And twinkling stars come out on high,
Like sentinels in armor bright,
To watch amid the ebon sky;

High in the north thine eye will see
That lonely star, whose steady beam
Shall look into thy heart, and be
The phantom of thy troubled dream.

I love thee not: though once thy heart
Beat in warm answer to my own;
Like strangers we shall meet and part,
And I shall tread my way alone.

Brooklyn, L. I. HANS VON SPIEGEL.

EPISTLE TO THE EDITOR.

DEAR KNICK: Were't not for reverence due
From such as I to such as you,
I really could not choose but swear
To think that e'en a millionaire,
With piles enough of brick and stone
To make a city of his own,
And broad domains in simple fee,
Or held in pledge as mortgagee,
And scrip whose outspread folds would cover
His native Hesse-Darmstadt over;
Should have withal the hard assurance
To hold a Son of Song in durance.
Why, as I lately sauntered out
To see what Gotham was about,
Just below NIBLO'S, west southwest,
In a prosaic street at best,
I chanced upon a lodge so small,
So Lilliputian-like in all,
That Argus, hundred-eyed albeit,
Might pass a hundred times, nor see it.

Agog to see what manikin
Had shrined his household gods therein,
With step as light as tip-toe fairy's
I stole right in among the Lares.
There in the cosiest of nooks,
Up to his very eyes in books,

Sat a lone wight, nor stout nor lean,
Nor old nor young, but just between,
Poring along the figured columns
Of those most unmelodious volumes,
Intently as if there and then
He conned the fate of gods and men.
Methought that brow so full and fair
Was formed the poet's wreath to wear;
And as those eyes of azure hue,
One moment lifted, met my view,
Gay worlds of starry thoughts appeared
In their blue depths serenely sphered.
Just then the voice of one unseen,
All redolent of Hippocrene,
Stole forth so sweetly on the air,
I felt the Muse indeed was there,
And feel how much her words divine
Must lose, interpreted by mine.

For shame, it said, FITZ-GREENE, for shame!
To yield thee to inglorious thrall,
And leave the trophy of thy fame
Without its crowning capital!

The sculptor, bard, as well may trust
To shape a form for glory's shrine,
If, ceasing with the breathing bust.
He leave unwrought the brow divine.

How oft the lavish Muse has grieved.
O'er hopes thy early years inspired,
And sighed that he who much received,
Forgot that much would be required.

But not too late, if heeded yet,
The voice that chides thy mute repose,
And bids thee pay at last the debt
Thy genius to Parnassus owes.

'Tis not enough that pride may urge
Thy claims to memory's grateful lore,
And boast, as rapt from Lethe's surge,
The Suliote and the Tuscarore.

Nay, bard, thy own land's mighty dead
Deserve a nobler hymn from thee,
Than bravest of the brave that bled
At Laspi or Thermopylæ.

Remember, then, thy young renown,
Thy country's dead, thy muse's sigh;
And bid thy vigorous manhood crown
What youthful genius reared so high!

Still to his task the bard applied,
Unrecked, unheeded all beside;
And as he closed his balance-sheet,
I heard his murmuring lips repeat:
'Three hundred thousand, city rents,
Item a hundred, seven per cents,
Add cash, another hundred, say
From bonds and notes paid off this day,
And eke from drafts at sight for dues
Just credited to land accrues,
Whose rental stretches on and on
From Aroostook to Oregon;
Total, a semi-million clear
Income received for one short year!'
Aladdin's wealth scarce mounted faster
At its spring-tide than thine, Herr Astor.

W. P. P.

EARLY SPRING AT THE HOMESTEAD.

BY HANS VON SPIEGEL.

Lo! here is Spring again, the dainty goddess come back to see what Winter has been doing for so many months in forest and meadow, on the broad hillside and in the valley. The old ice-king has had a merry time of it, playing with the long branches of the graceful maiden-like elm, and wrestling with the gnarled and haughty oak. You might have heard him roaring in the depths of the woods, had you been here, venerable DEIDRICH, day and night for a sevensnight, apparently just for the sake of making a noise, and compelling the obeisance of the forest. Like any other demagogue, he gains attention by his blusterings. How lowly that young poplar bent before him, while the old hemlocks scarcely deigned a show of reverence! When you were in your youth, and the world seemed larger than now, did you not feel more of respect and awe for the *great man* than you now do? Ah! well-a-day! how little is the world's esteem worthy of care! Ambition climbs the dizzy steeps of fame; the young and inexperienced, whose admiration is not worth a straw, applaud; but the wise, for whose good-will Ambition toils, look on with indifference; for they know the emptiness of human greatness. But while we stop to moralize, the reader grows a-weary; and even thou, DEIDRICH, who art so constitutionally polite, compresseth thy labial muscles, and thumpest nervously the floor with thy gold-headed walking stick. What a pity that we cannot talk nonsense gracefully!

There, now, all this time has the damsel Spring been awaiting our commands, shivering mayhap in her scanty drapery, while we have been prating. So it is the world over. The best intentioned forget the claims of others, listening to the sweet music of their own sweet voices. DEIDRICH, you ought to be here in the country to see what Hans and Peter are doing 'at this present.'

Just back of the house, (we are at the old Homestead,) the snow has melted away, and an impatient crocus is just peeping up to get a look at the warm sun. The spruce, at whose foot it grows all the winter long, has kindly extended one of its lower branches over it, to shield it from the frost, and now straitens it up again to give the poor little plant a glimpse or two of the warm blue sky and the golden sun. And here, on the southern side of the house, the windows are thrown up, and the door of the wing swung open for the first time in four long months. There, Peter, in the side of the wing where you see the ends of two or three bricks protruding from a circular hole in the clapboards, is the nest of a pair of wrens that year after year come back to rear a new family, and chirp and chatter away the summer, when their labors have ceased. If it were a few weeks later, you might get acquainted with the comical little occupants, who are as brisk and busy as if they were not in reality great grand-parents to a whole republic of wrens. See! on the top of the wood-shed, how proudly the old rooster struts along the weather-board, enjoying the discomfiture of his wives, who have been trying for this half-hour from the corn-house steps to reach the same desirable elevation. And ever and anon he crows to answer the tumultuous cackle of the plebeian fowl in the barn-yard, with whom he never mingles, save when a hawk threatens them with common danger; and then, forgetting all his aristocracy, he seeks the same sheltering apple-tree or clump of briars in the fence-corner, where the enemy cannot penetrate. Friend Peter, just buckle on your over-shoes and come with me through the back gates which have stood open all winter to allow ingress to huge sled-loads of fire-wood. Tread carefully over the soft snow which 'slumps' at every step, and let us take a look at the barn-yard down yonder, across the way from the farm-house.

Now is there not some poetry here? That yoke of brindle-oxen standing under the dripping eaves chewing their cud; can you not see gladness in their broad faces? There is old Line-back, the cow that fifteen years ago

used to have the same corner. I wonder if she recognizes me? She is graver than the other cows; red and black, around her butt; the tuft of wool on her horns shows that she retains her old spirit, and does not allow the dainty sheep that crowd around us, to pick out the most savory portions of her hay, without asserting her rights of priority. There, flocking in the hay-loft door, over the cow-house, are the cackling multitude which we heard awhile ago. They were probably instigated to their clamor by the ‘cut-cut-ca-da-cut’ of some young hen who had laid the first egg of the season. The rest replying, no doubt, that they severally had done the same at some spring-time anterior, but now for the first time thought of mentioning so trifling a circumstance. Peter sagely opines that they are holding a tea party! Let us drop into the ‘grain-barn’ and see what Hans’ little brothers are raising such a children’s noise about. There goes Jim from the highest scaffold into the straw at the bottom of the ‘deep bay.’ Billy is just preparing to jump too; and Sid, a little more lazy, is but half up the upper ladder. Sid sees us, and without saying a word, begins to climb down again. This draws Billy’s attention, and crying ‘Hans has come home! Hans has come!’ springs off, half smothering poor Jim in his descent. There, now, Peter, after seeing me kiss my brothers, don’t accuse me of possessing a cold heart, merely because I don’t happen to love the women. What is a woman, but flesh and blood after all? Do you think those black, flashing eyes and rosy cheeks and swelling bosom, and those warm lips which breathe soft deceit the while you press them, are any thing more than ‘common clay?’ I have seen many lovely ones, yet as Byron hath it:

‘Maidens, like moths, are ever caught by glare,
And Mammon wins his way where seraphs might despair.’

I wish, friend Peter, that we could stay a fortnight to enjoy the opening of spring, but as we must wend our way eastward day after tomorrow, we will resign ourselves to fate, and make the best of it. Look down into the valley where Green Brook comes singing and bubbling out from the deep shade of the hemlocks into the open meadows! The snow has melted away from its margin, and the brown sward is smiling in the cheerful afternoon sun. There, on that tall stump, on the other side, sits a sentinel crow, while his companions are strolling about catching up dainties which the frost and snow have hid from their vision the winter long. Hurra! hurra! see over the

edge of Pine Hill come the first pigeons of the season from the warm south! Look how they rise and fall again in their easy flight, as they pass up the valley and go whirring in among the dense evergreens. I told you we should see pigeons soon, but you thought it too early. We will have sport to-morrow, if it is warm. For the present, let us see whether Hans' old fowling-piece is still safe from rust. Here it stands behind his bed-room door, dressed up like an old maid for a sailing party, all in flannels. There, Peter, is a true 'stubb-and-twist,' and the locks, although rather out of fashion, are still as elastic as ever. This Hans himself will use to-morrow; for it is an old friend and might feel hurt to be entrusted to the care of a stranger. Here, Jim, run down to Colonel Hyde's and borrow his long double-barrel; but don't tell him that pigeons have been seen, or he will want to use it himself. Get a cannister of Dupont, and half a dozen pounds of No. 4 shot. None of the fine mustard-seed or robin, but the heavy duck-shot, that will enter at twenty rods. That is the kind for pigeons, their feathers are so compact; for if you fire at them flying, you might as well toss turnip-seed at them as to shoot fine shot that will glance from their sleek feathers like drops of rain.

Here comes Jim, with the colonel's gun. Is it not a grand one? Now for cleaning the pieces, and filling the flasks and shot-belts. Look out, or you will scald your fingers with the hot water. A little more soap, and the barrels are as clean as a silver thimble. Snap! These are fine caps: put this box into your pocket, or we shall forget it. Let us look out at the sunset before tea, and then go to bed early, that we may be up in season for to-morrow's sport.

How broadly and slowly the sun sinks behind the forest! The glowing points of his diadem reach to the zenith, and the purple clouds that float around the west, dazzle the eye as they lie in contrast with the soft blue sky. How bland the air is, like that of summer! We can almost drink it.

Well, mother, I am glad to be at home again at the tea-table. Here, Peter, don't look sad now because you are not at your own home. We will go up in the summer and view Lake Erie in its beauty and vastness, and stroll along the beach, beneath the overhanging cedars and larches, and the broad-leafed chestnuts. Whose voice is that in the entry? Why, Kate, how do you do! Never mind, if you *are* married, you needn't start so. I'm an old friend, you know, and your lips are as tempting as ever! Ah! I forgot there were strangers by. Madam Von Rosenbacker: Herr von Geist, a man after my

own heart. Well, Kate, you haven't altered much from what you were when we used to pick blackberries together. Indeed, I have lost the bottle of wine; you only escaped though by three days over the six months that I limited your marriage to. You shall have the champagne, and I will come up in the summer to bring it, and will buy an indulgence from the tee-total society long enough to drink it with you. Now that she is gone, Peter, let me ask if you don't think her a glorious woman? Her large blue eyes, her soft flaxen hair and rosy cheeks, and tall graceful figure, make her 'splendid.' Peter, she was the first girl that I ever 'set my face against,' as poor POWER used to say; and now, old bachelor as I am, I envy her husband.

To bed we go, and Somnus touches our eyes with his wand of poppies. Ye gods! how sweet and soft a bed at home is, after travelling till one's bones ache with jolting stages and jarring rail-cars!

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Up! up! friend Peter; here we are abed, while daylight is glimmering through the blinds. Just put your head out here at this window and snuff the fresh spring air. Hear the roaring of Fish Creek as it comes up over the wooded hills. By no means! Don't suppose for the sixtieth part of a minute that I intend to hurry you away without breakfast; but you must step down into the kitchen, where the girl has prepared us a strong cup of coffee; as good, no doubt, as Mother Bee used to provide for our matin meal on College Hill. Here, Dancer, you must have some breakfast too.

Well, are we all ready? Powder, shot, and caps enough, and every thing in order? Eh! Peter, what are you twisting your mouth about? Ah, yes, indeed, I forgot. Here's a dozen Principles to use as occasion may offer, and especially after dinner; which is to be sent up with the rest into the sugar-bush, where we will rendezvous about one o'clock, and in the afternoon help 'sugar off.' See the sunlight on the barns yonder; how warm it looks! Look off on that hill-side, where the snow lies so deep! How like a speck of gold it shimmers to the eye! and there goes Dancer on the crust, as if he enjoyed the freshness of the air, and the warm sunlight. Let us try the crust too, and if it will bear us, we shall save time by going across lots. Here we go, with our heels crunching the glittering pavement, leaving scarcely a vestige of our tread, the frost of last night has so effectually congealed it.

Yonder across this valley which the hills prevent our seeing from the house, is the sugar-bush, sloping to the south. The canal we first crossed leads to the old mills down to the right yonder, where you see that grove of black-cherry trees, and the little house on the knoll. The mist that you see to the left, rises from the mill-dam, the monotonous hum of whose falling waters you have heard for some time. This is Furnace Creek, whose swift current harbors the most beautiful trout. That crow yonder on the dry hemlock is calling to his mate, and the speckled wood-pecker is tapping away at that old beech, that the nice insects within its decayed interior may come out to make him a breakfast. Hark! do you not hear the drum of that partridge? He is up there in that thicket of young beeches and hemlocks, on the other side of the road. As you hear the slow, measured drum which he gives at first, and which he hastens into a whirr like distant thunder, does not 'The old Man's Counsel' come fresh to your memory, and almost ringing in your ear? Ah! this is the glory of true poetry, that it clothes the commonest things with a new interest, and forever after they become objects of love, at least of meditation. Who that has read the same author's 'Lines to a Waterfowl,' does not gaze with other than a sportsman's pleasure upon even a wild duck, if it flies past him after sunset. But there goes a flock of pigeons, and here over our heads; one! two! three! more than a hundred in each! What a rushing sound their wings make! They fly too high for us just now: but wait till we get on the cleared hill yonder to the right of the sugar-bush, and we shall have rare sport as they emerge from the trees and skim along the edge of the 'clearing.'

Here we are in the sugar-bush. Are these not noble trees? For how many years have they stood thus interlocking their strong boughs like brethren! While Columbus was asking a supper for his boy at the convent door, three centuries and a half ago, these same trees were here, scarcely younger than now. Yonder is the hill we saw from the rude bridge below the mill-dam. Let us clamber over the log-fence and get into the clearing.

Well, Peter, this hill that we are on is just one mile from home, though it looks not half the distance. Is this not a glorious view? Hill and valley spread out like a map before us! The snow lies in patches upon the fields, and the sun is lighting up the tinned spire of the village church, which, as the stage passed it yesterday, you thought looked like a superannuated old man with a martin-cage upon his crooked back. There is the old homestead

looking at us through the locusts that surround it, and there are the orchards off to the right, which in a few weeks will be white with blossoms. Now, steady, my boys! Do you see that flock of pigeons? Wait till they pass us, that our shot may take effect on their backs. Whang! hack!! bang!!! What! three barrels off and only a handful of tail-feathers! How they opened as we fired, as if to let the shot go through. Hist! don't stir! Look up softly into the dry top of this hemlock, right over our heads: four, five, six! all in a huddle. I'll fetch some of them with my last barrel. Snap! fiz! confound the cap! Hold still, they see us. I've got a fresh cap on: bang! Here comes one, tumbling through the limbs on to the snow. Is he not a handsome bird; with his glossy purple breast and slender blue neck! Load quickly, and let us be ready for the next flock.

Hear them scream and coo in the wood to the right. Hear the leaves crackle down on that slope where the snow is off under those tall beeches. The ground is fairly blue with them. Softly there over the dry brush! See them turning up the leaves for beech-nuts: they are all moving this way. Down, behind this log: they are not twenty yards off. Cock both barrels; and now fire! What a stunning sound they make, like the roaring of a tornado! Look, they have settled down again on the other side of the ravine. Well, here, Peter, what do you think of the fun now?—fourteen cock pigeons and one hen, to be divided between us. This is what *I* call sport: none of your reed-birds and meadow-larks, such as cockney sportsmen frighten away from the fields of Jersey or Long-Island. Here they come again by scores. Now let us see how good a shot you are. Two cocks on the topmost branch of that old maple, full forty yards to the trunk. No, no! don't get any nearer, for they see you. Well done! Hear him thump on the leaves; and here comes the other, fluttering round and round like a shuttlecock. Ten to one that you shot him through the head. There! I told you so! His wings are not hurt, but a shot has cut away his bill. Here, Dancer, don't bite him so, but bring him here! Chick, chick, churr! Mister Red-squirrel, we'll 'give you a few,' as Jared used to say. On that knot in the green hemlock, he sits with his tail spread out over his head, for all the world like a young miss in a high-backed, old-fashioned easy-chair. Well, we wont harm him, for the sake of the associations his comical appearance awakens.

Dancer is barking down in the ravine. There he comes! as if he were crazy; he is on the track of a hare! Do you see that pair of slender ears pricked up

behind the roots of that fallen tree? Let me try my skill at a long shot. I've hit them, that's poz! No, I haven't either; for the nimble-footed thing is scudding away round the hill as safe as if I had not wasted my loading on her.

This sunken cask down here where the water wells up through the white sand, used to be the father of the cool spring water for the uses of the Homestead, and was conveyed the whole distance in 'pump-logs.' You can see the end of one, with an iron band sunk into it, sticking out of the earth. This spring, however, has been long exchanged for one on higher ground, and the wooden logs for lead pipe, half as expensive, and not half so healthy. Just pop over that chip-munk, whose head is peeping out of the ground at the foot of the maple sapling. Too cruel! Well done! you are growing compassionate all at once. Look out for your head! I declare, you escaped narrowly! That dead limb would have dispersed all your theology, had it struck your head. Well, Dancer, what are you staring at? Do you think the old tree dropped one of its limbs on purpose? Ah, ha! I see! Peter, do you see that tuft of dark moss in the crotch of that largest maple: well, I am going to shoot at it for sport, so here goes! I *thought* it was a black squirrel; how he leaps from the top boughs. Hurrah! here we go over logs and through bushes; the squirrel still ahead of us, springing from tree top to tree top. How he rattles down the dry splinters as he scratches up that dead hemlock. Now we've got him! Go round on the other side of the tree and he will dodge back this way, and I shall get a crack at him. But he don't though! He must have a hole up there. Sure enough, there is one! Let me get this old bough broken in two, and I will start him. Now be ready, and shoot him as he comes out. The old tree is hollow all the way up; it sounds as I strike like an old bass-drum. There! he's out! blaze away! Not that time did you hit him. That's better! see him hang by one leg! here he comes! 'dead as a door nail!' Thump! how he struck the ground. What a tail he has!

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And now we are at the 'boiling place.' Two strong beech crotches are driven into the ground, about twelve feet apart, and a strong pole is laid over them, some five feet from the ground. The huge back-log was the butt of that tremendous beech you see lying just at the top of the knoll. The cauldron you see is filled with the fresh sap two or three times a day, and before

filling each time, the boiling liquid is dipped out into the largest kettle alongside of it, and that in turn is emptied into a smaller one, that no time may be lost in boiling it away. Taste the syrup in this smaller kettle; it is almost molasses. Try on that 'neck-yoke' and come, let us help carry sap before dinner. The spiles you see sticking from augur-holes in every maple are made of young sumacs, which are sawed off the right length, and then the pith is punched out with a wire. The clean white-pine buckets, without bails, into which the sap drips from the spiles, are made expressly for this use, and so is that enormous hogshead where the sap is poured before it is strained for the cauldron. For the present let us to dinner. Well, Herr Peter, although our dinner was laid on a beech log, and our table-cloth nothing but a piece of coarse linen, and our knives and forks such as Adam and Eve used before us! was it not excellent! *Wie schmackt es! How smacked it!* as it passed through our devouring jaws; and how sweet was the pure spring water from the bright tin dipper! Now for a quiet smoke on the plank settle in the bough-house, while Joe and Hiram are getting ready to 'sugar off.' Here, if there comes up a storm, they sit and watch the kettles; and sometimes when the weather is clear they sit up all night. So at last you *do* love a cigar better than a meerschaum? I confess it is the same with me! How old DEIDRICH would frown, if he heard such an admission from those who boast as we do the pure *Deutschen-blut*, the true Dutch blood!

What! two o'clock so soon! They have hung the ten-pail kettle that contains the thick syrup upon a pole between two slender crotches, and have already kindled a fire. How it bubbles and 'blubbers' up, like thick hasty-pudding, with a dignified slowness that is inimitable. Now it rises to the top of the kettle and will boil over! O, you needn't turn up your nose at the slice of clean fat pork that Joe has just thrown in, for that has saved our sugar. See, it gradually subsides till it rests a third way down. You have heard that oil will still the surface of the sea; and the oily part of the pork answers the same purpose with the boiling syrup. Now it begins to granulate, swing it off. Here, drop some of it into this bucket of cold water, and then poke it out with that pine stick, while I run up on the side-hill yonder and get a pail of snow, which will cool it faster. Ha, ha, ha! you do look handsome; suppose Meeta could see you with your jaws stuck fast together with the candy, and your face looking like the head of Medusa. While you are getting over the lock-jaw, I will trail some on this snow to take home to little Sue, who

begged me to bring her back some maple candy. Now let us ride down home on the ox-sled, with the huge tin pails full of the hot syrup, which wont get half cold before it is safe in the farm-house pantry, in a half dozen well-buttered milk-pans to harden for future use.

Once more in bed after a hearty supper; and once more out of it, too, for the stage horn is blown. We must hurry or we are left; for it stops only fifteen or twenty minutes to change the mail.

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Yes, Peter, this Brookline *is* a little cleaner than Broadway.

RELIGIOUS CONTROVERSY.

BY FLACCUS.

‘Tantæ ne animis cœlestibus iræ?’ VIRGIL.

WHEN the full-throated people of the air,
Harmonious preachers of the sweets of love,
That midway range, as half at home with heaven,
Are quiring, with a heartiness of joy
That the high tide of song o’erbrims the grove,
And far adown the meadow runs to waste;
How would the soul, there floating, loathe to mark
Sudden contention; sharp, discordant screams,
From throats whose single duty is a song!

Not with less sure revolting—ah! far more!
Curdles the blood when Christian brothers strive,
And prostitute to wordy war the lips
Commissioned to dispense ‘good will to man;’
And soothe the world with spoken kindness, soft,
And full of melody as song of birds.
O, sad betrayal of the highest trust!
Heralds of peace—to blow the trump of strife:
Envoys of charity—to sow the tares

Of hatred in a soil prepared for love.

Is this a time for soldiers of the cross
To point their weapons, each at other's breast,
When the great Enemy, the common Foe,
Though baffled, unsubdued, lays ever wait
For some unguarded pass, to cheat the walls
Not all his dread artillery could breach?
How is each lunge, and ward, of tart reproof,
And bitter repartee—painful to friends—
By th' Adversary hailed with general yell
Of triumph, or derision! O, my friends!
Believe me, lines of loving charity
Dishearten enemies, encourage friends,
And woo enlistment to your ranks, more sure
Than the best weapon of the readiest wit,
Whose point is venomed with the gall of scorn.

How wiser then, forbearing bitterness
At points of polity, or shades of faith
That different show to different-seeing eyes,
To shun perplexing doctrines which th' Allwise
Has willed obscure, and imitate His life;
His, the meek Founder of our faith, who sowed
His earthly way with blessings as with seed:
Bearing, forbearing, ever rendering good;
The Counsellor, the Comforter, the Friend:
How ope soe'er His word to various sense,
His *life* is plain; and all that life was love:
Be this our guide, we cannot widely stray.

March, 1844.

THE ENGLISH STATE TRIALS.

DURING THE POPISH PLOT.

THE recent Irish State Trials seem to have been conducted on the part of the government with something of the same violence and partiality that dishonor the ancient records of Great Britain's criminal jurisprudence. The exclusion of Roman Catholics from the jury was an arbitrary and unwarrantable act; unjust in itself, disrespectful to the larger portion of the Irish people, and calculated to destroy the moral effect of the verdict, by producing the impression on the public mind that the prisoners did not have a fair trial. We would not be understood as complaining of the verdict. We do not see how, with a strict adherence to the law and to the evidence, the jury could well have decided otherwise. It is the eagerness to convict the prisoners manifested on the part of the law-officers of the crown that is the object of just reprehension.

Trials for offences against the State have happily been almost unknown in this country, and we therefore find it difficult to conceive of the dangers to which a prisoner is exposed, when the whole power of the government is arrayed against him. But to one familiar with the iniquitous manner in which they were conducted in Great Britain during the seventeenth, and the earlier part of the eighteenth century, the proceedings against O'Connell and his associates seem almost models of judicial fairness and impartiality. To one not thus familiar, it is difficult to convey an adequate idea of the extent to which legal tribunals prostituted their functions to purposes of oppression and revenge. The judges holding their offices by the slight

tenure of royal favor, and generally owing their elevation to the zeal they had shown to defend the royal prerogatives, were, with a few honorable exceptions, willing instruments in the hands of power. The interpreters of the law, who, like the prophets of old, were bound to curse, or to bless, in obedience to higher impulses than their own wills, became the mere mouth-pieces of the government; the injustice of the decisions imperfectly concealed by the sanctity of the office. Justice, and the favor of the court were identical. The law and the royal pleasure were inseparably associated in the mind of the judge.

We would not be understood as meaning that the English judges were unjust, or partial in the trials between private citizens. In these cases it was not often that there was any obstacle interposed to the administration of even-handed justice. It was when the government came in as a party; when political offenders were to be tried, that they too often proved false to their trust. The temptations of office; the love of ease, wealth, and distinction; the fear of ministerial enmity, of royal disgrace, were too powerful for poor Honesty. The hour in which their aid was most needed by the friendless prisoner, was that in which it was withdrawn; for surely if men ever need an upright, able, and impartial administration of the law, it is when they contend single-handed against the influences of flattery, bribery, and intimidation, which those in authority are ever able to employ. The odds are fearful in such a contest. The prejudices of juries, the subservience of lawyers, the servility of judges, gave scarce a hope that justice would not be wrested to serve the purposes of the crown; that considerations of state policy would not prove stronger than any abstract belief of the prisoner's innocence or guilt. That we have not misrepresented the degraded condition of the English tribunals during the period we have mentioned, a *référé* to the state trials *passim*, will abundantly prove. Nor is it at all strange that such should have been the case. During the dynasty of the Tudors, and the reign of the first of the Stuarts, the duty alike of the courts, and of parliament was simply to register the royal edicts. If the formalities of law were observed, it was rather through the good-nature of the sovereign, than from any consciousness of his inability to break through their restraints. But after the rebellion, and especially after the revolution, when the limits of prerogative became marked out with some degree of precision, and monarchs could no longer effect their purposes by open violence, then more

subtle means were resorted to, but scarcely less dangerous, to destroy those who were so unfortunate as to become the objects of royal or ministerial enmity. The king, if he could not make the law, could still appoint the judges of the law; and the right of interpretation was hardly less powerful than the power of legislation. Even when, after a lapse of time, the judges became in a great measure independent of the crown, still it was not until many years later, when the voice of an outraged people became more terrible to them than the frowns of kings or ministers, that those accused of political offence could hope for justice at their hands.

The reign of Charles the Second, in every respect the most disgraceful in English history, is that period to which we wish now particularly to ask the reader's attention. During the latter part of it, the chief justice's seat was filled first by Scroggs, and afterwards by Jeffries; the former came to the bench a little before the disclosures that took place respecting the Popish Plot, and presided at the trials that took place in consequence of that event. It is to these trials that we shall now confine ourselves; only premising certain facts necessary to the perfect understanding of the extracts which we are about to make.

It is unnecessary to go minutely into the details of the Popish Plot. A general outline will answer our present purpose. The first who pretended any knowledge of it, or made any disclosure respecting it, was Titus Oates. He, when examined before the council in October, 1678, stated that at a consult held by the Jesuits on the 24th of April preceding, at the White Horse Tavern in London, resolutions had been adopted to kill the king, overthrow the established church, and restore popery. Upon this many arrests were made, and among others was Coleman, who had been secretary to the late Duchess of York. His papers were seized, and there was found a correspondence he had carried on several years before with the confessor of Louis XIV., having reference mainly to the restoration of the Catholic religion in England. These letters, although in no way confirmatory of the alleged Plot, except so far as they indicated an anxious desire on the part of the members of that church to regain their lost ascendancy in Great Britain, and their intention to use every effort for that purpose, things already well known, yet produced great excitement, and were regarded by many as conclusive proof of the truth of Oates' statements. Another event, which happened about the same time, raised the excitement to its highest pitch. Sir

Edmundbury Godfrey, a London magistrate, before whom Oates had made his depositions, was found murdered, and under such circumstances as precluded the idea of suicide. Suspicion now deepened into certainty. No one longer dared to doubt the reality of the plot. To doubt, was to confess one's self an accomplice. Nothing was talked of but the Plot. The wildest rumors were caught up and repeated, and soon grew into well-authenticated facts. The name Papist, or Roman Catholic, became synonymous with assassin. Many, not content with carrying arms, clothed themselves in armor. At the funeral of Sir Edmondbury Godfrey, says North, in his *Examen*, 'the crowd was prodigious, both at the procession, and in and about the church, and so heated, that any thing called Papist, were it a cat or a dog, had probably gone to pieces in a moment. The Catholics all kept close in their houses and lodgings, thinking it a good compensation to be safe there, so far were they from acting violently at that time. But there was all that which upheld among the common people an artificial fright, so that every one almost fancied a popish knife just at his throat; and at the sermon, beside the preacher, two thumping divines stood upright in the pulpit, to guard him from being killed while he was preaching, by the Papists.'

Oates immediately became a man of great consequence. He was called the saviour of the nation, had lodgings given him at Whitehall, and a pension from parliament of £1200 a year. But the more cool and circumspect could not forget the notorious infamy of his character, or implicitly rely on the word of a man who openly confessed that he had gone among the Jesuits, and declared himself a convert to their faith merely to betray them. But with the populace his credit was unbounded. The more incredible his fictions, the better they suited the vulgar appetite. In this sort of narrative, as Hume truly remarks, a fool was more likely to succeed than a wise man. Accompanied by his guards, for being supposed to be a special object of popish enmity, guards had been assigned him, he walked about in great dignity, attired as a priest, and 'whoever he pointed at was taken up and committed; so that many people got out of his way as from a blast, and glad they could prove their two last years' conversation. The very breath of him was pestilential, and if it brought not imprisonment or death over such on whom it fell, it surely poisoned reputation, and left good Protestants arrant papists, and something worse than that, in danger of being put in the plot as traitors.'

¹

Parliament was opened three days after Godfrey's murder, and immediately voted that it was of opinion that there had been, and was 'a damnable and hellish plot;' and every day, both forenoon and afternoon, a session was held at which the whole matter was discussed. The arrests were numerous, and among others were several papist lords, and Sir George Wakeman, the physician to the queen. Even the Duke of York and the Queen herself were accused by Oates as traitors and accomplices. These stories meeting such general credence, and rewards being heaped upon the author, others, as might have been expected, soon followed his example. The most notorious of these minor perjurers was one Bedlow, who pretended to know the secret of Godfrey's murder. When first examined he knew nothing of the Plot, but told a ridiculous story about forty thousand men who were coming over to England from Spain. The next day, however, his knowledge was greatly increased, and he pretended to be as fully informed of all the particulars of the Plot as Oates himself. As we shall see by and by, whatever the bolder villain swore to, his subordinate confirmed.

Such was the state of things when the first victim of this extraordinary popular delusion were brought to trial. The earliest trial, although the accused was not charged with being concerned in the plot, was that of Stayley, a goldsmith or broker, on the 21st of November, 1678. The charge against him was that he had called the king a heretic, and threatened to kill him. The chief witness against him was one Castars. Bishop Burnet, who was well acquainted with him, says, that when he heard who the witnesses were, he thought he was bound to do what he could to stop it: 'so I sent both to the lord chancellor and the attorney general to let them know what profligate wretches these witnesses were. Jones, the attorney general, took it ill of me that I should disparage the king's evidence. Duke Lauderdale, having heard how I had moved in this matter, railed at me with open mouth. He said I had studied to save Stayley for the liking I had to any one that would murder the king.' The trial proceeded, and one of the witnesses testified to the following words as spoken by the prisoner: 'The King of England is the greatest heretic, and the greatest rogue in the world; here's the heart and here's the hand that would kill him; I myself.'

PRISONER. 'Here's the hand, and here's the heart that would kill myself; not would kill him myself.'

L. C. J. 'What Jesuit taught you this trick? It is like one of them. It is the art and interest of a Jesuit so to do.'

In this, as in all the subsequent trials, the existence of the Plot was taken for granted as an incontestable fact. Another fact was also assumed, most improperly indeed, but not without some show of reason, that it was an admitted doctrine of the Romish church, that however sinful an act might be in itself, it lost its sinfulness if the interests of the church demanded its performance. Therefore it was argued, to kill a heretic-king, to swear falsely, to deceive an enemy, is to do nothing wrong in the eyes of a Papist, if the pope or the bishops command it. Such a man it is proper for us to regard as an enemy, for his principles would lead him to employ any means for the destruction of those whom he was taught to regard as the enemies of his church.

It is unnecessary for us to stop to point out the fallacy of this mode of reasoning. Our business at present is only to show the effect it had upon the minds both of the court and the jury. Thus the Chief Justice reasoned in his charge at the trial: 'You, and we all, are sensible of the great difficulties and hazards that is now both against the king's person, and against all Protestants, and our religion too; which will hardly maintain itself, when they have destroyed the men; but let 'em know that many thousands will lose their religion with their lives, for we will not be Papists, let the Jesuits press what they will, (who are the foundations of all this mischief,) in making proselytes by telling them, Do what wickedness you will, it's no sin, but we can save you; and if you omit what we command, we can damn you. Excuse if I am a little warm, when perils are so many, their murders so secret, that we cannot discover the murder of that gentleman whom we all knew so well, when things are transacted so closely, and our king in so great danger, and our religion at stake. 'Tis better to be warm here than in Smithfield. When a Papist once hath made a man a heretic, there is no scruple to murder him. Whoever is not of their persuasion are heretics, and whoever are heretics may be murdered if the pope commands it; for which they may become saints in heaven; this is that they have practised. If there had been nothing of this in this kingdom, or other parts of the world, it would be a hard thing to impose it upon them; but they ought not to complain when so many instances are against them. Therefore discharge your consciences as you ought to do; if guilty, let him take the reward of his

crime, and you shall do well to begin with this man, for perchance it may be a terror to the rest. Unless they think they can be saved by dying in the Roman faith, though with such pernicious and traitorous words and designs as these are, let such go to Heaven by themselves. I hope I shall never go to that Heaven, where men are made saints for killing kings.'

The flimsy logic and cool-blooded cruelty of this charge are too obvious to require mention. According to the chief justice, no Papist could complain that he was hanged for treason because some members of his church had massacred the Protestants on Bartholomew's day. The recommendation 'to begin with this man, that it may be a terror to the rest,' marks well the character of the judge, and the temper of the jury that could advance or approve such a detestable doctrine.

Stayley was convicted and thus sentenced: 'You shall return to prison, from thence shall be drawn to the place of execution, where you shall be hanged by the neck, cut down alive, your quarters shall be severed, and be disposed of as the king shall think fit, and your bowels burnt, and so the Lord have mercy on your soul.'

This sentence was executed five days after.

The next victim was Coleman. The evidence against him was of a twofold nature; his own letters, and the testimony of Oates and Bedlow. As to the first, they disclose clearly enough the existence of a Plot, but a Plot in which Charles himself was the chief conspirator; a Plot not only to restore popery, but to destroy English liberty. This Plot was of an early date, and began indeed almost at the restoration of the king. The monarch of France and the Duke of York were his accomplices. Coleman's part in it seems to have been merely that of an ambitious, intriguing, bigotted partizan, pleased with being entrusted with the secrets of the great; and much disposed to magnify the importance and value of his services. His letters, that were produced on his trial, related to the years 1674 and '5. If there was any correspondence of a later date, it was never discovered. In fine, we may say of these letters that if there was enough in them to convict Coleman of high treason, the king, the duke, and several of the most prominent statesmen of that period were equally guilty.

The testimony of Oates was so strange and improbable, that it never could have obtained credence for a moment, except at a time when men had 'lost their reason.' The basis of his whole narration, was his statement relating to the consult of the Jesuits in April, which we give in his own words. 'They were ordered to meet by virtue of a brief from Rome, sent by the father general of the society. They went on to these resolves: That Pickering and Grove should go on, and continue in attempting to assassinate the king's person by shooting, or other means. Grove was to have fifteen hundred pounds. Pickering being a religious man, was to have thirty thousand masses, which at twelvepence a mass amounted to much that money. This resolve of the Jesuits was communicated to Mr. Coleman in my hearing at Wild House. My lord, this was not only so, but in several letters he did mention it, and in one letter, (I think I was gone a few miles out of London,) he sent to me by a messenger, and did desire the duke might be trepaned into this Plot to murder the king.'

But one consult of fifty Jesuits, all eager to carry their diabolical plans of assassination and murder into execution, was not enough for Dr. Oates, and he went on to relate the proceedings that took place at another, held at the Savoy in the month of August, when the Benedictine monks were present with the Jesuits. 'In this letter,' (one written by Archbishop Talbot, the titular archbishop of Dublin,) 'there were four Jesuits had contrived to despatch the Duke of Ormond. (These were his words.) To find the most expedient way for his death Fogarthy was to be sent to do it by poison, if these four good fathers did not hit of their design. My lord, Fogarthy was present. And when the consult was almost at a period, Mr. Coleman came to the Savoy to the consult, and was mighty forward to have father Fogarthy sent to Ireland to despatch the duke by poison. This letter did specify they were then ready to rise in rebellion against the king for the pope.'

ATT. GEN. 'Do you know any thing of arms?'

'There were forty thousand black bills; I am not so skilful in arms to know what they meant, (military men know what they are,) that were provided to be sent into Ireland for the use of the Catholic party.'

In addition to the forty thousand black bills, Oates stated that there had been £200,000 contributed by the Catholics, and that he heard Coleman say 'that

he had found a way to transmit it for the carrying on of the rebellion in Ireland.'

Here certainly was treason enough concocted, if one could believe the witnesses, to have hung a hundred men. No less than seven men had engaged to kill the king; all of whom, through some strange infelicity, did not find an opportunity even to make the attempt. Not satisfied with this number of assassins, Coleman would have had the Duke of York brought into the Plot, and made the murderer of his brother. Could human folly frame a set of lies more gross and palpable?

Beside Coleman's general knowledge of the Plot, Oates mentioned several circumstances showing the special interest that he had taken in it; that he had written letters which the witness had carried to St. Omers, in which were these 'expressions of the king, calling him tyrant, and that the marriage between the Prince of Orange and the Lady Mary, the Duke of York's eldest daughter, would prove the traitor's and tyrant's ruin;' that 'this letter was written in plain English words at length;' that he had sent another letter in which he promised 'that the ten thousand pounds' (sent by the Jesuits,) 'should be employed for no other intent or purpose but to cut off the King of England;' and that he had given money that 'the four Irish ruffians,' who were to kill the king at Windsor, might be speedy in their business.

In all these trials there is nothing that more strikingly shows the infamous manner in which these witnesses were allowed to testify, than the withholding of such parts of their evidence as they pretended it was improper at that time to bring forward. Thus they protected themselves; for no one durst accuse them lest he himself should be charged as a party to the conspiracy. At this trial Oates said, without a word of dissent from the Chief Justice, 'I could give other evidence but will not, because of other things which are not fit to be known yet.'

It is impossible that the Chief Justice, or the other judges, should have believed such a story as this even for a moment. We make all necessary allowance for the influence of great popular excitement. We know that judges are but men, and are not exempt more than other men from the contagion of those occasional outbursts of frenzy, which seem to destroy all

individual independence, and all sense of individual responsibility; and which for a time makes a nation like a herd of maddened buffaloes, ignorant whither it is going, but unable to stop in its furious career. Yet by their position judges are, of all classes of men, the farthest removed from popular influences of this nature. Their habits of legal investigation, fit them in an eminent degree to weigh with scrupulous accuracy the characters of witnesses; to detect improbabilities and contradictions. Stories that may deceive even intelligent men unacquainted with the laws of evidence, and the bearings of testimony, stand revealed at first glance to the practised eye of the judge as a tissue of falsehoods. Here the judges could not have been deceived. Who could believe that the Jesuits, a body of men not less celebrated for their profound knowledge of the politics of every kingdom in Christendom, than for the wisdom with which they adapted their plans of proselytism to the changing circumstances of the times, should have formed a plan to restore popery in England by massacre and conquest? The thing is too preposterous to merit a moment's attention.

Still more ridiculous are the details of the Plot as disclosed by Oates. Would the Jesuits, even if they had formed such plans, confide them to a penniless, friendless vagabond; a man of notoriously bad character, who was, while at St. Omers, the butt and laughing stock of the whole college? Such secrets are not usually revealed to any but tried men, and the Jesuits were the last of all conspirators to bestow their confidence rashly. Yet here was a conspiracy whose disclosure would have brought a certain and speedy death to every one engaged in it, known we know not to how many hundreds, and many of these too found in the lowest ranks of the populace. The manner of its execution is of a piece with all the rest. First, two men were employed to kill the king. For two years they could find no opportunity to do it. Then four Irish ruffians were employed. Who they were, or what became of them, no one knew. Then the physician of the queen was hired to poison him. To this horrible plan of assassination, were consenting not only the highest dignitaries of the Romish church, but some of the noblest peers of England and of France. But we have neither time nor patience to proceed farther with such miserable fabrications. We say then that the judges never could have believed in the existence of such a Plot, and that the prisoners tried before them were immolated upon the altar of their own personal popularity. Rather than resist the current of popular feeling, and dare to

award justice and uphold the supremacy of impartial law, they chose to swim with the tide, and sacrifice men whom they knew in their hearts to be innocent. It is this that adds tenfold guilt to the brutality of their conduct. We cannot forget that they were dishonest in their very cruelty; that they insulted their victims, browbeat the witnesses, trampled on judicial forms to gain the favor of an infuriated mob, whose madness they laughed at and derided.

At the commencement of the trial, Coleman thus alluded to the law of England, forbidding counsel to prisoners accused of criminal offences, and to the prejudice that then prevailed against those of his religion: 'I hope, my lord, if there be any point of law that I am not skilled in, that your lordships will be pleased not to take the advantage over me. Another thing seems most dreadful, that is, the violent prejudice that seems to be against every man in England that is confessed to be a Roman Catholic. It is possible that a Roman Catholic may be very innocent of these crimes. If one of those innocent Roman Catholics should come to this bar, he lies under such disadvantages already, and his prejudices so greatly biasseth human nature, that unless your lordships will lean extremely much on the other side, justice will hardly stand upright and lie upon a level.'

L. C. J. 'You need not make any preparations for us in this matter; you shall have a fair, just and legal trial; if condemned it will be apparent you ought to be so; and without a fair proof there shall be no condemnation. Therefore you shall find we will not do to you as you do to us, blow up at adventure, kill people because they are not of your persuasion: our religion teacheth us another doctrine, and you shall find it clearly to your advantage.'

This was fairness and impartiality in the eyes of the Chief Justice!

Coleman did not conduct his defence with so much ability as his reputation might lead us to expect. He seems to have been dismayed at the dangers that threatened him, and hopeless of a fair trial, bowed before the storm. An attempted alibi was feebly supported, although Oates was so indefinite in regard to time that to attempt to convict him of falsehood was of little avail. The chief points of his defence were the improbability of the whole story, and the fact that Oates on his examination before the council had said that he did not know him. Oates thus excused himself: 'My lord, when Mr.

Coleman was upon his examination before the council board, he saith I said that I never saw him before in my life; I then said that I would not swear that I had seen him before in my life, because my sight was bad by candle-light, and candle-light alters the sight much; but when I heard him speak, I could have sworn it was he, but it was not then my business. I cannot see a great way by candle-light.'

Being asked why he had not accused Coleman at the same time when he accused Wakeman and the Jesuits, he pretended that it was 'for want of memory. Being disturbed and wearied in sitting up two nights, I could not give that good account of Mr. Coleman, which I did afterwards when I consulted my papers;' as if in giving the names of many meaner persons, he should from forgetfulness overlook one so considerable as Coleman. The testimony of Oates was confirmed by Bedlow, who did not hesitate to swear to any thing that the more inventive genius of his fellow-witness had devised.

In summing up, the Chief Justice animadverted with considerable force upon the nature of the letters that had been read as proof of a design to restore popery in England; this he most unjustifiably argued, could not be effected by peaceable means: 'Therefore,' he says, 'there must be more in it, for he that was so earnest in that religion would not have stuck at any violence to bring it in; he would not have stuck at blood. For we know their doctrines and their practises, and we know well with what zeal the priests push them forward to venture their own lives, and take away other men's that differ from them, to bring in their religion and to set up themselves.'

After speaking of the general ignorance of the Papists, and the general diffusion of knowledge among the Protestants, 'insomuch that scarce a cobbler but is able to baffle any Roman priest that ever I saw or met with,' he goes on; 'and after this I wonder that a man who hath been bred up in the Protestant religion, (as I have reason to believe that you, Mr. Coleman, have been, for if I am not misinformed your father was a minister in Suffolk,) for such a one to depart from it, is an evidence against you to prove the indictment. I must make a difference between us and those who have been always educated that way. No man of understanding, but for by-ends, would have left his religion to be a Papist. And for you, Mr. Coleman, who are a man of reason and subtilty, I must tell you, (to bring this to yourself,) upon

this account, that it could not be conscience; I cannot think it to be conscience. Your pension was your conscience, and your secretary's place your bait. I do acknowledge many of the popish priests formerly were learned men, and may be so still beyond the seas; but I could never yet meet with any here, that had any other learning or ability but artificial, only to delude weak women and weaker men.

‘They have indeed ways of conversion and conviction by enlightening our understandings with a faggot, and by the powerful and irresistible arguments of a dagger. But these are such wicked solecisms in their religion, that they seem to have left them neither natural sense nor natural conscience. Not natural sense, by their absurdity in so unreasonable a belief as of the wine turned into blood: not natural conscience, by their cruelty, who make the Protestant's blood as wine, and these priests thirst after it. *Tantum religio potuit suadere malorum.*

‘Mr. Coleman, in one of his letters, speaks of rooting out our religion and our party; and he is in the right, for they can never root out the Protestant religion but they must kill the Protestants. But let him and them know, if ever they shall endeavor to bring popery in by destroying of the king, they shall find that the Papists will thereby bring destruction upon themselves, so that not a man of them would escape.

‘*Ne catulus quidem relinquendus.*’

‘Our execution shall be as quick as their gunpowder, but more effectual. And so, gentlemen, I shall leave it to you to consider what his letters prove him guilty of directly, and what by consequence what he plainly would have done, and then how he would have done it, and whether you think his *fiery zeal* had so much *cold blood* in it as to spare any others.

‘For the other part of the evidence, which is by the testimony of the present witnesses, you have heard them: I will not detain you longer now; the day is going out.’

MR. JUSTICE JONES. ‘You must find the prisoner guilty, or bring in two persons perjured.’

The verdict was what might have been anticipated from such a charge. Coleman was found guilty, and the next day sentenced. After sentence had been pronounced, he protested his innocence, but was brutally interrupted by the Chief Justice: 'I am sorry, Mr. Coleman, that I have not charity enough to believe the words of a dying man.'

In answer to Coleman's request that his wife might visit him in prison, he at first seemed disposed to deny it, and said: 'You say well, and it is a hard case to deny it; but I tell you what hardens my heart: the insolencies of your party, (the Roman Catholics I mean,) that they every day offer, which is indeed a proof of their Plot, that they are so bold and impudent, and such secret murders committed by them as would harden any man's heart to do the common favors of justice and charity that to mankind are usually done. They are so bold and insolent that I think it is not to be endured in a Protestant kingdom.'

His request however was granted. He was executed the third of December following.

We have dwelt with some particularity upon this trial, not because it is by any means the most flagrant for the contemptuous disregard shown by the judges, not only to the legal rights, but to the feelings of the prisoner, but because it came first in the order of time, and serves in a good measure to explain all the trials that follow it. Comment upon it is needless. Such a mockery of justice would disgrace the tribunals of savages. Whatever seems unfavorable to the prisoner is pressed home by the Chief Justice, most strongly against him. Whatever makes for him is kept out of sight. To have been born a Roman Catholic is a crime; to have deliberately adopted that faith, is a damnable sin; one for which there is no expiation. The absurd fictions of Oates and Bedlow are commended to the jury as worthy of implicit credence. The whole weight of judicial authority and influence is thrown into the scale of condemnation.

On the seventeenth of the same December, Whitebread, Fenwick, Ireland, Pickering and Grove, were brought to trial. The chief witnesses against them were Oates and Bedlow. The counsel for the crown thus opened the case: 'May it please your lordships, and you gentlemen of the jury, the persons here before you stand indicted of high treason; they are five in

number; three of them are Jesuits, one is a priest, the fifth is a layman; persons fitly prepared for the work in hand.' After a few other observations, he proceeds to institute a comparison between this Plot and the famous Gunpowder Plot. The second and third points of resemblance in the two, he thus states: 'Secondly, the great actors in the design were priests and Jesuits, that came from Valladolid in Spain, and other places beyond the seas. And the great actors in this Plot are priests and Jesuits that are come from St. Omers and other places beyond the seas, nearer home than Spain.

'Thirdly, that Plot was chiefly guided and managed by Henry Garnet, superior and provincial of the Jesuits then in England; and the great actor in this design is Mr. Whitebread, superior and provincial of the Jesuits now in England.'

The evidence of Oates was the same in substance that he gave at Coleman's trial, but with such additional particulars as he judged necessary to keep the popular excitement alive. Thus, in answering the question, what he knew of any attempts to kill the king at St. James' park, he said: 'I saw Pickering and Grove several times walking in the park together, with their secured pistols, which were longer than ordinary pistols, and shorter than some carbines. They had silver bullets to shoot with, and Grove would have had the bullets to be champt for fear that if he should shoot, if the bullets were round, the wound that might be given might be cured.'

ATT. GEN. 'Do you know any thing of Pickering's doing penance, and for what?'

'Yes, my lord. In the month of March last, (for these persons have followed the king several years;) but he at that time had not looked to the flint of his pistol, but it was loose, and he durst not venture to give fire. He had a fair opportunity, as Whitebread said; and because he missed it through his own negligence he underwent penance, and had twenty or thirty strokes of discipline, and Grove was chidden for his carelessness.'

Of the 'four Irish ruffians' that went to Windsor to kill the king, Oates could give no account. How he could reconcile it with his duty to His Majesty to let these assassins lie in wait from August to October, without notifying any one of their murderous intentions, he did not see fit to explain, and of course the attorney general and the judges forgot to ask him.

Not the least wonderful part of his evidence is that which he speaks of the ill usage he received from Whitebread in September, who charged him with having betrayed them: 'So, my lord, I did profess a great deal of innocency, because I had not then been with the king, but he gave me very ill language, and abused me, and I was afraid of a worse mischief from them. And though, my lord, they could not prove that I had discovered it, yet upon the bare suspicion, I was beaten and affronted, and reviled, and commanded to go beyond sea again; nay, my lord, I had my lodgings assaulted to have murdered me if they could.'

This is certainly the strangest way to conciliate a disaffected conspirator, that we ever heard of! Most men would have preferred to use bribes and caresses; but the Jesuits, it seems, knew their man, and chose to beat him into secrecy and submission!

Bedlow's evidence, as usual, was mainly confirmatory of the statements of Oates, embellished by such new incidents as his feebler powers of invention could frame. He was, however, not quite satisfied with this subordinate part; and therefore at the close of his evidence pretends to recollect that he had omitted one thing very material: 'At the same time that there was a discourse about these three gentleman being to destroy the king at New-Market, there was a discourse of a design to kill several noble persons, and the several parts assigned to every one. Knight was to kill the Earl of Shaftsbury, Pritchard, the Duke of Buckingham, Oniel, the Earl of Ossory, Obrian, the Duke of Ormond,' An assassination of noblemen on a truly magnificent scale!

Nothing appearing in Bedlow's evidence to implicate Fenwick and Whitebread, and two witnesses being necessary to prove the charge, they were sent back to prison. When they were subsequently brought up for trial for the same offence, and pleaded that they could not a second time be tried, their plea was overruled, although founded on one of the commonest principles of law, and sanctioned by a thousand precedents. The reasoning of Scroggs and North, the Chief Justice of the Common Pleas, is so curious that it is worth quoting. Whitebread, after objecting that he is informed that no man can be put in jeopardy of his life the second time for the same cause: 'I speak it not for my sake only, but for the sake of the whole nation;

no man should be tried twice for the same cause; by the same reason a man may be tried twenty or one hundred times.'

SCROGGS. 'You say well, it is observed, Mr. Whitebread; but you must know that you were not put in jeopardy of your life for the same thing, for first the jury were discharged of you; it is true, it was supposed when you were indicted that there would be two witnesses against you, but that fell out otherwise, and the law of the land requiring two witnesses to prove you guilty of treason, it was thought reasonable that you should not be put upon the jury at all, but you were discharged, and then you were in no jeopardy of your life.'

'Under favor, my lord, I was in jeopardy, for I was given in charge to the jury; and 'tis the case in Seyer, 31 Eliz., he was indicted for a burglary committed the 31st of August, and pleaded to it, and afterward another indictment was preferred, and all the judges did declare that he could not be indicted the second time for the same fact, because he was in jeopardy of his life again.'

C. J. NORTH. 'The oath the jury take is, *that they shall well and truly try, and true deliverance make* of such prisoners as they shall have in charge; the charge of the jury is not full 'till the court give them a charge at last, after evidence had; and because there was a mistake in your case, that the evidence was not so full as might be, the jury before they ever considered concerning you at all they were discharged, and so you were not in jeopardy; and, I in my experience, know it to be often done, and 'tis the course of law.'

In this opinion all the judges coincided. Sad indeed was the condition of things in poor England when all her judges could resort to such miserable quibbles; or worse than this, could deliberately falsify the law, to condemn to an ignominious death two defenceless prisoners!

To return from this digression. The three remaining prisoners were found guilty. The Chief Justice in charging the jury was even more violent against the Papists than in his charge at Coleman's trial: 'Some hold that the pope in council is infallible; and ask any Popish Jesuit of them all and he will say the pope is himself infallible in council or he is no true Jesuit; and if so, whatever they command is to be justified by their authority; so that if they

give a dispensation to kill a king, that king is well killed. They indulge all sorts of sins, and no human bonds can hold them.

‘They have some parts of the foundation ’tis true, but they are adulterated and mixed with horrid principles and impious practises. They eat their God, they kill their king, and saint the murderer. This is a religion that quite unhinges all piety, all morality, all conversation, and to be abominated by all mankind.

‘I return now to the fact which is proved by two witnesses, and by the concurrent evidence of the letter and the maid; and the matter is as plain and notorious as can be, that there was an intention of bringing in popery by a cruel and bloody way; for I believe they never could have prayed us into their religion. I leave it therefore for you to consider whether you have not as much evidence from these two men as can be expected in a case of this nature; and whether Mr. Oates be not rather justified by the testimony offered against him, than discredited. Let prudence and conscience direct your verdict, and you will be too hard for their art and cunning.

‘Gentlemen, if you think you shall be in long we will adjourn the court till the afternoon and take your verdict then.’

JURY. ‘No, my lord, we shall not be long.’

After a very short recess the jury returned with a verdict of guilty against all.

C. J. ‘You have done, gentlemen, like very good subjects and very good Christians; that is to say, like very good Protestants. And now, much good may their thirty thousand masses do them!’

Before the court pronounced sentence Ireland loudly complained that he had had no time to call his witnesses: ‘So that we could have none but only those that came in by chance, and those things they have declared, though true, were not believed.’ His objection was overruled, and the Recorder, Sir George Jeffries, proceeded to pass sentence. The spirit that pervaded his speech may be seen in this extract: ‘I am sure this was so horrid a design, that nothing but a conclave of devils in hell, or a college of such Jesuits as yours on earth, could have thought upon.’

At the trial of Berry, Green and Hill, for the murder of Sir Edmondbury Godfrey, the improbabilities of the testimony and the contradictions of the witnesses were so glaring that it seems incredible that any man could believe them. As a specimen: Praunce, the chief witness, said that the body was taken to Hill's lodgings where it remained two days in a certain room he mentioned. In defence, it was shown by all the family, that that room was an open one; that scarcely an hour passed but some one went through it. But instead of receiving this testimony, the Chief Justice told the witnesses that it was very suspicious they had not seen the body, and that it was well for them they were not indicted. But we have not space to quote further. The extracts we have already made will be sufficient to show Scrogg's utter contempt for those duties which the law imposed upon him as the counsel for the prisoners; his abusive and threatening demeanor toward their witnesses; his appeals to the passions of the jury, their bigotry and their fears; and in a word, his total destitution of every quality that marks the honest, fair-minded, and impartial judge.

We intended to speak of the disgraceful and cowardly part which Charles the Second bore in these proceedings. Convinced that the Plot was a mere fiction, he saw day by day his innocent and faithful subjects led to the gallows without making an effort for their safety, or giving utterance to a word of disapprobation. It was not until the Queen was attacked, that the selfish monarch interfered. A word from him turned the abuse of Scroggs into an opposite channel, and Oates and Bedlow were now as bitterly reviled as the Jesuits had been before. We believe that Charles was a willing spectator if not an active promoter of these legal butcheries, hoping that thereby a vent would be given to the popular fury, and he himself, by such a sacrifice, regain the lost affections of his people.

We intended also to speak of the conduct of the leading English statesmen during this period; of Lauderdale, of Shaftsbury, of Danby, and of Buckingham; but our limits are already overpassed. We can only say that the character of the monarch was truly reflected in the character of his counsellors; that as England has never had so faithless and profligate a king, she has never been disgraced by such unscrupulous, despicable, and short-sighted ministers.

THE INFANT'S BURIAL.

BY THE SHEPHERD OF SHARONDALE, VALLEY OF VIRGINIA.

‘EARTH to earth, ashes to ashes, dust to dust.’

I.

‘DUST unto dust!’ Sweet child!
Was that dark sentence ever meant for thee?
For that bright form, that tablet undefiled,
Creation’s mystery?
No no, it could not be, for GOD is just;
That beauteous brow! oh, who could call that dust?
And yet methought I heard
Those words slow uttered o’er thy tiny grave,
As though that Eden-calm had e’er been stirred
By Passion’s stormy wave.
It should have been, ‘Angels an Angel meet;
Seraphs on high a sister-seraph greet!’

II.

‘Earth unto earth;’ ’tis well
That sordid earth should pass to earth again:

In those dark fanes where truth has ceased to dwell,
Why should the shrine remain?
Deep in the dust let all such pass away;
Why should they not?—clay mingles but with clay:
Such is dark Manhood's prime,
From whose high nature all of Heaven has past,
Whose once pure mould is deeply dyed with crime;
Bound down with fetters fast:
Gone, gone is all of holiness and worth,
And what remains is naught indeed but earth.

III.

'Ashes to ashes?' Yes!
Let it be thus with those whom age has chilled,
Whose life is but the dying ember's glow—
There let it be fulfilled!
Say, 'When the altar-fires but dimly burn,
'Ashes to ashes, dust to dust' return!
And with that aged band,
The blackened craters of whose hearts are charred
By scathed hopes and Hate's undying brand;
Let not this fate be marred:
Ope wide thy portals, Grave! Death, pass them down!
For these, and such as these, are all thine own.

IV.

But oh, my beauteous one!
This gloomy path should not by thee be trod;
The grave, the worm, should not by *thee* be known—
Go thou direct to GOD!
Thy passport white at Heaven's gate unroll,
(No dark hand-writing e'er hath soiled that scroll.)
'Twas thus the Saviour spoke:
'Those little children; suffer them to come.'
The mandate thou didst hear; the fetters broke

Which kept thee from thy home:
Awhile life's threshold thou didst press with glee,
Then turned away; *this* life was not for thee!

A PISCATORIAL ECLOGUE.

VEL ISAACUS WALTON IN NOVAM SCALAM REDIVIVUS.

BY PETER VON GEIST.

PISCATOR. You are happily met, my fair young lady!

DISCIPULA. A very good morrow to you, Mr. PISCATOR. You are early a-foot, with your rod and lines.

PISCATOR. A veteran of the angle will be stirring early; there is a brace of fish waiting for my hook on the other side of our lake. But you, my gentle maiden, have you come down to the beach to see the sun rise? and mayhap to pluck a rose with the dew on't? I think you have found it; for I think I can see the rose on your cheek, and the dew in your eye. It is sweet to be up betimes in the morning, when the air and the new sunlight are as clear and calm as your own thoughts.

DISCIPULA. It is even so, as you and I know right well. A pleasant sail to you; God send a dozen fish, and may you kill them merrily. But honest Mr. Piscator, do you go alone to-day?

PISCATOR. I think so to do; for you are to note, a companion of patience and sober demeanor, free from profane jests and scurrilous discourse, is worth gold, but is not so easy to be come at. And none other than such jumps with my humor.

DISCIPULA. And when, my good Mr. Piscator, will you give me another lesson in the art of angling? For you must know the last has only increased my desire to learn something more of it. Or do you think that we women can never attain skill in that noble and gentle art?

PISCATOR. That it is a noble and a gentle art I am ready to maintain; and that women have attained skill in it is not to be doubted; as you will read in books of old time, that ladies both hunted, and hawked, and fished.

DISCIPULA. But the lesson, my honest master? When shall I have another lesson?

PISCATOR. You shall even suit your own convenience. And some fine morning, when you are so disposed, we will take a walk down the river; when I will teach you to cast your line for trout; for indeed, it requires a sharp wit and much practice to throw your fly so that the trout will rise at it.

DISCIPULA. Not in the river, if it please you, good Mr. Piscator, not in the river! Teach me to fish in the lake.

PISCATOR. Without doubt, my fair young lady, it must be as you desire. And yet, it is not every woman that would have the courage to cross the pond in a skiff that rocks to every ripple.

DISCIPULA. Trust me for that. You should know that I am not wont to be frightened at trifles.

PISCATOR. Truly, it is so; and I do not question your courage. Then on any day that you will appoint, God willing, I will give you a sail; or indeed, this morning, if duty does not incline you in another direction, and you will step with me into my little boat yonder.

DISCIPULA. That shall I with right good will. But I shall have to make you wait while I get my fishing tackle.

PISCATOR. Of necessity you shall not do that; for I remember now, I can fit you with a spare harness of my own.

DISCIPULA. Then let us be going, say I. And is this the skiff? What a painted little cockle-shell of a boat, with its two masts! I suppose it will bear us both?

PISCATOR. It will bear twenty like you and me. Please let me help you to step in; and though you feel it to give under your feet, and as it were, slide away from beneath you, yet now when you are set down on the bench, you perceive it is perfectly steady.

DISCIPULA. Oh, I shall not be in the least afraid. What a tiny little schooner! But is it not bold to spread both sails? And see, now that we come round to the wind, how the skiff keels over.

PISCATOR. It is entirely safe, my fair scholar; for since you have chosen me to be your instructor and master in the science of the angle, you must be content to be called my scholar. It is entirely safe; and you must observe, that however much it may keel over, it cannot upset; for if struck by a sudden squall, or flaw of the wind, the masts will go by the board, and so it will right.

DISCIPULA. Excellently well contrived. But has not the breeze suddenly died away? Yet the sails are distended, and miniature waves are thrown off from either side of the bow.

PISCATOR. The breeze seems to have decreased, because we are moving in the same direction with it; and you will see, now when I bring the boat more toward the wind, that it blows as strong as before, and our motion is well nigh stopped.

DISCIPULA. That I can very well see; and I pray you, my master, not to bring the skiff so far into the wind to prove your proposition to me as to capsize it. The masts bend over toward the water more than it is pleasant to see.

PISCATOR. There is no danger; and after half an hour's experience you will become used to it, and lose all apprehension. I think I will alter our course a couple of points; so if you have a mind, since I cannot well leave the tiller, you may unloose the cord that fastens the forward sail to the side of the boat; wait a moment till we come round, and the sail hangs loose in the wind; now loose the rope, and let it out about a foot; so, wind it round as it was before. Neatly done! Next, let out the other sail in the same way and to the same length. It was well executed! Really, you are destined to become a sailor's wife after all.

DISCIPULA. Marry, I hope so. But why 'after all?'

PISCATOR. Nay, I meant nothing; except, that whereas I formerly thought you rather affected the land, now I find that you are courageous on the water; and therefore, I say you deserve a Commodore. Observe now, we are running more nearly with the wind, and move faster. It is a favorable breeze; for our fishing-ground is in the south-eastern corner of the lake, behind that highland which you see yonder; and this blows from the western quarter. We shall soon be there.

DISCIPULA. Be in no hurry; I am in none. Is it not a fine morning? Those white, high-flying clouds, rolled up into fleeces like wool, with ragged patches of the sky between them, above us, and the broad blue bosom of the lake, with the multitude of little waves leaping up and dancing all over its surface beneath us, and our boat, in the midst of both sky and water, gliding calmly along like a bird with his wings spread floating in the air! Is it not a lovely morning? Yes, yes; I must be a sailor's wife, and live on the ocean! Or perhaps, rather, a fisherman's wife, and sail on a lake like this. If I should happen to meet with one of the latter class, of approved character, somewhat mature in years and grave in demeanor, kind of disposition and manly of countenance, one who would let me go sailing with him every day, (of course I am not describing you, Mr. Piscator,) I think—yes, I am quite certain, that he would content me.

PISCATOR. Nay, nay, my fair young lady, you are pleased to mock! 'Mature in years and grave in demeanor,' said you? A gallant young sailor for you, say I! There are many who sigh for the favor which you have so freely granted me to-day. Ah, you should not jeer.

DISCIPULA. I tell you, Mr. Piscator, none but you for me this day! I am not going to think of any body but you; for I tell you plainly, I like you very much.

PISCATOR. Ah, yes, yes; certainly—without doubt, I hope so; surely, why should you not?

DISCIPULA. And what a beautiful island! The grass grows down almost to the water's edge, leaving a narrow belt of white sand; how it glistens in the sun-light! and those half-a-dozen tall trees in the centre, how do you suppose they came to grow there alone so?

PISCATOR. That is a question which I have often asked, but have never been able to satisfy myself, as to how they came there. They have stood for more generations than one, and will cast their shadows on the water when other boats than ours sail past them, and other eyes than ours wonder at them. Now we are nearly at our journey's end; when we pass through the opening between that island ahead of us, and the main land, we shall be on our fishing-ground.

DISCIPULA. Is it possible that we have reached here so quick? It is not half so far as I thought it was. And yet, on looking back, there is a wide waste lying between us and the cove from which we started. How diminutive the house on the high ground back of the landing-place looks; like a mole-hill, and the trees around it like shrubs! Well sped, little bark! A swift and an easy-paced courser are you; steadily now, through this narrow strait; steadily and gently, for your race is almost run.

PISCATOR. The channel begins to widen again; and lo! here we are in a lake by itself as it were; a sheet of water full a mile long and a quarter of a mile wide. And herein the fish mostly do congregate. I will hold on to near the middle, and then drop the anchor.

DISCIPULA. It is indeed a fine sheet; smooth as any mirror; clearer than glass. I suppose the fish assemble here when they get tired of the roughness and commotion of the lake without, because it is so calm and still. Is it not so?

PISCATOR. It may be so; it is a good reason, and I will believe that it is so, since you have supposed it. This is as good a place as any, and here we will cast our lines; and there is so little wind stirring, that we shall only need to furl our sails, and the boat will remain at rest. Now then, here is your rod, nicely put together, with a fly on the hook. A pike will rise as quick at an artificial fly as at a live one; a greedy fish is that pike; and if we should have occasion, I have other kinds of bait. Take it, and throw your line out as I taught you before. But what are you regarding so intently?

DISCIPULA. I am looking at the shadow of the trees in the water; an inverted forest in the lake. Fish a little while alone, and let me look.

PISCATOR. It has become so late in the day that I have not much hope of taking many now. However, I can but try. This same rod and line have done

me good service in this same place, before to-day. Ah, I see a pike! I'll have him! Look! look how slowly and warily he comes up toward the bait! When he gets within a few feet of it, he will make a dash, and gorge it without stopping to think. Ah, there he goes with it; and here he comes back with it, straight up into the boat. Upon my word, a reasonable fish; he wont weigh short of three pounds.

DISCIPULA. Oh, Mr. Piscator! here's a new heaven and a new earth beneath us! Waving trees with birds flitting among their branches, and far down below, flying clouds and blue sky. A perfect hemisphere, and we are hanging over it, without any thing to support us! I shouldn't be surprised, to feel myself this minute tumbling down into it, down to the new heaven! I have been expecting to, for some time past; and what a fall would that be! Do you suppose we should stop when we got there?

PISCATOR. If we did not, where should we go to?

DISCIPULA. Ah, where!

PISCATOR. These fish do not seem inclined to bite this morning. Yet there is one larger than that I caught before. I must have him, too. Observe how wistfully he eyes the bait; let the fly skim slowly along the water, just over him; that is the way, Sir, to swallow a hook; and now come up, and slide into the basket, out of sight, and keep your brother company.

DISCIPULA. Mr. Piscator, when you make such a splashing in the water, you ruffle and wrinkle my submarine prospect. Please don't.

PISCATOR. I think it will be profitless trying to take any more this forenoon; toward night they will bite again. And what shall we do in the mean time? Usually, when I come out here alone, I go ashore, and rest myself during these hours, amid the fragrant shades of the thick trees, that screen me from the mid-day heat. Would you like to take such a ramble?—or are you inclined to stay here, and gaze into the water?

DISCIPULA. I suppose the picture will keep till we come back. Let us go ashore, and wander around in the woods, and find romantic grottoes, and weave flower-wreaths, and build castles in the air.

PISCATOR. And half a mile inland, you can see its summit from here, is a hill that commands a vast tract of lake and woodland.

DISCIPULA. Yes, yes; let us go!

PISCATOR. Well, scholar, here we are again, after our long tramp. You see I am a better land-pilot than you just now took me to be; for I have brought us out to the right spot; more by token, yonder is the boat, safe and sound. I am afraid you are fatigued with our long travels?

DISCIPULA. Not much; but I would like to sit down on the green carpet, under this shade, for a few minutes.

PISCATOR. It must be, at the least, four of the clock; and although your nature, my fair young lady, is probably too ethereal to think of such homely matters, I do not profess mine to be such, and am ready to acknowledge, that *a little dinner* would not be unacceptable.

DISCIPULA. Unacceptable? No; but where are we to get it?

PISCATOR. I always bring with me, on my excursions, a hand-basket, containing——

DISCIPULA. Why in the world!—why *didn't* you let me know that before? Let us have it as quick as possible!

PISCATOR. It is in the boat, and if you will remain a moment, I will bring it up here.

DISCIPULA. Oh yes, do! And be quick, my good master!—as quick as you can!

PISCATOR. Nimble as any page, that waits on lady bright. Here we have the provisions; and if we could manage to find something for a table-cover, we might dispense with knives and—— Right, scholar, put your hand into the basket and help yourself.

DISCIPULA. Ham sandwich! Oh, Mr. Piscator, this is good! Is there enough of it?

PISCATOR. Enough for us two; and therefore you need not fear to help yourself heartily, as I am glad to see that you are not. Never was sumptuous feast to an epicure on gala-day better than my simple fare to me on this beach, after a morning's sail and ramble.

DISCIPULA. Most excellent! I'll come out here every time I can get a chance, for the sake of dining with you under the old beech tree.

PISCATOR. It brings to my mind the story of the king, who, after the chase, took some bread and water at the hut of a woodsman; which, as it is no doubt well known, I shall not repeat unto you. But the bottom of the basket begins to appear. What! done already? Good despatch! And now, scholar, we will immediately to our sport, for we have no time to waste.

DISCIPULA. Yes, yes, immediately to work; I long to try my hand. Here's the boat; I should think it would have got tired waiting so long for us. But it looks very patient.

PISCATOR. You may get in, while I loose, and shove off. There appears to be a sharp breeze blowing on the lake without, yet our pond is as unruffled as when we left it. We will return to the same spot we were in before, and cast out our lines.

DISCIPULA. Is this my rod? Fix the bait for me skilfully, and I'll catch them.

PISCATOR. I cannot promise you great success at first, considering your inexperience——

DISCIPULA. Oh, I'm going to catch an hundred!

PISCATOR. I hope you may; certainly—I hope you will; and you can only try. There, your fly is fastened to the hook as well as my art is able. Come, and sit on this side, and I will give you some instructions how to use it. First, see that the line is clear of the rod; then give it one swing round your head; so—and cast it quickly but softly, as far from you as you can on the water. Neatly done! Now draw it slowly along the surface, and you shall presently see a fish rise at it. Be more moderate; you draw it too rapidly. Ha! there it goes under! Wait till you feel him pulling on the line; now give him a little jerk to the right; there you have him, fairly hooked! You must be careful, or

you'll lose him yet. No; he's not very heavy, and you may raise him strait out of the water, and land him in the boat; so!

DISCIPULA. Ah, my master, will you tell me that I can't catch fish? Poor little fish! Oh, but he's a small one: take him off, master, and put him into the hold. I hunt for nobler game.

PISCATOR. Not a good thought, not a good thought for an angler. Hunt for nobler game, if you like; but a fisherwoman must not despise the smallest that comes to her net. Every thing counts.

DISCIPULA. Despise? No; oh no! I would like to catch fifty just such; that is, if there are no larger ones to angle for.

PISCATOR. Well, your bait is set again. Cast out as before, and I wish you better luck.

DISCIPULA. Now I am going to catch a large one—a foot long. But, Mr. Piscator, why do you not use your line?

PISCATOR. I will not interfere with your sport; and beside, I may want to give you advice how to manage yours. It is not, in general, a good plan to let the fish see you when you are angling; they are apt to be frightened away. However, in this case, I shall say nothing against it; because if they have an eye for beauty, as is commonly believed, your showing yourself should have a contrary effect. In truth, the influence of beauty is much to be marvelled at. I remember myself when I was young, and had not yet learned their vanity, how easy I was to be led away and bewitched by a fair face and a sparkling eye. That was some time ago; you draw your fly too fast; it was some years ago; and yet I am fain to confess, that even now, in nothing do I take more pleasure, than in looking on a ruddy cheek, a polished brow, the long lashes of a soft blue eye, and upon heavy folds of auburn hair; and it is for this reason that I have placed you opposite to me now.

DISCIPULA. Why, Mr. Piscator! Did you mean that for a compliment?

PISCATOR. Certainly no. I seldom speak but what I think, for flattery I like neither to give nor receive. Ah, yes; there are witches in the world yet. And their witchcraft consists not in magic filters, and potent herbs gathered at midnight under the full moon; far more subtle and powerful is it. Like the

poisons of eastern countries, it is communicated by a touch, by a look, by the breath of a word. This is the witchcraft that they use; therewith lure they men to commit folly. It would seem to be their chief delight, their main occupation. But I am willing to believe that you are not so evil-minded; and that when you bewitch men, it is not because you love to do it, but that it is altogether involuntary.

DISCIPULA. Oh, of course, altogether involuntary. If I had my way, I never would cause a single flutter in any body's breast—not I. But you see how it is, I can't help it, and therefore it is not my fault. These fish do not bite well. There is one, he will weigh four pounds, that has been playing round and round the hook, but won't touch it. Haven't you got some kind of sweet smelling oil or perfume to scent the bait with?

PISCATOR. I have some lavender-leaves, and if you will draw up the line, I will rub the fly over with them, for fish love the smell of lavender. Try him with that. Ah, I see him—a respectable fish. He is coming up toward the hook; I think he will take it.

DISCIPULA. He stops and eyes it, as though he half suspected that it would not be pleasant to the taste, for all its fair looks. But I'll have him, in spite of his wits. You scrutinize too closely, Sir Pike! You had better take it at once, without useless inspection. What a noble fellow! How gracefully he moves through the water! I will make it float carelessly away from him, dancing on the silver surface, as though it had just fallen fresh from Heaven; and beside, distance lends enchantment. Ha! see him make a dive at it! There you have it, Sir! and there I have you!

PISCATOR. Take care, or you'll be over! Hold hard, or he'll have *you* too! Upon my word, I was afraid you would go overboard! You should not, in your eagerness, lean out over the water so far. But you have got the better of him, and now pull him into the boat and let me take him off.

DISCIPULA. I came near losing my balance; I thought I was gone! Lucky escape!—but my heart beats yet.

PISCATOR. A fine fish. He has swallowed the bait whole; your large fish always do. O! I don't know as I can take it out, without hurting him.

DISCIPULA. Poor fish! He does not look quite so spruce and independent as he did a little while ago. Did your mouth water for that tempting fly. It will never water again! What deep sighs heave his little breast! but they will soon be over. Fix the bait, Mr. Piscator, and rub some more lavender on it. I'll catch another, in less than a minute.

PISCATOR. It is done already. And this time, do not lean over so far, or you will be in danger of being pulled in, by some fish of greater strength than usual. Really, I think you are a good angler; you seem to possess the skill by intuition. Is it not fine sport? I see by the increased flush and light of your countenance, that you are of the same opinion. It is truly a gentle, a feminine sport.

DISCIPULA. There is one with the beautifullest eyes, and covered all over with gold and silver. But he is exceedingly shy. Come, Sir, if you are so distant, I shall have to approach you myself. I desire a nearer acquaintance with your beautiful eyes, and your gold and silver scales. Oh! if you move off in that direction, I shall retire in this! Ah, you've thought better of it, and are coming back. I knew you would. Observe, Mr. Piscator, how he turns round and hesitates and doubts what to do. There is no use in his deliberating; it is inevitable; he has got to do it. Now he turns back. He seems to have made up his mind that he must have it at all hazards. And see him shut his eyes and make a dash. I am afraid he finds it unpalatable! Too rash! too rash! You should have considered better! Take him off, master; he is nothing very great, after all.

PISCATOR. I see a large one, lying here at the left, deep in the water; of the kind which we call sucker. It is his nature to lie perfectly still as though asleep, and not to move till he is touched. Reach here the hook, while I fasten some pieces of lead to it, enough to sink it; and then I will tell you how to hook him.

DISCIPULA. I see! I know! I can do it myself, I will let the bait sink gently down into the water, a little forward of him, thus. Ah, it fell right on his back! He must be asleep, for he doesn't stir, nor seem to notice it. Now then, a little forward of him; and so, slowly, softly, float up toward his nose. He appears to be inspecting the fly; he sleeps with his mouth wide open; as a natural history philosopher might examine a butterfly; and since it is so

closely presented, suppose you try the sense of taste too, Sir! It is pleasant to the eye, you will find it also good for food, and to be desired to make one wise. Allow it to fall imperceptibly into your mouth; nay, you cannot judge of its merits from a half trial, like that; it must be taken entirely in. Don't exert yourself, in the least; another inspiration, and you are possessed. Ha! is it not good?—is it not sweet? He must be very fond of it, he holds on to it so hard! Astonished fish! he wakes up, and opens his eyes with wonder; there is more in it than he dreamed of! Strait up to the light here, and show your agitated countenance. Now please to open your lips, and disclose the cause of all your sorrows, while kind Mr. Piscator extracts it.

PISCATOR. Well hooked! Indeed, scholar, it was well done of you. But the heavens are becoming overcast; it threatens storm. Would it not be wise to set out on our return?

DISCIPULA. Oh no, no! I can't think of going yet? 'Wise!' It seems to me that it would be very foolish, while the lake contains so many more fish as good as any that we have already caught.

PISCATOR. You do not expect to take them all?

DISCIPULA. All in this place; what should hinder?

PISCATOR. They will not bite for ever in the same place. They are a cunning animal, and get frightened.

DISCIPULA. Then let us remove to another spot.

PISCATOR. That we might do, if there were time; but the sun is entirely hidden by clouds, and is near his going down. We shall presently have a thunder-storm. And then a stiff breeze from the south, which will waft us speedily toward our landing place; had we not better begin to think of leaving?

DISCIPULA. Wait till I catch one fish more; I had a nibble just then.

PISCATOR. You should handle your rod more gently. The wind blows up fresher and fresher; it will be dark as pitch too, when night fairly comes on. Shall we not spread our sails, and speed merrily homeward?

DISCIPULA. Well, as you will, master; though really I don't see any occasion for all this hurry. Look at that fish! He rose almost to the surface after my hook, and yet wouldn't take it. Oh, my poor fly! my poor bait! See it, master! All faded and worn and torn, no painting or patching can renew its comeliness! And there sticks out the hook, plain to view; a blind fish might see it! Oh, my poor fly, that couldn't conceal the hook any longer! Mr. Piscator, lend me your knife, while I cut the bait from the line, rags, paint, iron and all, and throw it back into the water, thus. Now then, little fish! silly fish! come all of you, and see what has befooled you! What some of your tribe have swallowed because they thought it was good, and some because they were careless, and others because they were hungry and must have something! What many of ye have taken in, and more have nibbled at, and all have gazed at, and admired and longed for! Oh, rare sport have ye made me, foolish things! And longer would I have played with you, but the evening comes on, and I must bid you a happy farewell. So we are under way again, are we?

PISCATOR. We are again under way; and I have hope of reaching home before yonder cloud comes over us. And trust me, when it does come, it will bring more wind with it.

DISCIPULA. Once more on the open bosom of the lake! How the little black angry waves dance up one after another, and roll past us toward the northern shore. And see that dim hill at the other extremity of the pond, how gigantic and broken it looks. Oh, Mr. Piscator, let's go and see it! let's go and see it! And those high perpendicular rocks, that stand out so boldly. Yes, yes, put up the helm! we'll go and see how they look in the twilight.

PISCATOR. But my dear child, it will take an hour and a half longer to go round by the rocks, and before that time, I fear the storm will increase.

DISCIPULA. Oh, never fear the storm. I'll risk it! And when we get up there, we can take a short cut across to our port; so put up the helm!—good Mr. Piscator, kind Mr. Piscator! do let us run up to the hill! I can assure you there is no danger.

PISCATOR. I cannot well deny any thing that you ask of me; but much I doubt, Mr. ——

DISCIPULA. Nay, nay, doubt nothing. We shall get home safe, trust me for that. And that cloud, that you are so fearful of, is not coming over us, at all; it is coming down on the other shore of the lake. Please, Mr. Pilot, to keep in a little nearer the land, or we shall pass the rocks so far out, that we shall not be able to see them with distinctness.

PISCATOR. A wilful woman must even have her own way. My child! you will catch your death with cold, to take off your bonnet so!

DISCIPULA. I'm not afraid of it; I want to feel the air.

PISCATOR. And where are you going now?

DISCIPULA. Going to sit down in the bow of the boat. This view is much finer! Oh, this is grand!

PISCATOR. But, good scholar! good scholar! you will certainly fall out there! I believe you are crazy, you look so wild!

DISCIPULA. How the boat pitches over the little waves! And, Mr. Piscator, direct the boat toward the shore, so as to make it rock more. The heavens are all grey, and the waters are all black, and the wind is high and wild in its sport like an imprisoned bird let loose. Oh master, spread the other sail, and see if we can't fly faster! Here are the rocks so grim; but it is growing dark, and I can only just make them out. Why, Mr. Piscator, you are not going near enough! Run close in under them!

PISCATOR. I shall say to you plainly, what you ask is impossible. It would be running an unwarrantable hazard; as indeed coming up here at all was unwarrantable.

DISCIPULA. At least then, good master, keep along up at this distance, if that pleases you best; for there is a bluff just ahead, which projects farther out than the others, and we shall pass close by it.

PISCATOR. It is high time that we commenced our return in good earnest. And therefore, scholar, for I must remind you that you are my scholar till I see you safe ashore; therefore, if you please, you may stand by the sail to tack.

DISCIPULA. But just look once, how boldly and sternly it lifts up its calm front out of the boiling waters!

PISCATOR. It is without doubt, very fine; but it is impossible to hold on a foot farther. So if you will stand by the sail——

DISCIPULA. I wish I had a boat of my own to sail out here alone in and go where I choose! Well, what shall I do? how shall I go to work? Oh, Mr. Piscator! honest Mr. Piscator! let me hold the helm while you take care of the sails.

PISCATOR. Willingly, if your hand is strong enough. Try it; shall you be able to hold it as it is?

DISCIPULA. With the greatest ease. Now then, are you ready? What are you letting down the sail for? That three-cornered rag from the bow-sprit wont be enough!

PISCATOR. It would be unsafe to set the main-sail, and I think with this breeze the fore-stay-sail will drive us sufficiently fast.

DISCIPULA. Well, suit yourself. Now are you ready?

PISCATOR. Ready, certainly, when I take the helm. But what are you doing? If you undertake to let the skiff fall off before the wind you will upset us, as sure as——

DISCIPULA. Just see if I do. Let me hold the helm. Oh yes, let me!

PISCATOR. But scholar! good scholar! dear scholar!

DISCIPULA. No, no, I wont give it up! you can't have it! Honest Mr. Piscator, let me steer the boat, only a little way! Oh, but I will; and there is no use in your trying to prevent me. See there now, haven't we come round to our course in good style?

PISCATOR. A taste of power to those who are unaccustomed to it is always dangerous, and I blame myself for permitting you to usurp the post of pilot. Though, as you seem determined to maintain it, I cannot choose but to sit down here quietly, and trust our lives to your skill. My life indeed! But yours? Seriously now, my fair young lady, would it not be wiser——

DISCIPULA. Seriously now, my careful master, I don't think it would. Why, what would you have? Are we not skimming over the waves like a sea-bird free? And see those two birds, how they dash by us, and wheel round over us, and breast the gale! Oh master! wouldn't you like to be a sea-bird, and swing sideways, with your face to the wind that almost took your breath away, swing down, down, glance against the water, then on the other side, swing up, up? And wouldn't it be sweet too to struggle your way up through the storm, high over that cloud yonder, with the thunder on its inside and the lightning on its out—then fold your wings, close your eyes, and fall calmly down on to its dark, soft, bosom? Oh, wouldn't it be sweet?

PISCATOR. My dear scholar, our landing place lies here, toward the north-east, and you are running directly north.

DISCIPULA. Don't be under any apprehensions; I am only going to run out half a mile farther, that we may get before the wind, and then we'll scud straight toward home. And beside, we rock more, going in this direction. I wish it would blow harder, and make more swell! You know now, Mr. Piscator, how a wild swan feels when he sits on the water and is buoyed up on the heaving wave, and in a breath sinks into the black abyss. If I were a wild swan I would go to sleep and let the winds blow and the waters heave! How the boat careens over and plunges down when the blast whistles against the masts! Drive on! Drive on! my light gallant bark! Oh, my master! shall I sing you a song? a little song of the sea? a pirate song?

PISCATOR. You look at this present moment as if you might sing a pirate song, or be a pirate yourself. I observe that since you have taken off your bonnet, the wind has somewhat disarranged your hair.

DISCIPULA. Wouldn't you like to be a pirate, though? I would; and roam over the ocean at my own free will; and through the storm and spray, and lightning-glances of the wild midnight, dash on my fleeing victim like the eagle on his prey! All hands on deck to get on more sail! Stand by to unfurl the main-sail to the tempest!

PISCATOR. Will it please you, my fair pilot, to inform me whither you are taking us?

DISCIPULA. I am going to run into that cloud yonder; the one before us, with the thunder on its inside and the lightning on its out.

PISCATOR. What you call a cloud appears to me to be a hill, that rises a few rods back from the shore.

DISCIPULA. Oh, it's a cloud—a cloud! And there is a star that glimmers through it.

PISCATOR. I see nothing but the twinkling of a taper, from the window of some dwelling.

DISCIPULA. I tell you it's a star—a star! The cloud has settled down into the water like a mountain; and through its base penetrates a tunnel, through which the ray of that star comes—a long, straight cavern, arched overhead and on either side by wreathed and rolling pillars of smoke. I'll put up the helm and run into it! Bear up! bear up! bear stoutly up, my brave, bold bark! and plunge forward like the horse into the smoke of battle, through this path to the subterranean abodes!

PISCATOR. Let me take the tiller! Let it go! Put it around quick then; you are running on the beach!

DISCIPULA. Why don't you see we are just entering the dark mouth of the tunnel? We shall soon be into it.

PISCATOR. Hark! here it comes! Now hold hard, for there we are, grounded and staved!

DISCIPULA. Tartarian rocks and whirlpools!

PISCATOR. Quick! ashore! The boat is going to pieces!

DISCIPULA. Ha! ha! ha! Was it well done, my master? was it well done?

PISCATOR. It *was* well done, you little water-witch!

L I N E S

ON SEEING MY SISTER FILL A LITTLE BEGGAR-BOY'S BASKET WITH COLD
VICTUALS.

BY R. S. CHILTON.

Ay! fill it up, my sister dear;
His brothers all like him are gaunt,
And sister's too; then do not fear
To choke the gaping mouth of want.
Fill up! his heart beats quick and high,
The tears stand in his sickly eye;
Poor, wretched, ragged beggar-boy,
He scarce can thank thee now, for joy!

The basket's heavy; what of that?
His heart is light, he heeds it not;
His feet are cold and bare, poor brat!
But this has always been his lot.
He trudges on, or stops to steal
Quick glances at the dainty meal;
And then his purple lips do bless
The heart that pitied his distress.

At home, how will the meagre ones
Clutch at those broken bits of bread!
How will they banquet on those bones,
Like ravens feasting on the dead!
A dainty stomach would refuse
Such food; but 'beggars cannot choose:'
They relish what the rich condemn,
But hunger makes the sauce for them.

Ah, sister! when the beggar-boy
Returns, think still on hunger's pain;
Lighten his little heart with joy,
And fill his basket up again.
Who *pities* wretchedness does well,
But who *relieves* it, doth excel.
Then ever, till the common end,
Let Misery find in thee, a friend.

THE QUOD CORRESPONDENCE.

Harry Harson.

CHAPTER XXVI.

AT the dead of the night, when all others were at rest, Michael Rust glided out of his office. It was a strange hour, but he had become a strange man. Through the silent streets he stole, with a step so noiseless that it awoke no echo. Along Broadway, passing where the city ended and the fields began, mile after mile he went. He met no one. Every house that he passed was as silent as the grave; excepting a solitary one, standing by itself, with a light shining through an upper window, as if some one kept watch at a sick bed. Sometimes the road ran between high trees, whose skeleton outlines stood grimly up between him and the stars, stiff and motionless. At other times, it coursed along dreary wastes; then again, it was buried in dense shadow; now ascending, now descending. At times he caught a glimpse of the distant gray river, gleaming in the darkness, with here and there the light on board some vessel at anchor, glittering like a star. In some places, where it was

shut in by high banks, the road seemed inky black; and parts of it were so solitary, that even a stout heart might have shrunk from traversing it at that dreary hour. But Rust thought not of fear. What had *he* to do with that feeling, who sought only revenge and a grave?

It was yet night, when he reached a house in the upper part of the island, and near the river. Little except its dim outline was visible in the obscurity; and as he opened the gate, and passed beneath an avenue of tall trees which led to it, the darkness was such that he could scarcely see. But he was familiar with the ground, and without hesitation went directly to the door of the house. It was locked. He drew a key from his pocket, unlocked it, went in, and closed it after him. He groped his way along the entry, until he came to the door of a room, which he opened. A few embers were smouldering on the hearth, sufficient to throw out a dim light. Lighting a candle, which stood on a table, he drew a chair to the fire and sat down. The chamber was large, fitted up as a library, and filled with massive book-cases of dark wood, elaborately carved, which gave a sombre appearance to the room. Nothing that money could buy had been spared; for this was the home of Rust's daughter, and that hard, reckless, griping man had been alive but to one feeling—love to his child. In *her* were garnered up all his affections, and upon her he had lavished all that his means could obtain.

For a long time he sat without changing his position, his eye fixed, his mouth compressed, his brow knit, not a sound escaping him. At last he started from his fit of abstraction, with a slight shiver; passed his hand once or twice before his eyes, as if to dispel something that clouded his sight; and said, in a whisper. 'Can all this be real?' The clock struck three. He rose, cast a stealthy glance over his shoulder, and taking the candle in his hand, held it up over his head, examining the room with a suspicious look, as if he momentarily expected some form to start from behind the heavy furniture. As his eye was wandering round the room, it rested upon a picture in a carved frame, which hung against the wall. He went to it, and held the light so that its rays fell full upon it. It was the portrait of a girl of about seventeen. Could the child-like, innocent face which gazed out from the canvass upon that fierce, passion-worn old man, be that of *his* child? Could aught so pure and beautiful have sprung from such as him? And worse than all, could she have lost that purity which was stamped on every line of her face?

With fixed and rigid features; with a hand that did not tremble, with a heart that scarcely beat, he contemplated the picture; and then, slowly, as if in a dream, replaced the candle, and took his seat. There was that at work within him, however, which banished bodily repose; for in one minute afterward, he was up and pacing the room, muttering and gesticulating to himself; the *next*, he went to a mirror, and looked at his own face. He started as he did so; for he had not seen it in a week; and in that time so altered and wasted had it become, with its long unshorn beard, and ghastly white complexion, that he could scarcely recognize it.

‘What a bird of prey the mind is!’ muttered he; ‘how it devours the body!’ He turned away, and once more his eye rested on the picture which hung against the wall. Some strange feeling seemed to spring into existence as he did so; for his breath came thick and hard; his heart beat, until its pulsations could be heard, loud and strong like the blows of a hammer; his hand shook, but at the same time, his brow darkened, and its look of anxious and half-wandering thought gave place to an expression that was perfectly fiendish. He muttered a few words; then taking the light, cautiously opened the door, and stole up the broad flight of stairs which led to the upper story. At the head of it was a door; he tried it; it was not locked but yielded to his push. It opened into a bed-room, luxuriously furnished with mirrors, and various nick-nacks, and articles of taste, such as a young and wealthy female gathers about her; and in the bed lay a beautiful girl, the original of the picture below, sound asleep, her long hair, which had become unbound as she slept, lying in loose tresses upon the pillow. How bright and beautiful she was! How gentle and calm her breathing was! And well might the stern old man, as he looked at her angel face, have misgivings as to the truth of Grosket’s tale. Rust’s hard features worked convulsively as he stood over his child, as if powerful feelings were tugging at his heart-strings; but it was only for a moment, for he choked them down; and going out, in the cautious manner in which he had entered, he closed the door and descended to the room below.

He resumed his seat; and although hour after hour elapsed, until day-light stole in the room, his attitude remained the same; until a servant came in to light the fire, and uttered an exclamation of surprise at seeing him. This aroused him; and rising hastily, he said, ‘I’m going out. Tell your mistress that I’ll be here at ten o’clock.’ He left the house; and after wandering up

and down the road, he crossed the fields, until he came to the edge of the river, and when he had sauntered along it for some time, he sat down upon a rock, and commenced casting pebbles in the water.

How long a time he passed in this way, he could not tell, but it must have been several hours; for on looking at his watch, he found that it was late in the day. Suddenly, recollecting his message to his daughter; he rose and went directly to the house. He crossed the lawn in front of it; but before he had time to reach the door, a light figure sprang out, and his child's arms were about his neck.

'Dear father! it's a very long time since I saw you!' said she, putting back the hair which hung over his face, and pressing her lips to his cheek. 'I'm very happy at having you here once more. But you are ill—very ill! What ails you?' said she, suddenly, as she observed the inroads which the last few days had made in his whole form. Rust withdrew himself from her embrace, and without answering her question, said in a cold tone: 'Come in the house.'

Though his words were simple, there was that in his manner (or it might have been the consciousness of guilt on the part of the girl) which caused her cheek to grow pale, and her step to falter; and she accompanied him to the library, with the silent and downcast look of a criminal. He took a chair, drew it to the fire, and pointing to another, said in the same cold tone: 'Be seated.'

The girl obeyed without a word. At that moment a servant opened the door, and told Rust that a man was inquiring for him.

Rust got up, and went out. In the entry were two men. One of them, a powerfully-built fellow, of about five-and-thirty, with light hair and a prominent eye, asked, 'Are you Michael Rust?'

Rust scanned him from head to foot. He suspected his errand; for he had seen him before, and he replied simply: 'I am.'

'Then, Sir, we've come for you.' At the same time, the man produced a slip of paper, and tapped Rust on the shoulder. 'Here's the warrant, if you'd like to look at it, and the vehicle's in the road there.' He gave a nod in the direction.

Rust evinced neither surprise nor trepidation. He merely said, in a musing tone, 'I should have stipulated for a longer time, for the lawyer has lost none.' Then addressing the officer, he added: 'My daughter is in the room. Before going with you, I should like to speak with her in private. You may examine the room, to see that there are no means of escaping from it.'

The man took him at his word; went in the room; glanced round without noticing the girl, who regarded him with some surprise; then went to an inner door, locked it, and put the key in his pocket.

'Are you satisfied?' asked Rust.

The other again stared round the room: went to the window; looked out to see how high it was from the ground; said that he was, and then inquired: 'How long?'

'Ten minutes,' was the reply.

'Good!' said the man; and with a knowing look at Rust, and a shambling bow to the girl, he went out, and seated himself on a chair in the hall, having taken the precaution to send his companion to keep an eye on the windows, which were within leap of the ground.

Rust returned to his seat. 'Come hither, Ellen,' said he.

His daughter rose, and came to him; but in dead silence.

'Look at me. Am I much altered?' inquired Rust.

The girl raised her eyes to his. They quailed before his stern, searching glance; but she replied in a low voice: 'You're very much altered; you're wearing yourself out.'

A smile of strange meaning crossed Rust's face. He turned, and pointed to the picture which hung against the wall.

'Was that ever a good likeness of you?' asked he.

His daughter glanced at it, with some surprise at the sudden question, and then replied: 'I've often been told so, father—a very good one.'

‘They told you the truth. It *was* a good one; and now,’ said he, turning to her, and fixing his eyes on her face: ‘Do you think I am as much changed from what *I* was, as you are from what *you* were, when that picture was painted? Mark it well!’ said he, speaking quickly and earnestly, and leaning forward until his face almost touched hers. ‘Look at every feature. See what innocence, what purity of soul and thought is in every line of that face. An angel might have envied its innocence. There is a mirror,’ said he, pointing to the looking-glass; ‘Now look at yourself.’ He half rose, and his voice was cold and cutting as he concluded.

The girl grew red; then deeper and deeper crimson; then deadly, ghastly pale; the perspiration stood upon her forehead, and her eyes were blinded with tears; but she could not meet his glance.

His voice sank almost to a whisper, as he asked ‘Then what I have heard is true?’

The girl seemed absolutely stunned.

‘Be it so. Now you know the cause of my illness. Look at me. Look at this face, scored with wrinkles; these hollow cheeks, and this frame, broken down by premature old age. Look at them, I say, and you will see but a faint image of the utter, hopeless waste that has been going on in my heart.’

The girl made an attempt to speak; sank on the floor; and clasping his knees, pressed her head against them, and sobbed aloud. But Rust moved not. There was no trace of compassion in either tone or manner, as he continued: ‘From your childhood, until you were grown up, you were the person for whose welfare I toiled. I labored and strove for you; there was not a thing that I did, not a thought that I ever harbored, which had not your happiness for its aim; and to your love and devotion I looked for my reward; and as I brooded over my own guilty life, blackened as it was with the worst of crimes, I thought that it was some palliation to be the parent of one pure and spotless as you were. Well, you turned out as hundreds of others have done, and my labor was lost. I loved you as never child was loved; and in proportion as my love once was great, so now is my hate and scorn!’

‘Oh! my God!’ gasped the girl. She sank down as if crushed. Rust looked at her unmoved, and did not stir to assist her. She raised her hands to him, and said in a supplicating tone: ‘Father! as you hope for mercy, hear me!’

‘If I received not mercy from my own child,’ said Rust, sternly, ‘to whom can I look for it? I hope for it no where; I ask for it no where; I am at bay to the whole world.’

One of those dark, withering expressions which had once been so common to his features, but which his anguish had for the last few days in a great measure banished from them, swept across his face.

The girl wrung her hands, as she received his harsh answer. At last she said, in a broken voice: ‘Father, I am sadly guilty; but hear me, for GOD’s sake, *do* hear me!’

At that moment, the door was opened, and the officer’s head was thrust in.

‘Time’s up.’

‘I must have ten minutes more,’ said Rust.

‘You can’t.’

‘I must, I *will*,’ exclaimed Rust, sternly.

He tossed him a dollar, which the man caught in his hand with professional dexterity; and then, with a grin, said: ‘Well, if you’re so very anxious, of course you must be accommodated;’ and disappearing, shut the door.

‘You said that you were guilty,’ resumed Rust, turning to his daughter. ‘I know it. There’s but one more so. You know to whom I allude. What is his name?’

The girl grew very pale, and hung down her head in silence.

‘Who is he?’ again demanded her father, seizing her arm with a strong grasp.

Still she made no reply.

‘Be it so,’ said Rust flinging her hand from him. ‘Perhaps silence is best. Now, one other question. *Where* is he?’

She shook her head, and replied in a scarcely audible tone that she did not know.

‘When was he last here?’

‘About a week since.’

‘And when did he promise to return?’

‘On the same day,’ answered the girl, in a low tone.

‘And he has not kept that promise. The first of a series of black-hearted lies!’ exclaimed Rust, bitterly, speaking more to himself than to her. ‘In these cases, lies come first, and the truth last.’ He again addressed her: ‘Does he speak of marriage? and do *you* urge it upon him?’

‘I *do*, indeed I *do*!’ replied the girl, apparently anxious to hit upon something to conciliate the stern mood of her parent. ‘Often and often, I beg him to do it, and remind him of his promise.’

‘And what is his answer?’ demanded Rust, with a half-mocking smile.

‘He says that he cannot marry me just now, but that he will soon. He wishes to obtain the consent of his father, who is very ill, and cannot be spoken to about it; but that he will soon be better, and that then it will all be settled.’

‘How long has he been making these excuses?’

‘A very long time—a very long time,’ said the girl, sadly: ‘A month and more.’

‘How often did he come here at first?’

‘Every day,’ said the girl.

‘And now?’

His daughter was silent; for she began to see the drift of this cold examination, and it sent a chill to her heart.

Rust was satisfied; and he said in a half-musing tone: 'The same stale, hackneyed story. She is on her way to where the first misstep always leads. Already he is wearied, and wants but an excuse to fling her off; and I—I—I—her avenger,' exclaimed he with a burst of fierce impatience, '*I* am shackled; a prisoner, and can do nothing!'

He made a hasty step to the door, opened it, and beckoned to the officer to come in. As he did so, he shut it after him, took the man by the arm, and drew him to one end of the room:

'I want a week,' said he, in a quick tone. 'I'll give a thousand dollars to gain one week; and at the end of that time will surrender myself a prisoner.'

The man shook his head: 'It can't be done, Sir,' said he.

'What's the reward offered for my apprehension?'

'A cool five hundred,' replied the officer.

'I'll double it to escape,' said Rust, 'or to gain a week, but a single week.'

The man shook his head. 'Too many knows that we're arter you. It wouldn't do.'

'But at the expiration of that time I would surrender myself, and you could secure the reward too.'

The man gave vent to a low chuckle; and placed his finger on the side of his nose, accompanying the motion with a sly expression, signifying an utter disbelief in Rust's promises.

Rust gnawed his lip with fierce impatience, then taking the man by the arm, he led him into the hall, and shut the door.

'I must speak out,' said he, 'and trust to your honor not to betray me. A villain has seduced my child. I want time to find him, and to compel him to make her his wife. Now you know why I ask a week.'

The officer at first whistled, then muttered something about its being a hard case; but concluded by saying, in a positive tone: 'It can't be did, Sir; I'm sorry for it; upon my word, I am; but I must keep you now that I've got you.'

I wish you'd given me the slip at first; but I can't let you go now. It's impossible—quite.'

Rust eyed the man, as if endeavoring to find in his hard features some loophole to his more kindly feelings; but apparently he met with no success.

'Well, if it can't be done, there's an end of it,' said he, abruptly terminating his scrutiny. 'I've some other matters to speak of, and want a few moments more. I'll not detain you long, and will call you when I'm ready.'

'I'll give you all the time I can,' said the man, civilly.

Rust turned to enter the room, but as he did so he heard a quick step behind him; and looking round, found himself face to face with a young man of two or three and twenty, elegantly dressed, who eyed him carelessly, and then passing him, entered the room with the air of one perfectly at home. A suspicion of who he was flashed across Rust's mind. That he himself was unknown to the other was not strange, for he had been so much absent, and when he visited his child it was at such irregular intervals, and for such short periods, that a person might have been even a frequent visitor at his house, without encountering him. Nor was there any thing in the outward appearance of the slovenly, haggard old man to attract attention. But the indifference of the other was not reciprocated; for Rust followed him, and closed the door after him, with feverish haste, as if he feared his prey might escape him. He observed the deep blush that sprang to the cheek of his daughter, at the entrance of the stranger; her guilty, yet joyous look as he addressed her; and above all, he perceived *his* careless, cold, indifferent reply to her warm salutation; and a feeling of revenge, the deadliest that he had ever felt, sprung up in his heart against that man; not so much because he had blasted the happiness of his child, as because he had torn from *him* all that he had clung to in life.

Rust walked to the fire-place, turned his back to it, and without uttering a word, faced the stranger, who eyed him from head to foot with a cool, supercilious stare; then looked at the girl, as if seeking an explanation.

The pause, however, was broken by Rust himself, as he pointed with his thin finger to their visitor, and inquired of his daughter: 'Is *that* the man?'

The girl's face became ghastly pale; her lips moved, but she dared not raise her eyes; for she could not encounter the keen, inquiring look which she knew was fixed upon her.

‘Answer my question,’ said he, sternly. ‘This is no time for tampering with my patience.’

His daughter attempted to speak. She trembled from head to foot; but not a word escaped her. So intense was her anguish, that it awoke a spark of better feeling in the young man; for confronting Rust, he said in a bold voice: ‘If you have any questions to ask respecting me, address them to *me*, not to *her*.’

‘I will,’ replied Rust, fixing upon him an eye that fairly glowed; ‘for you should best know your own character. Are you the cold-blooded scoundrel who, taking advantage of that girl’s confiding disposition, of the absence of her father, stole like a thief into his house; by lies, by false oaths, and damning hypocritical professions of love, won her affections; blighted her, and then left her what I blush to name? You wish the question addressed to you; you have it. I’ll have your reply.’

Withering like a parched leaf; shrinking as if a serpent were in his path; with a face which changed from white to red, from red to white, the stranger met these questions. But Rust’s eye never left his face. There was no trace of anger nor emotion, in his marble features. He merely said: ‘I want your answer.’

With a face heavy with guilt; with a voice that shook even while it assumed a tone of boldness; the stranger demanded: ‘Who are you? and what right have you to question me thus?’

‘Not *much* right,’ replied Rust; ‘I’m not even a rival suitor; I’m *only* this girl’s father. Perhaps you will answer me now.’

The other was silent. Rust turned to his daughter, and said: ‘This man has suddenly become dumb. Is this he of whom we spoke? An answer I must have, and a true one. Do not add a lie to the infamy which already covers you.’

The girl hesitated, and then uttered something in a voice so low as to be scarcely audible; but faint as it was, Rust caught the words, '*It is!*'

'It is well,' replied he, facing the stranger, and drawing his person up erect. 'I have no time to waste in words, and will state what I have to say as concisely as possible, and will act as promptly as I speak. This is my only child. She was once unsullied, and I was proud of her: that she is not so *now*, is your fault. There is but one mode of repairing what you've done. Will you marry her?'

'I certainly intend to do so,' said the young man, with a guilty look, which gave the lie to his words.

'I want *deeds*, not *intentions*,' replied Rust. 'What you do must be done *now*—before you leave this room. A clergyman resides within a mile. In half an hour he can be here.'

The girl clasped her hands joyfully, and looked eagerly at him; but there was nothing responsive in the expression of his face; and he answered:

'I can't see the necessity of this haste; beside, it would ruin all my prospects.'

'*You* can't see the necessity of this haste!' exclaimed Rust, in a voice of thunder. 'Ruin *your* prospects! What has become of *her* prospects? What—what—— But no matter,' added he, choking down a fierce burst of passion, and suddenly assuming a tone so unnaturally calm that it might have been a warning to the other that it was but a lull in the storm. 'Michael Rust presents his compliments to his unknown friend, and begs to know if he will do him the honor of marrying, on the spot, his daughter whom he has polluted?'

He paused for an answer; his lips were deadly white, and quivering; and his eye glowed like a serpent's. The young man quailed before it; but apparently he was only waiting for an opportunity to throw off the mask; for he answered boldly: 'No, I will not.'

'You had better,' said Rust, in a low, warning tone. 'Think of it again.'

'You have my answer,' was the reply.

‘Then take Michael Rust’s thanks!’ A flash and report followed; and when the smoke cleared away, the seducer was lying on the floor, stone dead. A bullet had passed through his head. The policeman rushed in the room.

‘If I could have had a week, I might have avoided this,’ said Rust, coldly. ‘As it was, I had no alternative.’

He rang the bell, and a servant came in. He pointed to his daughter, who was lying senseless at his feet.

‘Look to your mistress!’

Turning to the police men who stood by with blanched faces, he said: ‘Now then, I am ready!’

CHAPTER TWENTY-SEVEN.

IN a small room, containing a box-bedstead, a single chair, and a common wooden table, on which was a pitcher of water, sat Michael Rust. The heavy iron bars which grated the windows, and the doors of thick oaken plank, secured by strong bolts of iron, indicated beyond a doubt the nature of his abode—a prison. He was sitting on the edge of his bed, with his arms resting on the table, which was drawn close to it, and his head leaning upon them. At times he straightened himself up, looked listlessly about the room, and then resumed his old position.

A key turned in the door; the heavy bolt was drawn back, and a head was thrust in.

‘Some one wants to see you. Shall he come in?’

‘Yes.’

The head was withdrawn, and the door being opened, admitted no less a person than Mr. Kornicker, somewhat faded in appearance since we last saw him, but still wearing an air of dashing pretension. He stood at the door, shaking his head, winking to himself, and fumbling in his pocket, evidently in a state of great mental perplexity, probably from his entertaining doubts

as to what would be the character of his reception; or from his being equally uncertain as to the best mode of opening the conversation. Nor was he at all relieved by Rust, who without moving, fastened his eye upon him with a cold, steadfast stare.

Kornicker, however, seemed to have fixed upon his course of action at last; for he walked up to him, and stretching out his hand, said:

‘Wont you give us your flipper, my old fellow? You’re in trouble, but I’ll stand by you to the last. If I don’t, damme!’ He struck his other hand on the table, and nodded and winked with great vehemence.

‘So there is yet one who has not turned his back on the felon,’ said Rust, partly addressing Kornicker and partly speaking to himself; ‘one true man; a rare thing in this world; a jewel—a jewel, beyond all price; and like all costly stones, found only in the poorest soils; but,’ added he, ‘what have *I* done to gain friends, or to link one solitary heart to my fortunes?—what?’

He shook his head; and although his face was unmoved, and he spoke in the low, half-soliloquizing manner of one who rather brooded over the past than regretted it, yet there was something so sad in his tone, and in his melancholy gesture, that it did more to call forth the warm feelings of Kornicker than the most eloquent language.

‘What have you done?’ demanded he, earnestly; ‘I’ll *tell* you what you did. When I was at low water mark, with scarce a rag to my back or a crust to my stomach, and without a prospect of getting one, you took me by the hand, and in a d——d gentlemanly way gave me a h’ist out of the gutter. *That’s* what you did; and if you *did* flare up now and then, and haul me over the coals; it was soon over, and soon forgotten. I don’t bear malice, old fellow; no, no. It isn’t my way; and as you’re in trouble now, if I *can* help you, I *will*. Never desert any one; am unfortunately bloody short of cash; but you can have what I’ve got, and when I get more, you shall have *that* too.’

As he spoke, he plunged his hand to the bottom of his pocket, drew out a very shabby-looking pocket-book, deposited it on the table.

‘It isn’t much; but you’ll find it useful here, and you’re welcome to it. This isn’t the shop where nothing put out at interest produces a heavy income.’

This offer had a powerful effect upon Rust; and it seemed as if some long dormant feelings were working their way to the surface from the depths of his heart. He gazed earnestly at his clerk, and once or twice opened his mouth to speak; but finally he got up, and taking the pocket-book from the table, handed it back to Kornicker, saying:

‘I’m not in want of money. Gold is but dross *now*. I’ve plenty of it; but its value in my eyes is gone.’

‘But,’ remonstrated Kornicker, holding his hands behind him, and looking obstinately in another direction, partly to avoid taking the pocket-book and partly to resist the solicitations of his own necessities, which were strenuously urging him to do so, ‘but you may want a lawyer to fight for you at your trial.’

‘For that farce I am prepared. I *have* one. He’s paid for it, and he’ll fight,’ said Rust. ‘It will avail nothing, for I did slay the man. It was a cold-blooded, deliberate murder. I planned it; I went up to that place with the stern determination to commit it; and I *did* commit it. It was no hasty act, done in a moment of fierce and sudden passion; but a deed duly and deliberately meditated, and one that I would repeat. What *he* had done, it’s useless to mention. I had no redress, except what my own hand could give me. He has paid his forfeit, and I’ll pay mine. I’ll fight to the last; because,’ added he, with that expression of stern purpose which so often settled on his face, ‘Michael Rust never yields; and then, let the law do its worst. Take your money; I don’t need it.’

Kornicker hesitated; and then thrusting it in his pocket, said: ‘I suppose, if you should happen to be short, you’ll let me know.’

‘I will,’ replied Rust; ‘but I’ve enough to last until my sand is run out. They’ll hang me.’

‘Don’t talk so,’ exclaimed Kornicker, with a feeling not a little akin to fear, at the cold, indifferent manner in which the other spoke. ‘You *may* escape—who knows?’

Rust looked at him steadily, and then said, in a low, calm voice: ‘If it were not that man and law were leagued against me to *force* me to my doom, not one dollar would Michael Rust give to add an hour to his life. He looks to

the grave only as that dark abyss which knows neither thought nor care; where the past is forgotten; where the future ends. Death is but a deep dreamless sleep, which has no waking. Yet even this boon he will not accept, if it's *forced* upon him.'

'But the disgrace, the disgrace of such an end,' exclaimed Mr. Kornicker, twisting his fingers together, and in his earnestness cracking the knuckles of all of them. 'Think of that, my old fellow. Think of the stain that will always rest upon your memory.'

A smile, without a trace of pleasure, but cold and icy, passed across Rust's face.

'What is my memory to me? What care I for the whispers and sneers and surmises of the reptiles who crowd this world, and who will soon be as *I* then shall be? What are these very men themselves? Shadows!—shadows! Go—my course is chosen. You can do nothing for me.'

Still Kornicker did not show any intention of quitting the room, but shifted from one leg to the other, in a fidgety manner, as if he had something farther to communicate, upon which however he did not like to venture. At last he said: 'Your daughter?'

Rust turned a quick keen eye on him, but farther than this evinced no emotion.

'Perhaps she may need a friend, when—when——'

'I'm dead,' said Rust, concluding what seemed to be rather an embarrassing sentence to Kornicker.

'I'm not exactly the fellow to make the offer,' said Kornicker, adopting the conclusion which Rust had given to the phrase; 'but—but I'll keep an eye on her, and will lend her a helping hand if she gets in trouble.'

Rust's countenance expressed neither pleasure nor anger, as he answered:

'Nothing can be done for her. Her fate is sealed; her path is marked out. There is neither turn nor winding in it, nor escape from the destiny to which it leads. She has taken the first step in it, and must follow it to the end. Look at the reckless and abandoned of her sex, who crowd our thoroughfares at

night. *Their* fate must be *her* fate; an outcast—then the tenant of a public prison where her associates will be the thief and the felon. That's her second step. The third is—to her coffin; broken down; beggared, perhaps starving, she'll die surrounded by the offscouring of the earth—happy if she reaches her grave before she has run her full course.'

There was something in the apathetic manner in which the old man pointed out the future fate of his own child, that actually silenced Kornicker. He knew not what to say. There was no grief to console; no anger to deprecate; no wish to be fulfilled. He had however come to the prison with his mind made up to do something, and he did not like to be thwarted in his purpose. But before he had fairly determined what course was to be pursued next, Rust interrupted the current of his ideas by saying, as he pressed his hand upon his heart:

'You can do nothing for me. The disease is *here*; and the only physician who can heal it is Death. Could you blot the past from my memory and leave it one vast blank; could you gild the future with hopes which this heart did not tell me were utterly hollow; then perhaps Michael Rust might struggle on, like thousands of others, with some object in view, always to be striven for, but always receding as he advanced, or turning to ashes in his grasp. But it cannot be. I've played my part in the great drama of life, and the curtain will soon fall.'

A spirit of callous indifference pervaded all that he said and did; and making a gesture to Kornicker, forbidding all farther remark, he threw himself on the bed, and drew the clothes about his head, as if determined to shut out all sound.

Kornicker made one or two efforts to draw him again into conversation, but the communicative mood was past; and finding that nothing farther was to be done, he left him to his meditations.

From that time Kornicker, true to his maxim of deserting no one, was constant in his visits and endeavors to comfort and assist him in preparing for his trial. But never had man a more arduous task than he found in this self-imposed duty; for the hidden transactions of Rust's past life had become public, and had turned the full tide of popular feeling against him; and far and wide, through town and country, with all that could excite

public animosity, rang that bloody tale, (for the dead man had powerful friends to battle for vengeance.) It was in every mouth, and whispered in every ear. In the broad glare of day, and before the eyes of the whole world, was paraded every secret of Rust's life. Witnesses who had been forgotten and had sunk from sight, and were supposed to be dead, sprang into life, all having some dark deed to record. Pamphlets, teeming with exaggerated details of the murder, were hawked through the streets; peddled at every corner; hung in every shop window. Rust's own black life had prejudged him, and had turned public opinion into public hate; until every voice called out for blood. It was under this feeling that his trial came on.

Early on that morning, long before the court was opened, a stream of people was thronging toward the City Hall by twenties and thirties and hundreds. The iron gates were barred to keep them out; still they contrived to get in, and swarmed through the halls. And when the court was opened, officers armed with staves were stationed on the stairs, to fight them down, for there was no room for them. The court-room was crammed with men heaped upon men, climbing one on the other; heads upon heads, swarming like bees, and packed and wedged together, leaving not a foot to spare. And in the midst of all that living mass sat Rust, unmoved, unflinching; returning look for look, defiance for defiance; reckless as to his fate, but resolute not to yield.

There was one however at that trial who was not so indifferent. He was a man of about fifty, tall and thin, with a grave, dignified face, which yet bore a strong resemblance to that of Rust. He was deadly pale, and sat next to Rust's lawyers, conversing with them in a low earnest tone; and at times, as the trial went on, suggesting questions to them. This was Rust's brother; the father of the two children, who, generous to the last, had forgiven all, and was battling for the life of him who had done his utmost to blast his. If Rust's cold eye sank, or his spirit quailed, it was only when he encountered the mild, sad eye of that brother.

The jury was empanelled. The District Attorney opened for the prosecution; and then the examination of witnesses commenced. Foot by foot and inch by inch was the ground contested by Rust's counsel. Exceptions to testimony were taken, points of law raised, and every informality or technicality, which afforded a loop-hole for objection, was taken advantage

of. The day dragged heavily on, and Rust grew weary. The constant stir about him; the hum of voices, occasionally hushed into silence at the cry of the officer, or the tap of the judge on his desk; the hot, stifling air of the room; the wranglings of the lawyers, all tended to bewilder him. All excitement had long since left him. A leaden heaviness had settled upon all his faculties, and leaning his head upon the table, even while life and death were in the scale, he slept soundly.

He was aroused by his lawyer, touching his arm. He sat up, and gazed vacantly about him.

‘Who’s that?’ said he, pointing to the witness’s stand.

Rust half started to his feet; then clasping his hands hard together, sat down, and leaned his head on the table, but said not a word.

The clerk called out her name.

‘Ellen Colton.’

‘Who is she?’ demanded the lawyer.

Rust drew himself up; and many who had been watching him, observed that his face had become perfectly corpse-like; his breathing oppressed, and that his eyes seemed starting from their sockets, as he fixed them on the witness.

‘My own flesh and blood,’ muttered he; ‘my own child!’

The girl was sworn; but it was evident that a terrible struggle was going on, and she had to be supported to a chair. The lawyer for the prosecution took down her name, and then asked her a question. He received no answer. He repeated it; but the girl was silent. She held down her head, and seemed half fainting.

‘You *must* reply,’ said the judge.

The girl raised her eyes, and said, in a low supplicating tone, ‘He’s my father.’

The judge shook his head. ‘It’s a very painful task,’ said he, ‘but there’s no alternative.’

The girl uttered not a word, and the court-room became so hushed that even the hard breathing of the witness was audible.

‘I must have a decided answer,’ said the judge, gravely, yet mildly, for he respected the feelings which dictated her course. ‘Will you answer the question put by the district attorney?’

‘I will not,’ was the firm reply.

The face of the judge grew a little flushed, and he compressed his lips, as if the duty which now rested with him were an unpleasant one. But before he had time to speak, the district attorney rose, and muttering in a tone loud enough to be heard, ‘I will not slay the parent through the child,’ said: ‘If the court please, I withdraw the question. I’ll call another witness.’

The judge bowed, and the girl was led away.

Rust had risen to his feet as if to speak, but he sat down, and the trial proceeded. The whole of that day passed in the examination of witnesses; so did the day following. Then came the summing up of the lawyers, and the charge of the judge to the jury. During the whole time the crowd came and went, but at all times the room was thronged. The jury went out; still the crowd hung about the Hall. It grew dark; but they could not go to their homes until they knew the result; but round and round the Hall, and through the avenues of the Park, they wandered, watching the dim light in the jury room, and wondering what the verdict would be. One of them stole up to the gray-headed constable who watched at the door, and inquired what the chance was; and as the old man shook his head, and muttered that they leaned toward a fatal verdict, he rubbed his hands with glee, and hastened to communicate the tidings to those below. Twelve—one—two—three o’clock at night came; still the twelve men held out, and still the judge, an upright, conscientious, patient man, maintained his post, waiting for the verdict, and ready to solve any doubts or points of law that might arise. The court-room grew cold; the fires went out, except one near the bench, and where the prisoner was. Sixty or seventy persons were sitting in the dim recesses of the room, looking like dark shadows, resolved to await the result. A few stretched themselves on the benches, and others gathered in knots near the fire, and whispered together; and now and then there was a loud laugh, suddenly hushed, as the person who uttered it remembered where he was.

At last the judge went out, and left word with the officer to send for him if the jury agreed, or wanted his advice. The night waned; the sky grew gray in the east; and presently the day broke—but no verdict. At an early hour the judge returned, and the court-room filled again. Nine—ten—eleven. Suddenly there was a hum—a shuffling in the hall. The door was thrown open by the gray-headed constable, and the jury entered.

‘The jury’s agreed,’ cried the officer. There was a dead silence; and the foreman gave in the verdict:

‘GUILTY OF MURDER IN THE FIRST DEGREE!’

Rust moved not; no change of color or feature was perceptible, except a slight smile, and that too faded in a moment.

The trial was over; and the crowd poured through the streets, yelling with delight, and stopping those whom they met, to tell them that Michael Rust was doomed to die.

Rust sat without stirring, until an officer touched him, and told him that he must go. He then rose, and followed him without a word. The crowd gathered around him, as he went out; but he did not notice them. His brother walked at his side, but he heeded him not; and when he reached his prison, without uttering a word, he flung himself wearily upon his bed, and was soon sound asleep.

He awoke, a different man; and when his lawyer called to see him on the following day, he found him as fierce as a caged beast. He endeavored to utter some remark of consolation; but Rust impatiently motioned him to be silent. He spoke about a clergyman; but the reply was a laugh, so mocking and scornful, that he was glad to drop the theme.

‘Is the game ended?’ at last inquired Rust. ‘Is there no farther cast of the die left?’

The lawyer looked at him, as if in doubt of his meaning.

Rust, in response to the look, repeated the question. ‘Is there nothing more to be done, in that farce called the law? Is there no farther blow to be struck for life?’

‘We can appeal,’ replied the lawyer; ‘but there is little chance of success.’ He took Rust by the hand, and said in a soothing tone: ‘My poor friend, you must be prepared for the worst; for I cannot promise to save your life.’

Rust rose and stood directly in front of him; and pointing to a small coin which lay on the table, said: ‘Not the tenth part of *that* would Michael Rust give to have one hour added to his life; but I *will not* be driven from it. I *will not* be beaten down and crushed.’ He stamped furiously on the floor.

‘Fight!’ said he, fixing his glaring eye on the lawyer; ‘fight to the last; leave nothing untried; spare not gold; bribe—corrupt—suborn; do any thing; but do not leave the triumph to my enemies. It’s that that is tearing away at my heart. It’s *that* which is killing me,’ exclaimed he, bitterly, shaking his hands over his head.

‘We shall leave nothing untried,’ said the lawyer. ‘Perhaps too we may obtain a pardon, for if ever a murder was justifiable, that was.’

‘Pardon!’ exclaimed Rust with a sneer; ‘*pardon!* Because I defended my own flesh and blood; because the laws had forced upon *me* the task which *they* should perform! I must die, or sue for pardon. A noble thing is law!’

The lawyer was silent. He felt that Rust’s own previous criminal life had been his worst enemy, and that it was the disclosure of his own evil plans which had been in every mouth long before the trial, that had done much to harden the feelings of the jury, who in another case might have stretched a point to save him.

Merely repeating what he had already said, that every thing should be tried, he took his leave.

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Several weeks elapsed. The appeal was made, and was unsuccessful; the decision of the court below was affirmed; and nothing was left but that the sentence of the law should be enforced. Rust still maintained his indifferent bearing. All attempts to move him to any thing like repentance were unavailing. Pious men had conversed with him, but he had turned a deaf ear to their words; clergymen, too, anxious even at the last hour to turn his

thoughts to holier things, had called upon him, but were equally unsuccessful; and at last he forbade them admission.

It was just about dusk, on the day previous to that fixed for his execution, that he was sitting in his cell, when he was aroused by the opening of the door. He looked up, and observed a dim figure just inside the door, cowering as if with fear; but it was so dark that he could not distinguish more than its mere outline.

‘What do you want?’ demanded he, harshly. ‘Am I a wild beast, that you have come to stare at me?’

The only reply was a low, suppressed cry, as of one endeavoring to stifle down severe pain.

Rust rose up, advanced to the figure, and with a sudden jerk threw off the cloak which enveloped it. It was his own child.

‘So it’s *you!*’ said he, bitterly, as he turned from her. ‘And you’ve come to see your work. Look at me well. You’ve succeeded to your heart’s content.’

The girl endeavored to clasp his hand, but he flung her from him; and facing her, said: ‘What you have to say, say at once, and be gone. There is little policy in seeking me out now, for I have nothing to give.’

The girl cast herself at his feet, in a passion of grief. ‘Oh! father! dear father! I ask nothing, except your forgiveness. Give me *that*, for the love of GOD! I ask nothing more. Do not refuse me that, as you hope for forgiveness of your own sins!’

‘There was a time,’ said Rust, ‘when I could not have resisted those tones, when I could have refused you nothing. My very heart’s blood was yours; but I am changed—changed indeed; since not a single spark of tenderness for you is left; not even the shadow of the love which I once bore to you. You are a stranger to me; or worse than that, you are *she*, whose wanton conduct has placed me here, and to-morrow will lead me to the gallows.’

The girl rose up hastily, and said in a quick husky voice:

‘Farewell, father; I will not stay until you curse me, for I fear it may come to that. May GOD forgive both you and me! I have done wrong, and most

bitterly have I suffered for it.'

She caught his hand, pressed it to her lips, which were hot as fire, and left the cell.

That was the last time that the father and daughter ever met.

The gaoler soon afterward brought in a light, and asked Rust if he wanted any thing; and on being answered in the negative, went out.

The night wore on heavily. Rust heard the clock, as its iron tongue struck the successive hours from his life. At last the hour of midnight sounded. He took out his watch, wound it up, and set it.

'Your life will last longer than mine,' said he, as he held it to the light, and examined the face. He then placed it on the table, and leaning his head on his hand, contemplated it for a long time. Time was hurrying on; for while he was sitting thus, the clock struck—one. He looked about the room; went to the door, and listened; then resumed his seat, and thrusting his hand in his bosom, drew out a small vial, containing a dark liquid. He held it to the light; shook it; smiled; and applying it to his lips, swallowed its contents.

'I'll disappoint the sight-seers,' said he. He raised the light; took a long and earnest survey of the room; undressed himself; sat on the edge of his bed, for a moment, apparently in deep thought; then got into bed and drew the cover closely about him.

'Now, then,' said he, 'the dream of life is past. I'll soon know whether there is any waking from it.'

These were his last words; for when the cell was opened in the morning, he was dead in his bed. As in life, so in death, his own evil acts clashed with his interests; for at an early hour in the morning a messenger arrived with a pardon. In consideration of the heinous nature of the provocation, which had led to the commission of Rust's crime, and of the inadequate punishment inflicted by the laws for such offences, the governor had remitted his sentence.

NIAGARA.

BEHOLD! again I view thee, in thy majesty and might,
Thy broad sheet flashing in the blaze of morning's glorious
light;
I mark thee maddened in thy fall, and pale with hoary rage,
And fretting in thy passion, that hath boiled from age to age.

Like thunder on my startled ear, thine everlasting roar
Hath broken, and reverberates from shore to echoing shore;
Continuous and fearful, with dread power in its tone,
That shakes the earth's foundations and rives the solid stone!

How tremulous beneath the shock the fearful earth hath
grown!
Reeling beneath the mighty plunge, it sighs with ceaseless
moan;
Now rush thy waves, with frenzy wild, in foam of dazzling
white,
Now, placidly they sweep along, with ever-changeable light.

O, wondrous Power! O, giant Strength! how fearful to
behold,
Outstretched on yon o'erhanging crag, thy mad waves
downward rolled:
To look adown the cavernous abyss that yawns beneath—
To see the feathery spray flash forth in many a glittering
wreath!

Voluminous and ceaseless still, forever swift descend
The waters in their headlong course, then turning,
 heavenward wend:
Now, disenthralled, their essence hath its spirit-shape
 resumed;
Bright, bodiless and pure, its fright to yon empyrean
 plumed!

The Falls, 1842. CLAUDE HALCRO.

TO MARY.

I WONDER if the magic spells
That in the days of yore
Bewitched so oft poor harmless folks
(Unlucky wights!) are o'er?

I can't believe it, for I've felt
The witchery of thy smile;
I've felt thy magic arts, and yet
I've loved thee all the while.

Is it the gleam of snowy teeth,
Or wave of silken tress,
That brings me to thy side, to gaze
Upon thy loveliness?

It cannot be, for I have seen
Full many a maid as fair;
I've seen as ruby lips before,
I've seen as glossy hair.

Some dark enchantress has bequeathed
To thee her magic art,
And thou hast bound me with thy spell,
And stolen all my heart.

HORACE.

LITERARY NOTICES.

CURIOSITIES OF LITERATURE, AND THE LITERARY CHARACTER
ILLUSTRATED. By I. C. D'ISRAELI, Esq., D. C. L., F. S. A. With
Curiosities of American Literature. By RUFUS W. GRISWOLD.
Complete in one volume. New-York: D. APPLETON AND
COMPANY, Broadway.

THE ensuing remarks refer rather to the Supplement to D'ISRAELI'S 'Curiosities of Literature,' edited by Rev. RUFUS W. GRISWOLD, than to the well-known work to which it adds its attractions. It is an excellent collection of the many odd and quaint and foolish and good things which our forefathers 'did and performed.' Mr. GRISWOLD has spiced his work with a variety, though he has done it more judiciously than a splenetic author whom he introduces in his work, who, in a vexatious mood at some severe criticisms on a former book, puts a dozen or more rows of interrogation and exclamation-points, commas, semicolons, etc., and tells his readers 'they may pepper and salt it as they please.' Mr. GRISWOLD well understands the history of American literature; and we venture to say there is no man in the country who knows the names and contents of so many American books as he. This knowledge he has found of great service to him, enabling him to lay his hand at once on those things most worthy of preservation. If he had understood the linking process a little better, it would perhaps have added to the interest of his work. A sort of running commentary would have given greater vivacity to the numerous extracts. The way isolated specimens of an author are introduced affects very much the impression they make. But Mr. GRISWOLD has succeeded well in gathering up the ravelled ends of our early literature; and the present edition of D'ISRAELI'S Curiosities of Literature will be the only one for the future in the American market. The most

‘curious’ part of our literary history is embraced in the revolution, with the short period preceding and following it. The British and Tories furnished endless themes to the pasquinader and ballad-maker, while the grave rights involved in the struggle called forth the efforts of more serious and thoughtful pens. The Puritans of New-England wrote most; and there is a union of the soundest sense with the most childish folly, the strongest character with the weakest prejudices in our good Yankee forefathers, that is quite incomprehensible. Like the Puritans of England in the time of CROMWELL, when called into the hall of debate to discuss the rights of man, or into the field to battle for them, he were a bold man who dare smile at them. Yet in their religious acts they were often bigoted, intolerant and puerile. The same incongruity is seen in their tastes. Men of deep poetical sentiment, they often murdered poetry for conscience sake. A man who could write a defence of the colonies with a pen that fairly glowed with the burning Saxon that fell from it, would not be shocked at all at the impropriety of the following epitaph on a tomb-stone:

‘Here lies Jonathan Auricular,
Who walked in the ways of God perpendicular.’

Mr. GRISWOLD gives us a specimen of the versification of the 137th psalm, in the Bible; one of the sweetest lyrics ever written, beginning ‘By the rivers of Babylon there we sat down; yea, we wept when we remembered Zion; we hanged our harps upon the willows,’ etc. This psalm, whose exquisite beauties are so well preserved in our common English version, was put into verse with the rest of the psalms, by our pious forefathers. To their credit we can say, however, that the authors of the first version declare that they ‘have attended to conscience rather than to elegance’ in completing their work. We cannot excuse President DUNSTER of Harvard College, so easily, who revised the edition and sent it forth with the advertisement that they had in it a ‘special eye both to the gravity of the phrase of sacred writ, and to the sweetness of the verse;’ especially when we find this same sweet psalm completely murdered by him. After stumbling along through two stanzas, he thus paraphrases. ‘They that led us into captivity,’ he says:

REQUIRED of us a song, and thus

Askt mirth us waste who laid,
Sing us among, a Zion's song,
Unto us then they said.

The LORD's song sing can we, being
In stranger's land?—then let
Lose her skill my right hand if I
Jerusalem forget.

Let cleave my tongue my palate on
If mind thee doe not I,
If chief joys o'er I prize not more,
Jerusalem my joy,' etc., etc.

Such wretched stuff as this our good forefathers sung with the profoundest gravity; and those who thus murdered the king's English and the Hebrew's poem were called 'poets!' Yet this same age could produce such poets as Mrs. ANN BRADSTREET, of whom her great panegyrist, JOHN NORTON, in a poetical description of her says:

'Her heart was a brave palace, *broad street*,
Where all heroic simple thoughts did meet,
Where nature such a tenement had ta'en,
That other souls to hers dwelt in a lane.'

The *pun* here is good, but the comparison might have been dropped sooner without damage. The poem of Mrs. BRADSTREET, entitled 'Contemplations,' possesses a great deal of merit, and proves her to be worthy of the extravagant praise of her extravagant admirer. The extracts from the poetry of Governor WOLCOTT are very favorable to the poetic reputation of the governor. But the richest thing in the whole collection is the 'Simple Cobbler of Aggawam,' occupying ten columns. The king-fashionable ladies, and long-haired young gentlemen, are successively put on the cobbler's lapstone and hammered most industriously. And we must say, cobbler as he is, he appears to us to give vastly more *blows* than he takes stitches. This part of the work alone is worth the price of the whole book. It is quite too long to quote entire, and a mere extract would do it injustice. FRENEAU was a rare character, and his pasquinades on RIVINGTON, a tory editor, are rich

specimens. The confession he puts in the mouth of RIVINGTON, in his 'Address to the Whigs of New-York' immediately after the close of the war, is equal to 'Death and Dr. Hornbook' on the poor Scotch quack.

This RIVINGTON, however, was not a more unlucky dog than another tory named BENJAMIN TOWNE, editor of the 'Pennsylvania Evening Post.' Supposing the cause of the rebels to be hopeless, he undertook to win favor and reward from the British by the most unsparing abuse of the Americans. But when the cause of freedom finally triumphed, the unlucky editor was left on the sand. Without money, without patrons, he found himself in the midst of those whom he had traduced, and dependent on them for a livelihood. In this emergency, he goes to the celebrated Dr. WITHERSPOON for aid. The stern republican doctor would listen to nothing, unless TOWNE would make his peace with his country by a most humble confession. Finding no other resource, he consented to publish in his paper any thing the doctor would write. This confession is given by Mr. GRISWOLD at length; and if the tory editor does not make himself out a most precious scoundrel, the fault is certainly not with the doctor. He acknowledges that he had lied without limit, and was willing to publish bigger lies had they been brought him; he assures the people that he did every thing for personal gain, and was willing to do and say any thing now for the same purpose. He was moreover a brave man! 'I hope,' says he, 'the public will consider that I have been a timorous man, or if you will, a coward from my youth, so that I cannot fight; my belly is so large that I cannot run; and I am so great a lover of eating and drinking that I cannot starve. When these things are considered, I hope they will fully account for my past conduct, and procure me the liberty of going on in the same *uniform*, tenor for the future.' The collection teems with rich matter, and we have not even skimmed the surface. Here and there only have we touched a point. We could fill twice the space allotted us, with the revolutionary ballads alone, for the gathering of which Mr. GRISWOLD deserves our thanks. New-England epitaphs come in for their share; and there is a capital anecdote of Dr. DWIGHT and Mr. DENNIE, at which we gazed and pondered wistfully for a long time, in the hope, (a vain one, we are sorry to say,) of being able to present it to our readers.

This collection of Mr. GRISWOLD brings together and preserves what was before floating around and slowly disappearing with the lapse of time. Our

early literature is now grafted on a work which will secure its life; and those peculiar characteristics of a remarkable age, which grow more valuable the more distant the point from which we view them, will never pass away. Nothing is more difficult than to preserve the scanty and fugitive literature of an early age. A *great* work will live; but those fragments which are thrown off here and there, in a careless or earnest moment, perish, because they *are* fragmentary. They do not belong together in a book, and cannot stand alone. In a later period of the history of the country, this would be of little consequence, because there is enough else to stand as exponents of that age. But these fragments are all that is left to tell us how our fathers felt, and thought, and spoke. Without them, we are without every thing. This collection greatly enhances the value of the English edition, and cannot fail to increase its already extensive sale.

NORTH-AMERICAN REVIEW FOR THE APRIL QUARTER. Number CXXIII. pp. 268. Boston: OTIS, BROADERS AND COMPANY. New-York: C. S. FRANCIS AND COMPANY.

THERE has not been issued for many a long month so good a number of this excellent and venerable Quarterly, as the one before us. It abounds in a good variety, alike of theme and style; and there is a manly, vigorous tone, and an independence of thought and expression, which we have not before observed, at least in so marked a degree. The number opens with a caustic and well-deserved critique upon the writings of JAMES, the novelist; and we are the more gratified at this, because the defects of this romancer are the besetting sins of certain of our own novelists, who had at one time a fair degree of transient popularity. A lack of skill in the creation or accurate delineation of individual character, which, instead of representing men and women, are didactic exhibitions of the author himself, projected into various personages, and all bearing an unmistakable family resemblance—this it is that is at the bottom of the sudden decadence into which the writings of one or two of our more prolific romancers have fallen, past all redemption; and this is the great fault of Mr. JAMES. ‘To be successful in the exact delineation of character,’ says the reviewer, ‘requires a rare combination of powers—a large heart and a comprehensive mind. It is the attribute of universality; it can be obtained only by outward as well as

inward observation; not by that habit of intense brooding over individual consciousness, of making the individual mind the centre and the circumference of every thing, a habit which only makes of the writer an egotist, and limits the reach of his mind.' Mr. JAMES has certain types of character which he generally reproduces in each successive novel. His heroine is idealized into something which is neither spirit, nor flesh and blood. 'His women, like his men, are ideas and feelings embodied; they are constructed, not created nor painted; built, not drawn. They do not stand boldly from the canvass.' His rascal is an unmitigated rascal, intermingled with the machinery of his plot, and appearing regularly in every novel. 'Mr. JAMES is a great spendthrift of human life. The carelessness with which he slays, evinces the feebleness with which he conceives. If his personages were real to his own heart or imagination, he would not part with them so easily, nor kill them with such *nonchalance*.' A very faithful description is given of Mr. JAMES's style; and it is one which will apply with equal force, though certainly in a subordinate case, to certain of our own novelists, whom the reader will readily recall, but whom it would be invidious perhaps to mention. 'His style,' says the reviewer, 'has little flow and perspicuity, and no variety. It is usually heavy, lumbering, and monotonous. Half of the words seem in the way of the idea, and the latter appears not to have strength enough to clear the passage. Occasionally, a short, sharp sentence comes like a flash of lightning from the cloud of his verbiage, and relieves the twilight of his diction. There are but few felicitous phrases in his manifold volumes. He has hardly any of those happy combinations of words which stick fast to the memory, and do more than pages to express the author's meaning. He has little command of *expression*. His imagery is common; and his manner of arranging a trite figure in a rich suit of verbiage, only makes its essential commonness and poverty more apparent. His style is not dotted over with any of those shining points, either of imagery or epigram, which illumine works of less popularity and pretension.'

The review of Mr. JAMES's works is followed by an excellent critique upon the poems of Mr. JAMES RUSSELL LOWELL, which receive due commendation. There are some 'rough truths' in the reviewer's opening remarks. 'We have among us little companies of people, each of which 'keeps its poet,' and not content with that, proclaims from its small corner, with a most conceited air,

that its poet is the man of the age.' Instances are mentioned, closing with this irresistible climax: '*One man* thinks CORNELIUS MATHEWS has written the finest American poetry!' In allusion to the whimsical peculiarities of Mr. CARLYLE—a man of genius, learning, and humane tendencies—and their effect upon the servile tribe of imitators, the reviewer observes: 'The study of German became an epidemic about the time that CARLYLE broke out; the two disorders aggravated each other, and ran through all the stages incident to literary affectation, until they assumed their worst form, and common sense breathed its last, as the '*Orphic Sayings*' came; those most unmeaning and witless effusions—we cannot say of the brain, for the smallest modicum of brains would have rendered their appearance an impossibility—but of mere intellectual inanity.' The American Euphuists, being possessed of the demon of affectation, strive to set themselves apart from the common herd, imagine that they are inhabitants of a sublimated ether, and look down with pitying contempt on all who profess an inability to detect a meaning in their vapid and mystical jargon. 'These be *truths*;' and our readers will bear us witness that months ago, with but little variation of terms, we promulgated them in these pages.

There is an excellent paper upon the 'Forest Lands and the Timber Trade of Maine;' it is full of interest, despite the nature of its general theme. The 'Boundary Question' did not indicate the first usurpations of the British in Maine. It was the acts of parliament that forbade the use of water-falls, the erecting of machinery, of looms and spindles, and the working of wood and iron; that set the king's arrow upon trees that rotted in the forest; that shut out markets for boards and fish, and seized sugar and molasses, and the vessels in which these articles were carried; and that defined the limitless ocean as but a narrow pathway to such of the lands that it embosoms as wore the British flag; it was these restrictions, to release which the revolution was created. The articles upon the various 'Theories of Storms,' and 'The Recent Contest in Rhode-Island,' we have not found leisure from pressing avocations to peruse. The paper on 'Architecture in the United States' is from the pen of one who '*knows* whereof he writes;' and he has not been sparing of deserved satire upon the sad and ridiculous mistakes of those among us who are miscalled architects. High praise is awarded to our Trinity Church, now in progress of erection. 'In size, in the delicacy and propriety of its decoration, and in the beauty of its general effect, it

surpasses any church erected in England since the revival of the pointed style.' In a notice of the 'Writings of Miss BREMER,' MARY HOWITT 'suffers some,' on account of a certain hysteric preface of hers to a translation of one of the Swedish lady's productions, in which she complains of the American translations from this popular writer. Among the 'Critical Notices' which compose the last article in the Review, is a critique upon Mr. CORNELIUS MATHEWS'S 'Writings,' including his poem on 'Man in his Various Aspects,' which embodies the opinions we have ourselves expressed in relation to them. Since the unfounded charge of being 'actuated by private pique,' which was brought against us by the author, cannot be assumed against the North American Review, we trust that our 'complainant' will not object that we fortify our own estimate of his literary merits by grave authority. The following is an extract:

Mr. MATHEWS has shown a marvellous skill in failing, each failure being more complete than the last. His comedy of 'The Politicians' is 'the most lamentable comedy;' and the reader exclaims, with Hippolyta, 'This is the silliest stuff that ever I heard.' The 'Career of Puffer Hopkins' is an elaborately bad imitation of DICKENS; and must be ranked in fiction where 'The Politicians' stands in the drama. It aims at being comical, and satirical upon the times. The author studies hard to portray the motley characters which move before the observer in a large city; but he has not enough of the vision and the faculty divine, to make them more than melancholy ghosts of what they profess to be. The attempts at humor are inexpressibly dismal; the burlesque overpowers the most determined reader, by its leaden dulness. The style is ingeniously tasteless and feeble. He who has read it through can do or dare any thing. Mr. MATHEWS suffers from several erroneous opinions. He seems to think that literary elegance consists in the very qualities which make elegance impossible. Simplicity and directness of language he abominates. When he has an idea to express, he aims, apparently, to convert it into a riddle, by inventing the most forced, unnatural, and distorted expressions. If the thing can be obscured, he is sure to obscure it. He seems to say to the reader, 'Can you guess? do you give it up?' But then, less obliging than the maker of charades, he leaves the puzzled victim without an explanation at last. He studies a singularity of phrase at once crabbed and finical, and

overloads his pages with far-fetched epithets, that are at once harsh and unmeaning. He seems to have been told that he has wit and humor, and—strange delusion!—to believe it. He writes as if he imagined that he possessed the inventive power: never was a greater mistake. These qualities and these mistakes make his prose writings unreadable and intolerable, at least all the later ones. But when to the charms of his ordinary style are added the attractions of verse, then the sense aches with the combined and heightened beauties. The present volume exaggerates all his literary vices. The plan of these poems is very well; if executed with taste and power, the volume would have been interesting. As it is, we have here and there a good line, a striking figure, or a bold expression. But most of the poems are deformed by harshness of versification, feebleness of thought, and every species of bad writing. Compounded words, never seen before, and impossible to be pronounced, epithets detailed on service for which they are wholly unfit, figures that illustrate nothing but their own absurdity, and rhymes that any common book would die of, astonish the reader on every page. Had the poet purposely aimed to twist the English language into every conceivable form of awkwardness; had he designed to illustrate, for the use of beginners, every possible defect and every positive fault of diction; his success in accomplishing the object could not have been more complete.’

We annex a few of the ‘original’ beauties which the reviewer has selected from Mr. MATHEWS’S poem. Two or three of them, we perceive, are identical with those which we ourselves selected from that luminous effort of the mind and the imagination:

‘WE had marked many characteristic passages in the present volume, to illustrate the observations we have felt called on to make. But we have space only for a few lines. In the first poem, besides many other absurdities of thought as well as expression, occurs this line:

‘Strides he the globe, or CANVASS-TENTS the sea.’

Who ever heard of the verb to *canvass-tent*? To *canvass-back* the sea would be much more rational.

In the second poem we find this luminous line:

‘CLEAR AS THE CLEAR, round midnight at its full,’

which must be very clear indeed.

What can be the meaning of the following words in the ‘Teacher?’

‘Whose eyes cry light through all its dawning void.’

Again, in the ‘Farmer:’

‘Fierce revolutions rush in WILD-ORBED haste.’

In the ‘Mechanic,’ the following very intelligible direction is given to the architect:

‘In the first Builder’s gracious spirit work,
Through, hall, through enginery, and TEMPLES MEEK,
IN GRANDEUR TOWERED, OR LAPSING BEAUTY-SLEEK,
Let order and creative fitness shine.’

In the ‘Merchant,’ the poet affirms:

‘Undimmed the man should through the trader shine.
And show the soul UNBABIED by his craft.’

This can only mean, that the soul of the trader ought not to be supplied with babies by his craft.

The ‘Sculptor’ ends with this prediction:

‘And up shall spring through all the BROAD-SET land,
The FAIR WHITE PEOPLE of thy love unnumbered.’

In the ‘Journalist,’ we find the following *directions to the printer*:

‘Hell not the quiet of a Chosen Land,
Thou grimy man over thine engine bending.’

Hell, as a common noun, is a sufficiently uncomfortable idea; but when converted into an active verb, it becomes positively alarming.

The poet thus advises 'The Masses:'

'In vast assemblies calm, let order rule,
And every shout a cadence owning,
Make musical the vexed winds moaning,
AND BE AS LITTLE CHILDREN AT A SINGING-SCHOOL.'

And the 'Reformer' is told to

'Seize by its horns the shaggy Past,
Full of uncleanness.'

A PRACTICAL TREATISE ON MIDWIFERY. By M. CHAILLY, M. D., Professor of Midwifery, etc., etc. With two hundred and sixteen wood-cuts. Translated from the French, and edited by Dr. GUNNING S. BEDFORD, of the University of New-York. In one volume. pp. 530. HARPER AND BROTHERS.

THIS work comes to us under the fairest auspices. The author, M. CHAILLY, is a distinguished Parisian lecturer on Obstetrics, a pupil of the eminent PAUL DUBOIS, of the University of Paris, and generally recognized as the exponent of the views of that celebrated *accoucheur*. By all who are familiar (and who of the medical world is not?) with the high reputation of DUBOIS for sound medical philosophy and unbounded practical knowledge, it has been long regretted that the just opinions he so eloquently promulgates in the lecture-room have never assumed the diffusible shape of a printed book. M. CHAILLY, in the work before us, supplies us with that which has been so much desired, and which Prof. DUBOIS himself, from some cause not easily appreciated, has so long withheld from the world. The Parisian board of public instruction has moreover stamped the work of M. CHAILLY with their approbation, and fixed it as the standard text-book of the French medical schools. This is a promise of excellence which a diligent perusal of the work will fully confirm. Professor BEDFORD, the American translator, who

has performed his duty as might be expected from his high character and prominent position, as Professor of the flourishing medical school of the University of New-York, felt the want of a good text-book for the student, and a sound practical guide for the physician, and has exhibited a sound judgment in this selection to supply that want. The work of VELPEAU, hitherto unquestionably the most popular book with the medical profession, is diffuse and speculative. The present work is direct, concise, and complete. Dr. BEDFORD has enriched the original with copious notes, the result of his own extensive experience and observation. The publishers have performed their duty well, in presenting the work in a handsome library form; and it is only the very extensive business facilities of the MESSRS. HARPERS that could afford so full and well illustrated a *scientific* book at so reasonable a price.

THE LITERARY REMAINS OF THE LATE WILLIS GAYLORD CLARK:
including the 'OLLAPODIANA' papers, 'The Spirit of Life,' and a
choice Selection from his Miscellaneous Prose and Poetical
Writings. With a Memoir of the Author. Edited by LEWIS
GAYLORD CLARK. Complete in five Numbers of ninety-six pages
each. New-York: BURGESS, STRINGER AND COMPANY.

It does not become us, perhaps, to enlarge upon the merits of this work, the character of which is known to many of our readers. As there are *other* many of them, however, who may not be conversant with much of the prose which makes up a large portion of its contents—having become subscribers to this Magazine since the 'Ollapodiana' papers and the other prose miscellanies appeared in its pages—we shall venture to present a few extracts, and to preface them with the following remarks of the able Editor of the *United States Gazette*, of Philadelphia, upon the writer's merits; praise, we may add, which has been confirmed by the kindred commendation of almost every journal in the Union: 'Messrs. BURGESS, STRINGER AND COMPANY, of New-York, have commenced the publication, in a series of numbers, of the Literary Remains of WILLIS GAYLORD CLARK. The first number has been for some days upon our table, and after a biographical notice of the author, contains a portion of the 'Ollapodiana,' those admirable papers furnished for the KNICKERBOCKER. Almost every body, who

read five years ago, knows the *beauties* of CLARK's composition. They are permanent beauties; beauties that always are to be found by those who ever had taste to admire them. They are not dependant upon a jingle of words for temporary popularity; they appeal from the heart to the heart, in language that knows no variation of time. They express sentiments that are permanent, feelings common to mankind; and those who would profit by a delicate delineation of the affections of the human heart, will love the poetry of CLARK. Those who would have a broader seal set upon manners, and the peculiarities of the mind set forth in pleasant grotesqueness, will smile at the 'Ollapodiana.' But all will profit by *all*; and we regard it as a literary obligation conferred upon the age, and carrying with it a moral obligation also, to multiply the copies of such writings as CLARK prepared. We express not our feelings, when we write of CLARK as an author. There are some of us who knew his heart better than he did, and who have never forgotten his worth. These monuments, that are erected to his fame from his own works, like the trophies of victory, moulded to a triumphal pillar, denote public respect. Individual feeling loves a silent flow, that is constant and hearty.'

If the reader has had the fortune to travel in a canal-packet, in the summer solstice, he will readily recognize the faithfulness of the following picture:

'AT first, when you embark, all seems fair; the eleemosynary negro, who vexes his clarionet, and governs its tuneful ventiges, to pay for his passage, seems a very Apollo to your ear; the appointments of the boat appear ample; a populous town slowly glides from your view, and you feel quite comfortable and contented. As yet, you have not gone below. 'Things above' attract your attention—some pretty point of landscape, or distant steeple, shining among the summer trees. Anon, the scenery becomes tame, and you descend. A feeling comes over you as you draw your first breath in the cabin, which impels to the holding of your nose. The cabin is full; you have hit your head twice against the ceiling thereof, and stumbled sundry times against the seats at the side. Babies, vociferous babies, are playing with their mothers' noses, or squalling in appalling concert. If you stir, your foot treads heavily upon the bulbous toes of some recumbent passenger; if you essay to sleep, the gabble of those around you, or the noisy gurgle of a lock, arouses you to consciousness; and then, if you are of that large class of

persons in whom the old Adam is not entirely crucified, then you swear. Have you any desire for literary entertainment? Approach the table. There shall you find sundry tracts; a copy of the Temperance Recorder; Goldsmith's Animated Nature, and Plutarch's Lives. By and by dinner approaches: and oh! how *awful* the suspense between the hours of preparation and realization! Slowly, and one by one, the dishes appear. At long intervals, or spaces of separation from each other—say five for the whole length of the boat—you behold tumblers arranged, with two forlorn radishes in each. The butter lies like gravy in the plate; the malodorous passengers of the masculine gender draw nigh to the scanty board; the captain comes near, to act *his* oft-repeated part, as President of the day. Oh, gracious! 'tis a scene of enormous cry and scanty wool. It mends its description. • • • But the grand charm and scene of a canal packet is in the evening. You go below, and there you behold a hot and motley assemblage. A kind of stillness begins to reign around. It seems as if a protracted meeting were about to commence. Clergymen, capitalists, long-sided merchants, who have come from far, green-horns, taking their first experience of the wonders of the deep on the *canawl*, all these are huddled together in wild and inexplicable confusion. By and by the captain takes his seat, and the roll of berths is called. Then, what confusion! Layer upon layer of humanity is suddenly shelved for the night; and in the preparation, what a world of bustle is required! Boots are released from a hundred feet, and their owners deposit them wherever they can. There was one man, OLLAPOD beheld him, who pulled off the boots of another person, thinking the while—mistaken individual!—that he was disrobing his own shrunken legs of their leathern integuments, so thick were the limbs and feet that steamed and moved round about. Another tourist, fat, oily and round who had bribed the steward for two chairs placed by the side of his berth, whereon to rest his abdomen, amused the assembly by calling out; 'Here, waiter! bring me another pillow! I have got the ear-ache, and have put the first one into my ear!' Thus wore the hours away. Sleep, you cannot. Feeble moschetoës, residents in the boat, whose health suffers from the noisome airs they are nightly compelled to breathe, do their worst to annoy you; and then, Phœbus Apollo! how the sleepers snore! There is every variety of this music, from the low wheeze of the asthmatic, to the stentorian grunt of the

corpulent and profound. Nose after nose lifts up its tuneful oratory, until the place is vocal. Some communicative free-thinkers talk in their sleep, and altogether, they make a concerto and a diapason equal to that which Milton speaks of, when through the sonorous organ ‘from many a row of pipes, the sound-board breathes.’ At last, morning dawns; you ascend into pure air, with hair unkempt, body and spirit unrefreshed, and show yourself to the people of some populous town into which you are entering, as you wash your face in canal water on deck, from a hand basin! It is a scene, I say again, take it for all in all, that throws description upon the parish, and makes you a pauper in words. ‘*Ohe jam satis!*’

Let the old bachelor, who ‘longs but fears to marry,’ perpend the annexed invitation to matrimony:

‘SOME of my contemporaries have supposed that the estate of a Benedict forbiddeth the resident therein to disport himself as aforetime, in the flowery fields of fancy, and to ambulate at random through the remembered groves of the academy, or the rich gardens of imaginative delight. Verily this is not so. To the right-minded man, all these enjoyments are increased; the ties that bind him to earth are strengthened and multiplied: he anticipates new affections and pleasures, which your cold individual, careering *solus* through a vale of tears, with no one to share with him his gouts of optical salt water, wots not of. As a beloved friend once said unto me: ‘When a good man weds, as when he dies, angels lead his spirit into a quiet land, full of holiness and peace; full of all pleasant sights, and ‘beautiful exceedingly.’ One’s dreams may not all be realized, for *dreams* never are; but the reality will differ from, and be a thousand fold sweeter, than any dreams; those shadowy and impalpable though gorgeous entities, that flit over the twilight of the soul, after the sun of judgment has set. I never hear of a friend having accomplished hymenization, without sending after him a world of good wishes and honest prayers. Amid the ambition, the selfishness, the heartless jostling with the world, which every son of Adam is obliged more or less to encounter, it is no common blessing to retire therefrom into the calm recesses of domestic existence, and to feel around your temples the airs that are

wafted from fragrant wings of the Spirit of Peace, soft as the breath which curled the crystal light

——‘of Zion’s fountains,
When love, and hope, and joy were hers,
And beautiful upon her mountains,
The feet of angel messengers.’

No common boon is it—we speak in the rich sentence of a German writer—to enjoy ‘a look into a pure loving eye; a word without falseness, from a bride without guile; and close beside you in the still watches of the night, a soft-breathing breast, in which there is nothing but paradise, a sermon, and a midnight prayer!’

Here is a specimen of ‘the show-man’s trick,’ which, as old MATTHEWS used to say, ‘made a great laugh at the time:’

‘IT is diverting in the extreme to observe the pompous grandiloquence in the advertisements of the amusement-furnishing public, about Christmas and New-Year. Sublimity glares from the theatrical hand-bill, and the menagerie *affiche*. Curiosities, then, have a ‘most magnanimous value.’ I remember, not long ago, that I desired a lovely lady, a French countess, to accompany me to a Zoological Institute, to behold *an American Eagle*. I was pleased at the expressed wish which led me to make the invitation, and proud of the prospect of showing a living emblem of our country’s insignia to one who felt an interest in the subject. The bills of the institute set forth, that ‘the grand Columbia’s Eagle was the monarch of its tribe, measuring an unprecedented length from the tip of one wing to the other, in full plumage and vigor.’ The countess had never seen but one eagle, in the *Jardin des Plantes* at Paris, and that was a small one, and ungrown; so that her anticipations of novelty were as great as mine. We went, and with interesting expectancy, asked of the president of the institute, who was engaged in the noble pursuit of feeding a sick baboon with little slips of cold pork, to discover to us ‘Columbia’s eagle.’ He marshalled us to the other end of the institute, past the cages of lions, bears, libbards, and other animals—among which was a singular *quadruped*, with six legs—to the cage of the eagle. ‘There,’ he exclaimed, with

professional monotony, ‘there *is* the proud bird *of* our country, that *was* caught *in* the West, and *has* been thought to have killed many animals *in* his life-time. He *was* five hours and twenty-three minutes *in* being put into the cage, so strong *was* his wings. Look at him *clus*. He’ll bear inspection. Jist observe the keen *irish* of his eye.’

‘An involuntary and hearty laugh from us both, followed the sight, and the announcement. It was a dismal looking bird, about the size of a goodly owl, with a crest-fallen aspect, the feathers of the tail and wings dwindled to a few ragged quills; and the shivering fowl, standing on one leg, looked with a vacant, spectral eye at his visitors. Nothing could be so perfectly burlesque, and we enjoyed it deeply and long. I shall never be deceived by show-bills again.’

The following must close our quotations. We venture to say that it describes a scene which many a reader has more than once witnessed:

‘TALKING of a man’s making a hero of himself, reminds me of an old friend of mine, who is fond of telling long stories about fights and quarrels that he has had in his day, and who always makes his hearer his opponent for the time, so as to give effect to what he is saying. Not long ago I met him on ‘Change, at a business hour, when all the commercing multitudes of the city were together, and you could scarcely turn, for the people. The old fellow fixed his eye on me; there was a fatal fascination in it. Getting off without recognition, would have been unpardonable disrespect. In a moment, his finger was in my button-hole, and his rheumy optics glittering with the satisfaction of your true *bore*, when he has met with an unresisting subject. I listened to his common-places with the utmost apparent satisfaction. Directly, he began to speak of an altercation which he once had with an officer in the navy. He was relating the *particulars*. ‘Some words,’ said he, ‘occurred between *him* and *me*. Now you know that he is a much younger man than I am; in fact, about *your* age. Well, he ‘*made use of an expression*’ which I did not exactly like. Says I to him, says I, ‘What do you mean by that?’ ‘Why,’ says he to me, says he, ‘I mean just what I say.’ Then I began to burn. There was an impromptu elevation of my personal dandriff, which was unaccountable. I didn’t waste words on him; I just took him in this way,’ (here the old *spooney*

suited the action to the word, by seizing the collar of my coat, before the assemblage,) ‘and says I to him, says I, ‘You infernal scoundrel, I will punish you for your insolence on the spot!’ and the manner in which I shook him (just in *this* way) was really a warning to a person similarly situated.’

‘I felt myself at this moment in a beautiful predicament; in the midst of a large congregation of business people; an old gray-headed man hanging, with an indignant look, at my coat-collar; and a host of persons looking on. The old fellow’s face grew redder every minute; but perceiving that he was observed, he lowered his voice in the *detail*, while he lifted it in the worst places of his colloquy. ‘You infernal scoundrel, and caitiff, and villain,’ says I, ‘what do you mean, to insult an elderly person like myself, in a public place like this?’ and then, said he, lowering his malapropos voice, ‘then I shook him, so.’

‘Here he pushed me to and fro, with his septuagenarian gripe on my collar, as if instead of a patient much bored *friend*, I was his deadly enemy. When he let go, I found myself in a *ring* of spectators. ‘Shame, shame! to insult an old man like him!’ was the general cry. ‘Young puppy!’ said an elderly merchant, whose good opinion was my heart’s desire, ‘what excuse have you for your conduct?’

‘Thus was I made a martyr to my good feelings. I have never recovered from the stigma of that interview. I have been pointed at in the street by persons who have said as I passed them, ‘That’s the young chap that insulted old General ——, at the Exchange!’

We should not omit to state that the publishers have done ample justice to the work. It is beautifully stereotyped and printed upon new type and fine white paper, and the numbers are enclosed in very neat and tasteful covers. The work we are glad to say meets with a liberal and constant sale.

ITALY AND THE ITALIANS. In a Series of Letters. By J. T. HEADLEY.
In one volume, pp. 64. New-York: I. S. PLATT.

Mr. PLATT has commenced a series of publications, at a moderate price, which should secure a liberal share of the public favor. These 'Letters,' which form the initial number, are replete with interest. Many of them appeared in the original foreign correspondence of the '*Tribune*' daily journal, where they excited the admiration of the press, and 'the people' whom the press represents; but a large portion now see the light for the first time. Mr. HEADLEY has not given us, in tiresome detail, minute descriptions of galleries of art and public edifices; although his description of St. Peter's at Rome, (a 'nice building, with a dome handsomely scooped out,') is the most vivid picture of that world-renowned structure that we ever perused. He has wisely chosen rather to illustrate the people and country by things perhaps trifling in themselves, but which give to the reader a constant succession of 'sketches from Nature,' which are not only very pleasant to read, but which it is quite evident are exceedingly faithful. 'The condition of the people,' in short, 'occupies more space than the condition of art, simply because the latter is well known, while the former is almost wholly neglected.' Briefly, for 'brief must we be,' the book affords what Mrs. RAMSBOTTOM would call 'a supreme *cow-dyle*' (coup d'œil) of 'Italy and the Italians,' and is presented in a dress worthy of its internal merits.

EDITOR'S TABLE.

OUR old friend and correspondent 'HARRY FRANCO' cometh late, but he can never arrive too late to be welcome. Let us hope only that he will not object to being placed as it were 'below the salt,' instead of being seated with his peers at the more conspicuous board of the 'regulars.' He has deftly touched a fruitful theme, at which we have more than once hinted in this department of the KNICKERBOCKER.

THE IMPUDENCE OF THE FRENCH.

KEEP your tempers, Messieurs; we shall not quarrel. There is a difference between Impudence and Impertinence. The two words are often used synonymously by the vulgar, but they are no more alike than any other two words that begin with an I. 'When we behold an angel, not to fear is to be IMPUDENT,' says DRYDEN: 'We should avoid the IMPERTINENCE of pedants,' says SWIFT. These two great masters of the English tongue have well defined the difference between the two words. There is always an air of confident greatness about impudence that wins respect, and not infrequently success. ALEXANDER was assuredly the most impudent man of his time; so was CÆSAR; so was LUTHER. Even now, when half the human race has grown impudent, we cannot but wonder at the impudence of that obscure monk. GALILEO, too, was a very impudent fellow until the well-bred 'Rev. and dear Sirs' of his time taught him modesty. And CROMWELL! what an Arch-Impudence was he! And NAPOLEON! he put Impudence itself to the blush. And have there been no Impudences among us? It cannot be denied that our Fourth-of-July-men made a very impudent declaration, to say the

least of it. But these were all individual instances. The French are impudent as a nation. They have no sense of modesty. They insist that all the world shall eat French, drink French, talk French, dance French, and dress French. Did ever any traveller visit a city or town in any quarter of the globe in which a Frenchman had not set up a restaurant? FANNY ELLSLER was astonished when she landed at the American Hotel, to find that her dinner had been prepared by a Parisian cook; and yet she had come over here to show us her French steps. Simple Fanny! How did she think we could live without French cookery, if we could not live without French dancing? What traveller has ever visited a remote village that a French *modiste* had not visited before him? Is it possible to dine any where, without having a French bill of fare thrust into your hand, and some dish with an *à la* under your nose? Is there a living being in any part of the world willing to make oath to having visited a ball-room or a church without encountering a French dress or a French bonnet? The Quakers cannot; they would as soon wear scarlet ribbons as any other than French gloves and French muslins.

Untravelled New-Yorkers as they walk through Broadway, and see the names of Madame Grand-this and Mons. Grand-that '*from Paris,*' over every other shop-door, and see the French shoes, the French gloves, the French chocolate, the French clocks, the *liqueurs*, the *bon-bons*, the *bijouterie*, the *meringues*, the *pâtes-de-foi-gras*, in the windows, may think that the Gauls have marked us for their 'own peculiar;' but it is so in St. Petersburg, 'tis so in Constantinople, 'tis so in Lima, in the Banda Orientale, in Rio, in Mexico, in Montreal, in London, in Vienna, in Boston, in Philadelphia, in Grand Cairo—'tis so all over the earth. The Sorbonne and the Louvre rule the world. Can any body be tired, or weary, or dumpish? No. We must be *ennuyèd*, or *blazè*, or *fatiguè*, or something else ending in *è*. Does any lady ever give an evening party? No. Nothing but a *soirée*. Are there any more gatherings of friends? No; only *reünions*. Is it possible to dance a cotillion in English? Is there any body in New-York with sufficient moral courage to sleep upon any thing short of a French bedstead? Is there a chamber-maid who will lie upon any thing less than a *paliastre*? Are there any more fat, or plump, or round, or full people? No. Even Falstaff would be inclined to *embonpoint* if he were alive, in these days of Gallic supremacy. Well might VICTOR COUSIN and the rest of them declare that the French were not defeated at Waterloo. The allied armies

entered Paris it is true, but they made their Exodus in slavery. The English, Germans and Russians went home from France manacled with French fashions, and not a soul of them has dared to assert his independence since.

We are by no means sure that French cookery has not done more to preserve the peace of Europe, during the last twenty years, than all other causes put together. It is impossible to think of a war with France. The mind staggers under the supposititious case of the nations of the earth deprived of French *bon-bons*. Imagine the commerce with France suspended! Who would perfume us? who feast us? who dress us? Where would our gloves come from? what should we do for slippers? how should we be off for soap? Would there be any more ribbons? any more brandy fruits? any more meringues? any more chocolate? Where should we look for another BLANCARD, another FAUVEL-GOURAUD? Would there be any more dancing? any more fashions? any more any thing? The true *Mystères de Paris* nobody knows any thing about but the Parisians themselves, and they are too cunning to pronounce their open sesame loud enough to be heard by the rest of the world. How like gudgeons we all snapped at the bait of EUGENE SUE! But the Mysteries of Paris are written in a kind of Parisian Coptic, which none but the Parisian can read.

The English eat, or at least a portion of them do, and they cook, but who ever heard of an English eating-house, or of an English cook? We have heard of DOLLY's chop-house, but its reputation was gained by the quality of its guests rather than the merit of its cooks. For aught the world knows to the contrary, there is not an eating-house in any of the European capitals beside Paris. But every body knows the names, the situation, and even the *carte du jour* of at least a dozen restaurants in the French capital without ever having been there. The 'Rocher' is as well known as the Rock of Gibraltar, and Vervé and Châtelain have reputations as extended as those of Guizot and Theirs. Vatel is more famous than Vattel, and the cook will doubtless be remembered when the philosopher is forgotten: he will never die, at least, while the memory of Sevigné lives.

Not long since we saw on a sign-board, stuck up at the entrance of a cellar on the corner of Reade-street and Broadway, '*Au Rocher de Cancale*,' painted in very soup-maigreish looking letters, with an attempt at the representation of an oyster-shell. Now look at the impudence of the thing; at

the Frenchiness of it! Here we are with our Prince's Bays, our York-rivers, our Mill-ponders, our Shrewsburys, and Blue pointers, a shilling's worth of either worth all the shell-fish that ever grew on the French coast; and this Parisian sets up his sign in the midst of these marine riches, with a 'ROCHER DE CANCALE!' No other nation could have been guilty of such arrogance. No Englishman has ever had the temerity to insult us with an allusion to his dirty 'natives.'

What would be thought of an American who should have the presumption to open a House of Refreshment in the Rue St. Jacques or the Palais Royale, and announce to the Parisians that he would serve up for them Prince's Bay oysters, fried, stewed, roasted or in the shell; clam soup, pumpkin-pies, waffles, hoe-cakes and slap-jacks, or mush-and-milk and buck-wheats? Would the most inquisitive or most vulgar man in France venture within the doors of a house where such barbarisms were perpetrated? But why not, Monsieur? Why not, as well as for us to crowd the *salons* of the Messieurs who tempt us with their equally outlandish *carte à manger*, or who exclaim to us when we enter:

'MON salon est toujours gami,
Et mon buffet bien assorti,
Ou vante mon chablis,
Mes huitres, mes radis,
Ainsi que raes salmis
De perdrix:

Mes godiveaux au ris;
Mes tourtes, mes hachis;
Fameux pâlis, gros et petits;
Bœuf au naturel, au coulis;
Papillotes,
Gibelotes,
Matelotes,
Fines compotes,' etc., etc.

Why should not we send over some of our JENNINGSSES and STETSONS, our BERGALEWS and DOWNINGS, to repay our French friends for their many favors, and instruct them in the art of making pumpkin-pies and eating canvass-back ducks? The French at present know little more about us than that Doctor FRANKLIN made lightning-rods, and that COOPER writes Indian novels. They eat nothing that we raise, they wear nothing that we make, they adopt none of our fashions, they use none of our phrases. You would

look in vain in the *carte* of any restaurateur in Paris for such delicacies as apple-dumplings or corn-bread, and you might call in a Parisian café until you were hoarse, for a ‘cobbler’ or a julep, without getting either. Yet our uppish people will eat nothing, drink nothing, wear nothing that is not French. We have been told of certain brokers in Wall-street who import even their *desserts* from Paris; not their *deserts*, my friend, for the guillotine is the only French thing which we don’t imitate or import. No wine is fit for our tables without the prefix of a *chateau* something; every thing that is composed of wool is something *de laine*, and all our clothes are made of *drap de* this or *drap de* that.

But let us not paint our Gallic friends a shade darker than they deserve. They have taught us the use of napkins and silver forks; they give us the best perfumery in the world, and make the best gravies for our meats. What is the privilege of writing the songs of a nation, compared with the privilege of setting its fashions? The supremacy of the French in all matters of taste is not the effect of accident. Why do they rule the world by their elegancies? There is a philosophy in these things, as well as in every thing else, which is worthy of grave consideration.

The secret of French authority lies in the simple truth that they count every thing worthy of being well done which is worth doing at all. We have grades of usefulness. Not so with them. Whether they make a pâté or build a palace, it is a grave matter; and the consequence is, that their pâtés as well as their palaces excel those of the other kingdoms of Europe. The Louvre is as much superior to Buckingham Palace as a Charlotte-Russe is to a Yorkshire pudding. Cookery and Architecture are the first arts practised by mankind, and the last in which they arrive at perfection. The French excel all other nations in both. The condition of one art might be ascertained with precision by examining the state of the other in any part of the world, or in any age. When cooks served up pastry with peacocks’ tails sticking out of the top crust, architects built gothic churches and campanile towers. Penault and Vatel ornamented the same age. One built a palace and the other cooked a dinner, and they are both immortal. It would be no difficult matter to guess at the extravagance and unhealthiness of our kitchens, from a glance at our Exchange and Custom House. The ponderous marble and granite boulders in these senseless structures have their correspondents in many a lump of indigestible food; and the bizzarreteerie of the new Trinity Church

have their correspondents in many a temple composed of macaronis and cocoanut candies.

We have grades of usefulness, but it is no easy matter to discover the principles upon which our scale of respect is graduated: money is not always the test of merit; it matters how you get it. If you earn it yourself, it will not entitle you to half the respect it would if your father or grandfather earned it for you. Any occupation which soils the hands or the clothes, is looked upon with disfavor by the upper classes. A broker who never does any thing that is either useful or ornamental, grows nothing, invents nothing, imagines nothing; who instructs nobody, amuses nobody, enriches nobody; who leaves the world in the same condition that he found it, may be called a gentleman, visit in the first circles, have those mysterious letters, E.S.Q., written after his name, and if he is rich, will be elected a member of more societies than will be agreeable to him. But a wig-maker who has invented a new spring for a toupée, or a new dye for the hair, and thereby really done mankind a service, could no more get into the first circles with us than he could go to heaven, like Mahomet, on the back of an ass. Shoemakers' wives and bakers' daughters are people of whose acquaintance nobody ever speaks boastingly. I once knew the nephew of a barber who always blushed when his uncle was named in his hearing. But an attorney's lady, or a banker's daughter, are often paraded in an ostentatious manner before one by their friends, and I have never known the nephew of a soldier-officer, whose business is to take people's lives, blush at the profession of his relative. It cannot be expected that men will labor in callings that gain them only the contempt of their neighbors; and therefore while it is accounted disgraceful among us to do any thing that is useful, we must be content to remain dependent upon any people who have more sense in regard to this matter than ourselves.

We are very well aware that shoemakers and pastry-cooks are not the kind of people who compose the French court; but there can be no denial of the fact that certain kinds of artisans are treated by the French people with a greater degree of respect than they are with us. Very different from the dogged surliness of an Englishman, or the *who-cares-for-you* manner of our own countrymen, is the air of conscious self-respect of certain classes of French tradesmen. In the present condition of our society, we hold it to be among the impossible things to make a decent pastry-cook out of an

American citizen, or a decent citizen out of a pastry-cook. But is there any good reason why we should not? Do not pastry-cooks contribute as much toward human happiness as sugar-refiners or importers of molasses? Should you not feel as well disposed toward the individual who had made a meringue to your liking, as toward him who had imported the materials of which it was composed? The King of the French seats artists at his dinner-table, bestows the 'legion of honor' upon them; pays them liberally for their works, and settles pensions upon them. Artists with us, as artists, do not often find their way into our upper circles; if they are respectable in their habits and associates, they are rather countenanced for their respectability than noticed for their genius. We know a whiskey-distiller who refused his daughter to a portrait-painter, unless he would abandon his profession; simply because it was a low calling.

It is very common with us to call the French triflers; but it is one of the many bad habits which we have inherited from the English, and the sooner we free ourselves from it, the better will it be for us. We shall never be ambitious to excel a people whom we pretend to despise. If doing small things well be trifling, then the French are triflers. But what must we call them for their great works? There is no art, no science, no department of learning in which the English excel them. They are the best architects in Europe; the best physicians; the best chemists, the best astronomers. They have cut off the head of one king and banished another; what more have the English done? But they can afford to be called any thing: they set the fashions of the whole world. Queen VICTORIA is as much a subject of LOUIS PHILLIPE in her dress as any lady in France. With all her immense territory, her great authority, she cannot change the fashion of a bonnet.

The difference between French and English art is as great as the difference between the Louvre and the National Gallery in Trafalgar Square; and about the same relative difference prevails with regard to us. At the last exhibition of the Louvre there were four thousand paintings offered; at the last exhibition of the National Academy there were about four hundred. This is not a very correct method of judging of the artistic excellence of a nation, but it is not far from correct in this case.

A PICTURE BY MURILLO.—The time has yet to arrive when the march of empire *westward* will bring in its train our portion of those chef d'œuvres of painting and sculpture which adorn the princely palaces of Europe, and confer distinction upon the possessors of wealth and taste in humbler abodes. To us, who have never visited those miracles of art, the sight of one of them is too gratifying to be passed over without imparting a share of the pleasure to our less fortunate readers. For the first time in our lives, we have enjoyed the delight of seeing at the house of a friend one of the grand pictures of MURILLO, which was obtained by a distinguished connoisseur at Lima, in 1828, from the cloister of an old convent, where it had hung for countless years in ignoble seclusion. It had probably been brought from Spain during the life-time of the painter, as it is not described by any of his biographers, who have carefully enumerated the works of his pencil. This idea is strengthened by the fact of his having inscribed his name upon the picture, which is not to be found upon any of his master-pieces at Madrid and Seville. Although it has not escaped the injuries of time and ignorance, it appears to have had the rare good fortune never to have passed through the hands of a restorer or scourer: the whole effect of its magical colouring remains unobscured, except a few touches of the brush of some dauber, who has tried the experiment of adding freshness to the rose.

The subject of it is the Holy Family, of life-size. Saint Joseph is seen in the background, with the infant SAVIOUR in his arms, presenting him to his mother, who is kneeling with extended hands to receive the precious burden of love. Like most of his great scriptural pictures, the composition is simple and natural, exhibiting a familiar scene in domestic life, elevated by expression, and ennobled by beauty. The Saint's face, which is of the true Andalusian type, is fraught with benignity, as he graciously inclines toward the mother, with the infant resting tenderly in his hands as if supported by a bed of down. Nothing can surpass the graceful figure and attitude of the mother, whose features are literally overflowing with maternal affection, while she caressingly holds out her hands to receive her son. But the charm of the picture is the infant DEITY himself, upon whom the painter has

lavished his art, and poured forth the inspiration of his genius. His position forms the centre of the group, and instantly arrests the attention and commands the admiration of the spectator. He looks as if just awakened from a deep slumber; his eye-lids are tinged with red, and the motion of his limbs betokens the sudden consciousness of suspended existence; his playful smiling features are radiant with joy at recognizing his mother, toward whom his hands are invitingly opened. His figure is foreshortened, and to such a degree that his legs are out of the canvass, instinct with life and motion. His flesh has the plumpness and transparency of perfect health, flushed with roseate tints; his appearance denotes a child of nine or ten months old, but without that expression of premature intelligence by which the infant SAVIOUR is distinguished in the pictures of RAPHAEL. He is, in short, just one of those angelic creatures fresh from the hands of the CREATOR, oftener found in the cradles of peasants than of princes. The hands and feet of all the figures are painted with warmth, and with such sun-light transparency, that the ruddy current seems actually coursing beneath the skin. Indeed the whole tone of the picture is so life-like, that for the moment we cease believing it to be an illusion of lights and shadows reflected upon canvass. All the draperies are large and flowing, and broadly touched: that of the infant is a luminous white; the saint's is sombre; the mother's is of that violet tint, said to be peculiar to MURILLO, styled by the French, *lie de vin*.

In the grand compositions of RAPHAEL, we often see the actors grouped into a pyramidal form. In this of MURILLO, they present a diagonal line; extending from the head of the Saint to that of the mother, and down to a pannier in the corner of the picture, which contains her needle-work attached to a cushion in the Spanish fashion. At her feet a small dog is seated, of the Mexican race, which appears alive. Saint Joseph is painted in shadow, and forms the second plan of the picture. Behind him are suspended some of the implements of his humble trade.

The fame of MURILLO out of his native country, has risen within these last ten or fifteen years to the highest rank, and his historical pictures are now classed with those of the greatest masters of the Italian school: as a colorist he is admitted to stand without a rival. This sudden extension of his merits is in some degree owing to the cheap acquisition of eight of his finest works by Marshal SOULT, when he was NAPOLEON'S governor of Andalusia. These

pictures have been seen and admired by all the world in Paris. Two of them, the Return of the Prodigal Son, and Abraham Receiving the Angels, have passed from the gallery of the illustrious Marshal to that of the Duke of Sutherland, for a *consideration*. The fine collection of pictures of the Spanish schools, purchased by Baron Taylor for LOUIS PHILIPPE, and now exhibited in the LOUVRE, has contributed to the same effect. It contains MURILLO's Virgin de la Faxe, a perfect master-piece of coloring, which cost one hundred and thirty thousand francs.

None of his great compositions are taken from profane history or mythology. He was in a manner interdicted from using subjects derived from those copious sources, by a decree of the Holy Inquisition of Andalusia, which prohibited painters and sculptors, under the penalties of fine and excommunication, from displaying in their works any lascivious or naked images. His landscapes and flower-girls are painted in the highest style of beauty; and his beggars have never been excelled in all the loathsome attributes of misery and disease. The fact of his never having been out of his native country, disposed critics to believe that his works must be deficient in that highest order of merit which exclusively belongs to the classic schools of Italy: they would not admit that species of excellence which knew how to adapt the highest subjects of art to the unlearned. Yet such was MURILLO's influence over the human heart, that his genius enabled him to embellish truth, and to present it with all its graces and attractions to the understandings of all those who are endowed with an innate love of the beautiful. His pictures, like Gray's Elegy in a Country Church-yard, may with equal truth be said 'to abound in images which find a mirror in every mind, and with sentiments to which every bosom returns an echo.'

It is true that there is nothing academic to be found in his groups; no mysterious allegory; no theatrical display of the passions; very little of what is more talked of than understood, the beau-ideal. Nevertheless, he is always original, and never vulgar; his drawing is nearly faultless; his compositions are instantly felt and understood by all who have read the Scriptures, because they convey to the mind more of the evangelical character and attributes of Christianity than those of any other painter. On this subject some very characteristic remarks are made by the late Sir David Wilkie, in his letters from Jerusalem.²

‘His Madonnas, his saints, and even his Saviours, have the Spanish cast; all his figures are probably portraits, and all his forms have a national peculiarity of air, habit, and countenance; and although he often adopts a beautiful expression of nature, there is generally a peasant-like simplicity in his ideas. He gives occasional instances of great sublimity of expression, but it is a sublimity which neither forces nor enlarges nature: truth and simplicity are never out of sight. It is what the painter sees, not what he conceives, which is presented to you. Herein he is distinguished from his preceptor VELASQUEZ. That great master, by his courtly habits of intercourse, contracted a more proud and swelling character, to which the simple and chaste pencil of MURILLO never sought to aspire. A plain and pensive cast, sweetly attempered by humility and benevolence, marks his canvass; and on other occasions, where he is necessarily impassioned or inflamed, it is the zeal of devotion, the influx of pious inspiration, and never the guilty passions which he exhibits. In short, from what he sees, he separates from what he feels, and has within himself the counter-types of almost every object he describes.’

If it be true, (says his biographer, BERMUDEZ,) that painters put their own portraits in their works, that is to say, that they exhibit their own genius, their propensities, affections, and the dispositions of their minds in them, the pictures of MURILLO bear a great analogy to his virtues, and the gentleness of his character. He was distinguished above all others of his profession by the mildness with which he instructed his pupils; by the urbanity with which he treated his rivals; by the humility with which he excused himself from becoming the painter of the Camara to CHARLES the Second, which was offered to him by the court; and for the charity with which he distributed the most liberal alms to the poor, who afterward deplored his death. But those who were most affected by it were his beloved scholars, who, overwhelmed with grief and anguish, could find no consolation for the loss of a father who loved them most dearly; of a master who instructed them with the utmost kindness, and of a protector who encouraged them by giving to each such portions of employment as enabled them to maintain themselves. This affectionate tribute to the character of MURILLO, must recall to the minds of our readers that beautiful passage in the letter of BALDASSARE CASTÍGLIONE to his brother, which is said to express the feelings of all the artists in Rome upon the death of his friend RAPHAEL:

‘Ma non mi pare esser a Roma, perchè non vi è piu il mio poveretto RAFFAELLO.’

MURILLO was born at Magdalena, near Seville, on the first day of January, 1618, and died on the third of April, 1682. He was buried in the church of Santa Cruz at Seville. The immediate cause of his death, although he had long been worn out by the anguish of his infirmities, was a fall from a scaffold while he was painting the Marriage of Saint Catharine for the Convent of Capuchins at Cadiz. Notwithstanding the many pictures which he painted, he died possessed of only a few rials, and some property which he had acquired by his wife.

GOSSIP WITH READERS AND CORRESPONDENTS.—We would respectfully ask the reader’s attention to the advertisement of the ‘*Knickerbocker Library*,’ on the second page of the cover of the present number. ‘Our best exertions shall not be wanting’ to make the series all that the publishers hope for it. That the *matériel* is good, our readers, we think, need not be informed. The plan has been cordially welcomed by the press, with a single exception; and in that, the *quo animo* was so apparent as to neutralize the slur intended by the writer. We shall be enabled to secure the earliest literary rarities on both sides of the water for the ‘*Knickerbocker Library*,’ and the style in which they will be presented will be unsurpassed. • • • We lament in the recent death of WILLIS GAYLORD, the loss of a beloved relative, who was our elder companion in childhood and youth, and our faithful friend and correspondent, to the close of his useful and honored life. Mr. GAYLORD died at his beautiful residence of Limerock Farm, Onondaga county, on the 27th ultimo, after a brief illness. ‘Few men,’ says the *Albany Argus*, ‘were better known throughout the agricultural community than Mr. GAYLORD. He was for many years one of the editors of ‘*The Genesee Farmer*,’ and since the death of Judge Buel, has been the senior editor of ‘*The Cultivator*.’ As an agricultural writer, it is not too much to say, that his equal is not left to mourn his loss. He was also favorably known by his contributions to our literary and scientific journals. He was distinguished as a warm-hearted philanthropist, and few men have more largely benefitted the community by their labors. His social virtues endeared him warmly to all by whom he was known. In the pathetic language of one by whom the intelligence of his

death is communicated, he was truly ‘the friend of the farmer—the friend of humanity.’ We have the proceedings of a meeting of the New-York Agricultural Society, held in the State-House at Albany, on receiving the intelligence of the death of Mr. GAYLORD. The President, JOHN P. BEEKMAN, Esq., of Columbia county, passed a high and deserved eulogium upon the character of the deceased. ‘The judgment of every intelligent farmer in the State,’ he observed, ‘will respond to the assertion that to no man whatever, excepting perhaps Judge BUEL, is the agriculture of the State more indebted than to Mr. GAYLORD. For myself, I can declare in all sincerity that there is no man whose writings caused within me a greater desire to be honored with a personal acquaintance. The character of WILLIS GAYLORD was in all respects what might be expected from his writings; benevolent, enlightened, elevated; yet plain, practical, unassuming. Every day of his useful life was marked, not merely by the exercise of his versatile talents on the multifarious subjects embraced by agriculture and the domestic arts, but by the acquisition and promulgation of knowledge in the wide range of science.’ He was cordially esteemed by all who knew him; he had not an enemy in the world. Hon. CALVIN HUBBARD, of the Legislature, offered resolutions in testimony of the deep regret which the death of Mr. GAYLORD had created in the public mind, copies of which were ordered to be transmitted to the relatives of the deceased; after which, as a token of respect to his memory, the meeting was adjourned. ‘A scholar, a gentleman, a christian, a friend of man, Mr. GAYLORD lived universally beloved, and died universally lamented.’ • • • It has been assumed lately by certain of the political and financial enemies of the late NICHOLAS BIDDLE, Esq.,—an accomplished gentleman and scholar, whose pen has often entertained and instructed the readers of this Magazine—that he had little power of style, and that his intellectual rôle was a limited one. Nothing could be farther from the truth. That point however we are not now to discuss. We merely wish to ask the reader’s attention to the subjoined remarks of Mr. BIDDLE upon the besetting sin of our American style, oral as well as written: ‘A crude abundance is the disease of our American style. On the commonest topic of business, a speech swells into a declamation—an official statement grows to a dissertation. A discourse about anything must contain every thing. We will take nothing for granted. We must commence at the very commencement. An ejectionment for ten acres reproduces the whole discovery of America; a discussion about a tariff or a turnpike, summons from their

remotest caves the adverse blasts of windy rhetoric; and on those great Serbonian bogs, known in political geography as constitutional questions, our ambitious fluency often begins with the general deluge, and ends with its own. It is thus that even the good sense and reason of some become wearisome, while the undisciplined fancy of others wanders into all the extravagances and the gaudy phraseology which distinguish our western orientalism.' A specimen of this 'orientalism' we gave in our last number. Here is another example of a somewhat kindred character. A western orator recently delivered himself of it from the summit of a sugar-maple stump at a political barbacue:

'WHAR, I say *whar*, is the individual who would give up the first foot, the first outside shadow of a foot of the great Oregon! There aint no such individual. Talk about treaty occupations to a country over which the great American eagle has flew! I scorn treaty occupation; d—n treaty occupation! Who wants a parcel of low-flung, 'outside barbarians,' to go in cahoot with us, and share alike a piece of land that always was and always will be ours? Nobody. Some people talk as though they were afeard of England. *Who's* afeard? Haven't we licked her twice, and can't we lick her again? Lick her! Yes! just as easy as a bear can slip down a fresh-peeled sapling! Some skeery folks talk about the navy of England; but who the h-ll cares for the navy? Others say that she is the *mistress* of the ocean. Supposin' she is? aint we the *masters* of it? Can't we cut a canal from the Mississippi to the Mammoth Cave of Kentucky, turn all the water into it, and dry up the d——d ocean in three weeks? Whar then would be the navy? It would be *no whar*! There never would *have been* any Atlantic ocean if it hadn't been for the Mississippi, nor never will be, after we've turned the waters of that big drink into the Mammoth Cave! When that's done, you'll see all their steam-ships and their sail-ships they splurge so much about, lying high and dry, floundering like so many turtles left ashore at low tide. That's the way we'll fix 'em. *Who's afeard!*'

WE have often thought, that if the various *similes* employed in the Scriptures were thoroughly understood, that their appositiveness and beauty

would be themes of increased admiration. Observe how the latent meanings of the following passage reveal themselves to the heart:

THE REFINER.

BY MONTGOMERY.

‘HE is like a refiner’s fire, and like fuller’s soap. And he shall sit as a refiner and purifier of silver: and he shall purify the sons of Levi, and purge them as gold and silver, that they may offer unto the Lord an offering in righteousness.’—MALACHI iii. 2, 3.

A FEW ladies in Dublin, who often met together to read the Word of GOD, one day occupied their attention with the passage now before the eye of the reader. One of the ladies expressed her opinion that ‘the fuller’s soap and the refiner of silver’ were only the *same* image to convey the same view of the sanctifying influence of the grace of CHRIST. ‘No,’ said another, ‘they are not the same image; there is something remarkable in the expression, ‘HE shall *sit* as the refiner and purifier of silver.’” On going into the town, this lady called on a silver-smith, and desired to know the process of refining silver, which he fully explained to her. ‘But do you *sit*, Sir,’ she asked, ‘while you are refining?’ ‘Yes, Madam, I must sit with my eye steadily fixed on the furnace; since if the silver remain too long, it is sure to be injured.’ She at once saw the beauty and comfort of the expression. CHRIST sees it needful to put his people into the furnace, but HE is seated by the side of it—HIS eye is steadily fixed on the work of purifying—and his wisdom and his love are both engaged to do all in the best manner for them. As the lady was returning to her friends, to tell them what she had heard, as she turned from the shop-door, the silver-smith called her back, and said, he had forgotten one thing, and that was, he only knew the process of refining to be complete by seeing his own image in the silver.

When CHRIST sees his own image in his people, the work of purifying is accomplished.

It may be added, that the metal continues in a state of agitation, until all impurities are thrown off, and then it becomes quite still; a circumstance which heightens the analogy of the case; for how

‘Sweet to be passive in His hand,
And know no will but His!’

DOES ‘M.’ well to be angry? We ‘referred publicly’ to his query touching our choice of prose or poetry, *at his own request*, in a playful, but certainly not in an intentionally ‘offensive’ manner. And now, a ‘good that was intended us’ is clean gone forever! Very well—we must submit, with what grace we may.’ ‘My ‘spected bredren,’ said a venerable colored clergyman, on a recent occasion, ‘blessed am dat man dat ‘spects noth’n, ‘cause he an’t gwine to be disapp’inted!’ We solace ourselves with this scrap of Ethiopian philosophy. • • • THE experiments alluded to below, in the happiest vein of the amusing ‘Charcoal-Sketcher’ of Philadelphia, have been frequently tried in this city, we understand, but with very infrequent success. Pulling teeth while the patient is asleep is not ‘practised to a very great extent in *this* community;’ for no sooner is the glittering instrument of torture ‘placed in communication’ with the jaw, than it is found to ‘disturb the Mesmeric function’ to an extraordinary degree:

‘MANY who would be valiant in battle, turn pale at sight of the dentist’s chair. To stand up to be shot at in a duel is unpleasant to the nerves, and to storm a breach requires a considerable modicum of determination; but to pull the dentist’s bell and not to run away; to walk boldly in and not to request a postponement, though it gains one no laurels and probably would not help to secure a political nomination on the score of heroism, is pure unadulterated valor; intrinsic—deriving no aid from association or example; nothing from the instinct of discipline or the thirst for glory. In encountering other dangers, there is a large hope, too, of impunity. An expectation of survival, a fond trust to be with the unhurt, always exists. But here, in that morocco throne, so grotesque, so mystical, so strange in all its aspects; your

mouth wide open and your head thrown back—what hope can there be? To be hurt is an inevitable thing. We are in the clutches of a fate, and must realize our mortal frailty. To march to this with a whistle; neither to kick the smaller dogs on our route, nor to thrust little children aside spitefully; to take our usual interest in the occurrences of the street as we pass along to execution; to laugh, to jest, to talk of the weather with the identical man as he rattles his glittering instruments and smiles upon their brightness; to shake hands with him and to make a tolerable pretence of being glad to see him, is an effort, though we may have never encountered a war, equal to that which wears medals and puts pensions in its pocket. There is some comfort, however, to the afflicted in the fact that there have been of late symptoms of a combination of animal magnetism with dentistry, which affords a gleam of consolation. The exhibitors in New-York frequently have teeth extracted from mesmerised patients, to prove that in many cases they are insensible to pain—a thing which has been done very often in private in this city, and in many instances with complete success. What a cause for rejoicing would it be then, if the proper degree of ‘impressibility’ were general with those who have failing and recreant teeth, that the dentist and his magnetiser might be one and indivisible? Surgery in all its branches would be benefitted by the same connection; but this strange physical condition is not an invariable concomitant of the mesmeric state; so that valor, such as that to which we have already alluded, cannot go completely out of use, even if all could be subjected to the nervous influence of the magnetiser.’

‘PHAZMA,’ the cleverest of our western poets, who has written so many beautiful things for the New-Orleans ‘*Picayune*,’ presents us lately with the subjoined tender sonnet. He has ‘discharged’ it as well as if he had previously read the directions of our eastern ‘manufacturer of the article,’ in our last issue:

M A T E R N A L T E N D E R N E S S .

A MOTHER bends above her weeping child,
Her bosom heaving with convulsive throes,
Her large eye lighted with expression wild,
That, ah! too plainly speaks maternal woe!
The tearful infant, lost in bitter grief,
Thrills forth its plaintive call for tender care;
While from a mother's trembling hand relief,
Alas! can answer no imploring prayer.
Swift-falling tears! and piercing cries of pain!
Maternal passion kindling into glow!
Peace banished from its sweet domestic reign!
Stricken with grief!—ah! sad and cruel blow!
Behold the matron in a fury blue,
Beating her screaming Bobby with a shoe!

OUR esteemed friend, JOHN SANDERSON, the distinguished 'American in Paris,' whom the readers of this Magazine have known so long, and regarded so highly, is no more! Sad indeed is the task of recording the demise of a scholar so profound, a gentleman so accomplished, and a man so widely admired and beloved. SANDERSON was a delightful companion; and as we record this hasty tribute to his memory, we cannot help recalling the many pleasant passages, personal and epistolary, that we have had together. A correspondent of the *Philadelphia Gazette*, who knew him well, furnishes the following notice of the deceased, in the justice of which all who knew him will cordially concur:

'JOHN SANDERSON was a man of genius, a man of talent, a man of feeling. He was a Philadelphian, and by his life and writings he added to the good reputation of his country. To natural abilities of a high order, he added a calm, chaste scholarship, an intimate knowledge of mankind, a singularly amiable disposition, and a frank and high-bred courtesy. His departure is lamented not alone by those who enjoyed his society and his friendship; he is mourned by our republic of letters; America as well as our city, has lost one of her most accomplished sons. Mr. SANDERSON has long been known as a writer. His first publication was the collection of *Memoirs of the Signers of the Declaration of Independence*, in nine octavo volumes; a work embracing a vast amount of original and authentic information; and his last, excepting contributions to the literary journals, was '*The American in Paris*.' He was a man of most excellent humor, blending

happily the characteristics of RABALAIS and STERNE and LAMB. When with his chosen associates, we doubt whether even COLERIDGE was more entertaining or instructive. Turn to his Parisian letters and see the union of wit and humor, of playful satire and nice observation which pervade them. Examine all the pleasant books of travel of which this age has been so prolific, and answer whether they have been surpassed. 'You know SANDERSON,' we said a few weeks since to a French Deputy who was travelling here. 'Know JOHN SANDERSON? I derived from him my knowledge of Paris.' 'But you are a Parisian?' *'Je ne sache pas qu'il y ait eu un Français qui ait plus connu Paris et son monde.'* In that home of the gay, the brilliant and the profound, of all that in life or art attracts the man of genius, or learning, or taste, Mr. SANDERSON was the favored guest of the most celebrated savans and wits, many of whom since his return to the United States, have waited anxiously for his restoration to their circles. And he himself looked forward with happy anticipations to the renewal of his old friendships. In a few months he was to reoccupy his apartments in the Rue Rivoli. 'There,' he said to the writer of these recollections but a week ago, 'there with congenial spirits I shall spend the residue of my days.' How much those friends will sorrow when they learn that JOHN SANDERSON is no more!

He was a wit; he had a most delicate perception of the beautiful, and a keen sense of the ludicrous. But those who knew him can tell with what care he directed his powers. He never summoned a shadow to any face, or permitted a weight to lie on any heart. He was as amiable as he was brilliant. He was no man of the world. He knew society, its selfishness and its want of honor, but he looked upon it less in anger than in sadness. He was no cynic, no Heraclitus; he deemed it wisest to laugh at the follies of mankind. Through all his experience he lost none of his natural urbanity, his freshness of feeling, his earnestness and sincerity. The late THEODORE HOOK, the first humorist and most celebrated bon-vivant of our day, was employed by his publisher to edit Mr. SANDERSON'S 'American in Paris.' He read it, adapted it as well as he could to the English market, and returned it with the observation that 'there was never a book which suffered more from slightest change.' Had the author devoted the chief portion of his time to letters,

he would have been little less distinguished in the same department than his famous friend. But he lived a quieter and happier life; he died a happier death, suddenly, but in a *home*, and with his friends about him.'

THE following '*Lines to a Bouquet of Flowers*,' are from the pen of the lamented Governor DICKINSON, whose melancholy suicide will be fresh in the minds of many of our readers. We learn from the friend through whom we derive them, that they were handed to him by the author, while sojourning for a short time in Albany:

EMBLEM of life and loveliness,
Welcome, sweet harbingers of Spring!
Clad in thy beauteous summer dress,
And wafted on Time's fairy wing.

Would thou wert fadeless as the sky,
All redolent of hope and gladness,
But soon, alas! thou'lt lonely lie,
Emblem of Death, of Grief, of Sadness.

Emblem of Life! thing of an hour,
How soon thou'lt hang thy sickly head,
And bow beneath the conqueror's power,
And lie among the sleeping dead!

Emblem of Life! beyond the tomb,
Thy flowers again shall form a wreath;
Shall germinate amid the gloom.
And triumph o'er the monster Death!

D. S. D.

WE have repeatedly in these pages 'borne testimony' in behalf of a more general cultivation of the fine arts, and especially in the department of architecture. We have had too much reason to concur with JEFFERSON in the opinion that 'the genius of architecture never yet condescended to visit the American Republic.' The Count RENAULT St. JEAN D'A—— was wont to say, while residing among us, that 'more was to be learned by viewing Grace-Church in Broadway, touching the state of mental culture among us

in the science of architecture, than by all the methods of reasoning which philosophy could furnish on any abstract point of knowledge;’ and yet we believe the plan of this edifice was the result of a confederation of intellectual powers! Moreover, as our old friend, the late Gen. MORTON, was wont to say, we must bear in mind that beside the several recognized orders of architecture, we have also an *order by the corporation*! We may have more to say on this theme on another occasion. We have been led to these incidental remarks, by the recent death in this city of a man of rare genius, and unwearied effort in the promotion of a kindred branch of art—THOMAS HORNER, of England, the well-known draftsman and painter of the wonderful panorama of London, which constitutes the attraction of the great collosseum in that metropolis. The labor to affect this great work, the result of years of toil and severe exposure to the inclemencies of a noxious atmosphere, doubtless predisposed to that prolonged suffering which wasted his physical strength; while sad disappointments, and the precarious means of existence which he derived from his art in this country, may be justly regarded as concurring causes in hastening his final departure from among us. For a period of about fifteen years, he had devoted himself to the taking of sketches of numerous rural views and edifices in different parts of our northern states, and of the public buildings of our prominent cities. His delineation of the city of New-York is perhaps the most conspicuous of the efforts of his pencil. He died in this city on the morning of the 18th of March, aged about sixty years. It may be gratifying to his relatives and friends abroad to know, that there were not a few of our citizens who were ready at all times to aid him by their benefactions; and that in his illness he found in Dr. FRANCIS, whose name is a synonyme for considerate kindness, a constant friend and faithful medical adviser. His funeral was attended by some of our first citizens, among whom it was gratifying to observe Mr. FOWLER, the President of the St. George’s Society, and other well-known countrymen of the deceased. • • • Our correspondent, Mr. THOS. COPCUTT, has opened the present number with an admirable paper, compiled from Carlyle, on the never-tiring theme of NAPOLEON. We always associate, and at once, with NAPOLEON’S name, the dreadful scenes presented by his deserted battle-fields; such for example as marked the sanguinary contests of his Russian campaign. Here is a sketch of one, from the pen of an eye-witness: ‘The battle-field presented a terrible picture of ruin and carnage, especially on the left and centre, where the greatest efforts had been made to take,

maintain, and retake the redoubts. Corpses of the slain, broken arms, dead and dying horses, covered every elevation and filled every hollow, and plainly indicated the progress of the action. In the front of the redoubts lay the bodies of the French; behind the works, showing that they had been carried, lay the Russians. On many points the heaps of corpses told where squares of infantry had stood, and plainly pointed out the size of the closely formed masses. From the relative number of the slain, it was easy to perceive that the Russians had suffered more than the French.' And this is but one of hundreds of similar scenes! Yet, 'had these poor fellows any quarrel? Busy as the Devil is, not the smallest! Their *Governors* had fallen out!' If one could indulge a 'grim smile' at any thing in relation to BONAPARTE, it would be at the potential *military* standard to which he reduced every thing. Do you remember his order on the appearance of the Mamelukes in Egypt? Form square; artillery to the angles; asses and savans to the centre!' Characteristic; but complimentary that, to the 'learned savans!' • • • WE have bestowed but little of our tediousness upon the reader in this department of the present number, whereat he may felicitate himself, since our excellent correspondence will be found a welcome substitute for much that we had written, and which 'lies over' until our next. The *Quod Correspondence* will arrest the attention of every reader. No two chapters of the entire series excel the present in power of delineation, or depth of interest. For 'Babyhood,' addressed to 'JULIAN;' 'Excelsior,' a parody upon LONGFELLOW; 'Punchiana, with clippings,' and various Gossip with Correspondents, whose favors were intended for the present number, we must refer all concerned to our next issue. • • • WE have *received* the following works; and to such as we have found leisure to *read*, we shall here briefly advert: From the BROTHERS HARPER, the first two numbers of a 'pocket edition' of select (and *old*?) novels, containing 'The Yemassee,' by Mr. SIMMS, and 'Young Kate, or the Rescue:' of the 'Library of Select Novels,' three issues—'The Heretic,' from the Russian; 'The Jew,' and 'The Grumbler,' by Miss PICKERING: From LEA AND BLANCHARD, HUGO'S 'Hunchback of Notre-Dame:' From J. S. REDFIELD, Clinton Hall, 'NAPIER'S History of the War in the Peninsula and the South of France:' From LEAVITT, TROW AND COMPANY, 'Poems by WILLIAM JAMES COLGAN:' From JOHN ALLEN, 139 Nassau-street, 'The Lady at Home, or Leaves from the Every-day Book of an American Woman:' and from LITTLE AND BROWN, Boston, Lives of PATRICK HENRY and LA SALLE, commencing the second series of SPARKS'S

‘American Biography.’ Miss PICKERING’S ‘Grumbler’ is one of the best and most interesting novels we have read for many a day; ‘The Hunchback’ of HUGO is too well known to our readers to require mention; and the same may be said of NAPIER’S excellent history. ‘The Lady at Home’ will commend itself to all readers, for its truly admirable lessons to American women. COLGAN’S poems deserve more space than we can devote to them. The writer has the true poetical *feeling*, and his execution is often very felicitous, and always creditable. • • • THE ‘Nile Story’ of our Boston correspondent; a notice of the Phreno-Mnemonotechny of Professor GOURAUD; of the Re-publication of English Magazines and Reviews; of New Music, and other late publications; are all *unavoidably* postponed, for reasons already stated, until our next number.

Footnotes

1. [Return to text](#)North's 'Examen.'
 2. [Return to text](#)SEE letter to WILLIAM COLLINS, ESQ., Vol. 3., p. 424: ALLEN CUNNINGHAM'S Life of Sir DAVID WILKIE.
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*** END OF THE PROJECT GUTENBERG EBOOK THE
KNICKERBOCKER, OR NEW-YORK MONTHLY MAGAZINE, MAY
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